

Whangarei District Council Meeting

Agenda

Date: Thursday, 26 September, 2024

Time: 9:00 am

Location: Civic Centre, Te Iwitihi, 9 Rust Avenue

Elected Members: His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

For any queries regarding this meeting please contact the Whangarei District Council on (09) 430-4200.

1. Karakia/Prayer	
2. Declarations of Interest / Take Whaipānga	
3. Apologies / Kore Tae Mai	
4. Public Forum / Huihuinga-a-tangata	5
5. Police Report	7
6. Confirmation of Minutes of Previous Meeting of the Whangarei District Council / Whakatau Meneti	
6.1 Minutes Whangarei District Council Meeting 29 August 2024	9
6.2 Minutes Whangarei District Council Meeting held 28 August 2024	21
7. Decision Reports / Whakatau Rīpoata	
7.1 Temporary Road Closure Request - Blessing and Opening of a Whare	31
7.2 Temporary Road Closure Request - Whangarei Christmas Parade 2024	41
7.3 Dog Management Policy and Dog Control Bylaw - Adoption	51
7.4 Te Rerenga - Taitokerau Northland Economic Wellbeing Pathway	87
7.5 Amendments to Council's Standing Orders	119
8. Information Reports / Ngā Pūrongo Kōrero	
8.1 2024-34 Long Term Plan - Deloitte Report to Council	209
8.2 Better Off Funding Portfolio Progress Report - September 2024	237
8.3 Updated higher Government Parking and Towing Penalties	245

9. Public Excluded Business / Rāhui Tangata

- 9.1 Confidential Minutes Emergency Whangarei District Council meeting 4 September 2024
- 9.2 Whangarei Art Trust Request for an additional rent concession for the foyer area at 91 Dent Street
- 9.3 Contract Negotiations - Animal Shelter Operations
- 9.4 Transition Advisory Board Appointments

10. Closure of Meeting / Te katinga o te Hui

Recommendations contained in the Council agenda may not be the final decision of Council.

Please refer to Council minutes for final resolution.

4 Public Forum

Meeting: Whangarei District Council
Date of meeting: 29 August 2024
Reporting officer: Carolyne Brindle (Senior Democracy Advisor)

1 Purpose / Te Kaupapa

To afford members of the community an opportunity to speak to Council and to report on matters raised at public forums where appropriate.

2 Summary

Standing Orders allow for a period of up to 30 minutes to be set aside for a public forum at the commencement of each monthly council meeting.

The time allowed for each speaker is 5 minutes.

Members of the public who wish to participate should send a written application, setting out the subject matter and the names of the speakers, to the Chief Executive at least 2 clear working days before the day of the meeting.

Speakers

At the time of the agenda closure no applications to speak at public forum had been received.

Responses

Speaker	Topic
Tim Howard, Northland Urban Rural Mission	In support of retaining Maori Wards
Delaraine Armstrong on behalf of Te Kārearea Hapū Appointed Caucus	In support of retaining Maori Wards
John Bain	Democracy
Frank Newman	Democracy
Response At the 29 August meeting Council resolved that: - the Whangarei District Māori ward would remain in place until the 2028 elections; - at the Local Government elections next year (2025), candidates will stand in all five General Wards and in Whangārei's Māori ward; - at the 2025 local government elections there will be a binding referendum in which all voters may vote for or against retention of the Māori ward for the 2028 and 2031 elections.	

5 Police Report

Meeting: Whangarei District Council
Date of meeting: 26 September 2024
Reporting officer: Simon Weston (Chief Executive)

1 Purpose

To update council on Police activities.

2 Recommendation

That Council note the report on Police activities.

3 Background

Area Commander Maria Nordstrom (New Zealand Police), will update council on Police activities over the last quarter.

4 Significance and engagement

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via Agenda publication on the website.

Item 6.1
Whangarei District Council Meeting Minutes

Date: Thursday, 29 August, 2024

Time: 9:00 a.m.

Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo
 Cr Nicholas Connop
 Cr Ken Couper
 Cr Jayne Golightly
 Cr Phil Halse
 Cr Deborah Harding
 Cr Patrick Holmes (Teams)
 Cr Scott McKenzie
 Cr Marie Olsen
 Cr Carol Peters
 Cr Simon Reid
 Cr Phoenix Ruka
 Cr Paul Yovich

Not in Attendance

Cr Gavin Benney

Scribe

C Brindle (Senior Democracy Adviser)

Administration

- Meeting livestreamed
- Members of public/press recording
- Supplementary Reports
 - Confidential Items 1.10 & 1.11

1. Karakia/Prayer

His Worship the Mayor opened the meeting with a prayer/karakia.

3. Apology / Kore Tae Mai

Cr Patrick Holmes (late arrival)

Moved By Cr Marie Olsen

Seconded By Cr Paul Yovich

That the apology be sustained.

Carried

Cr Gavin Benney (leave of absence)

4. **Public Forum / Huihuinga-a-tangata**

Tim Howard, Northland Urban Rural Mission – In support of retaining Maori Wards

Delaraine Armstrong, on behalf of Te Kārearea Hapū Appointed Caucus – in support of retaining Maori Wards

John Bain – Democracy

Frank Newman – Democracy.

5. **Confirmation of Minutes of Previous Meeting of the Whangarei District Council / Whakatau Meneti**

5.1 **Minutes Whangarei District Council Meeting held 25 July 2024**

Moved By Cr Paul Yovich

Seconded By Cr Simon Reid

That the minutes of the Whangarei District Council meeting held on Thursday 25 July 2024, including the confidential section, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6. **Decision Reports / Whakatau Rīpoata**

6.1 **Changes to Local Government Electoral Legislation and Decision on the Whangarei District Māori Ward for the 2025 Local Election**

Moved By Cr Paul Yovich

Seconded By Cr Marie Olsen

That the Council disestablishes the Whangarei District Māori Ward to take effect from the 2025 Local Election and reverts to the representation arrangements in place for the 2019 Local Elections.

On the motion being put Cr Connop called for a division:

	For	Against	Abstain
His Worship the Mayor		X	
Cr Nicholas Connop		X	
Cr Ken Couper		X	
Cr Jayne Golightly	X		
Cr Phil Halse		X	
Cr Deborah Harding		X	
Cr Patrick Holmes		X	
Cr Scott McKenzie		X	
Cr Marie Olsen	X		

Cr Carol Peters		X	
Cr Simon Reid	X		
Cr Phoenix Ruka		X	
Cr Paul Yovich	X		
Results	4	9	0

The Motion was Lost (4 to 9)

Cr Connop gave notice that if the motion was lost he would move a further motion.

Further motion

Moved By Cr Nicholas Connop

Seconded By Cr Deborah Harding

That the Council retains the Whangarei District Māori Ward for the 2025 Local Election and conducts a binding poll alongside the 2025 Local Election to determine whether Māori wards will be in place for the 2028 and 2031 Local Elections.

Procedural Motion

Moved By Cr Simon Reid

Seconded By Cr Paul Yovich

That the motion now be put.

On the procedural motion being put Cr Peters called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop		X	
Cr Ken Couper		X	
Cr Jayne Golightly		X	
Cr Phil Halse		X	
Cr Deborah Harding		X	
Cr Patrick Holmes	X		
Cr Scott McKenzie		X	
Cr Marie Olsen	X		
Cr Carol Peters		X	
Cr Simon Reid	X		
Cr Phoenix Ruka		X	
Cr Paul Yovich	X		
Results	5	8	0

**The Procedural Motion was Lost (8 to 5)
The Motion was Carried**

Cr Yovich requested his vote against the motion be recorded.

A break was taken from 10.56am to 11.08am following Item 6.1.

Cr's Holmes and Ruka did not re-join the meeting immediately following the break.

6.2 Proposed Temporary Road Closure - Whangarei Fireworks Spectacular

Moved By Cr Marie Olsen

Seconded By Cr Simon Reid

That Whangārei District Council:

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the Whangarei Fireworks Spectacular on the following date in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965.

Saturday 2nd November 2024

Okara Drive, from the roundabout at Okara Drive and Porowini Ave to the roundabout at Okara Drive and Port Road.

Period of Closure: 2pm to 10pm

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

Carried

Cr Ruka re-joined the meeting at 11.10am following Item 6.2.

6.3 Proposed Temporary Road Closure - Dress for Success, Walkin Wardrobe Event 2024

Moved By Cr Carol Peters

Seconded By His Worship the Mayor

That Whangārei District Council:

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the Walkin Wardrobe event on the following date

in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965.

Saturday 19th October 2024

Butter Factory Lane, from number 10 Butter Factory Lane to number 12 Butter Factory Lane.

Period of Closure: 7am to 5pm

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 metres from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

Carried

6.4 Update on Community Safety Initiatives and Impacts to Council from Graffiti and Vandalism in the District

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That the Council:

1. Receives the report.
2. Acknowledges the direct financial costs to council of the impacts of graffiti and vandalism on council assets the district.
3. Acknowledges anti-social behaviours are directly affecting the community and endorses the actions undertaken by council staff and contractors in response to these impacts.
4. Endorses the council community safety work programme and acknowledges the current limitations of that programme.

Carried

6.5 Alcohol Control Bylaw - Statement of Proposal

Moved By Cr Carol Peters

Seconded By Cr Nicholas Connop

That Council:

1. Determines that the proposed amended Alcohol Control Bylaw (the Bylaw, included in Attachment 1):
 - a. is the most appropriate form of bylaw;

- b. does not give rise to any implications under, and is not inconsistent with, the New Zealand Bill of Rights Act 1990;
2. Adopts the Statement of Proposal (Attachment 1), including the proposed amended Bylaw and the alcohol ban areas and operative times as per Option 2, for public consultation;
3. Authorises the Chief Executive to approve any necessary minor drafting or presentation amendments to the Statement of Proposal to correct errors or omissions, or to reflect decisions made by Council at this meeting, prior to final printing and publication.

Carried

Declaration of Interest:

Cr Reid declared an interest as the Vice President of a licensed premises.

6.6 Delegations Policy and Statutory Delegation Review August 2024

Moved By Cr Ken Couper

Seconded By Cr Simon Reid

That the Council:

1. Rescind all previous statutory delegations contained within the Delegations Register adopted on 29 November 2020 and subsequent updates to that delegation register.
2. Adopt the updated Delegations Policy as provided in Attachment 1.
3. Adopt the reviewed and updated Delegations Register, for statutory delegations, as provided in Attachment 2.

Carried

Cr Halse requested his vote against be recorded.

6.7 Financial Delegations for Emergency Operations Centre Roles August 2024

Moved By Cr Ken Couper

Seconded By Cr Nicholas Connop

That the Council:

1. Notes the recommendation made by the Community Development Committee on 20 April 2023 in relation to financial delegations for Coordinated Incident Management System Managers (CIMS).

AND

2. Approves Delegates Financial Authority to spend up to \$20,000 to the following Emergency Operations Centre CIMS Managers:

Logistics Planning Manager

Intelligence Manager
 Public Information manager
 Welfare Manager
 Operational Manager
 Response Manager.

AND

3. Approves the change in Delegation Financial Authority from \$2,000 to \$20,000 for the Civil Defence Emergency Management Specialist role.

AND

4. Notes these delegations will only come into effect upon activation of the Emergency Operations Centre(EOC).

Carried

Cr Holmes re-joined the meeting at 11.37am during Item 6.7.

6.8 Local Water Done Well Update - August 2024

Moved By Cr Simon Reid

Seconded By His Worship the Mayor

That the Council:

1. Notes the report;
2. Notes updated information regarding the (Local Government Water Services Preliminary Arrangements) Bill.

Carried

6.9 Revocation of Local Purpose (Water Supply) Reserve at Whau Valley Road

Moved By Cr Simon Reid

Seconded By His Worship the Mayor

That the Council:

1. On 23 November 2023 Council approved notification of Council's intention to revoke the reserve status of Lot 1 DP 427274 as the land is no longer required for water supply purposes.
2. Notes that no formal objections were received following the process under section 24(2)(c) of the Reserves Act 1977; and
3. Approves, subject to ratification of the Minister, the revocation of the reserve status of Lot 1 DP 427274;
4. Approves the sale of Lot 1 DP 427274 and authorizes the Chief Executive to enter into the necessary arrangements on behalf of

Council to complete the property sale to the person from whom the land was originally acquired pursuant to section 40 of the Public Works Act.

Carried

Cr Harding requested her abstention from voting on Item 6.9 be recorded.

6.10 Whangarei Art Trust Deed of Guarantee Access Request 2024-2025

Moved By Cr Carol Peters

Seconded By Cr Phil Halse

That the Council:

1. Notes the Trust have followed the requirements set out in the Trust Deed and the Deed of Guarantee and Indemnity.
2. Notes that the remaining guarantee is \$450,000, made up of original guarantee funds.
3. Approves providing up to \$450,000 of the remaining Guarantee funds in the 2024-2025 financial year to support Hundertwasser Art Centre operations for any financial deficit should it be required.
4. Notes that if \$450,000 were to be released and all funds used during 2024-2025 financial year above in item 3, the guarantee will have a \$0 balance and the Deed of Guarantee would cease. Any remaining funds in the Guarantee at the end of the financial year would be carried into the next financial year.
5. Council requests the Whangarei Art Trust seek additional funding sources including external funding and implementation of their own fundraising activities.

On the motion being put Cr Yovich called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Jayne Golightly	X		
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Scott McKenzie	X		
Cr Marie Olsen		X	
Cr Simon Reid		X	
Cr Phoenix Ruka	X		

Cr Paul Yovich

X

Results**6****4****0****The Motion was Carried (6 to 4)***Cr Peters left the meeting at 11.58am during discussion on Item 6.10.**Cr Holmes was off-line during the voting on Item 6.10.**Declaration of Interest:**Cr Couper declared a conflict of interest. Cr Couper withdrew from the table taking not part in discussions or voting on Item 6.10.***Extra ordinary business**

Subsequent to the agenda being circulated Items 1.10 and Item 1.11 relating to the Chief Executive's employment arrangements, were distributed separately but not within the timeframe specified in LGOIMA. Therefore a resolution of council is required.

The report was not included in the agenda for the reason that the information required to finalise the reports only recently became available.

Council are asked to consider these reports at today's meeting to enable any employment arrangements to be finalized.

Moved By His Worship the Mayor**Seconded By** Cr Scott McKenzie

That Item 1.10 and 1.11 be considered at today's meeting.

Carried**7. Public Excluded Business / Rāhui Tangata****Moved By** Cr Simon Reid**Seconded By** Cr Paul Yovich

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 25 July 2024	Good reason to withhold information exists under Section 7	Section 48(1)(a)

1.2	Water Supply Maintenance Contract 14032	Local Government Official Information and Meetings Act 1987	
1.3	Appointment Risk and Audit Committee Chairperson		
1.4	Infrastructure as a Service Contract		
1.5	Property Purchase Hikurangi		
1.6	Land Sale and Legalisation Otuhi Road		
1.7	Request to stop Orua Rd, Bream Bay Village		
1.8	Development Proposal Dent Street		
1.9	Notice of Motion		
1.10	CE's Performance Review 2023/2024 and Annual Review of Remuneration		
1.11	CE's Performance Goals 2024/2025		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons as stated in the open minutes	
1.2	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.3	To protect the privacy of natural persons including that of a deceased person	Section 7(2)(a)
1.4	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.5	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations) To prevent the disclosure or use of official information for improper gain or improper advantage	Section 7(2)(i) Section 7(2)(j)

1.6	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.7	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.8	To enable Council to carry on without prejudice or disadvantage commercial activities. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(h) Section 7(2)(i)
1.9	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.10	To protect the privacy of natural persons	Section 7(2)(a)
1.11	To protect the privacy of natural persons	Section 7(2)(a)

Carried

8. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor closed the meeting with a prayer/karakia at 2.53pm.

Confirmed this 26th day of September 2024

His Worship the Mayor Vince Cocurullo (Chairperson)

Item 6.2

Whangarei District Council Meeting Minutes

Date: Wednesday, 28 August, 2024
Time: 9:00 a.m.
Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance	His Worship the Mayor Vince Cocurullo Cr Nicholas Connop Cr Ken Couper Cr Jayne Golightly (Teams) Cr Phil Halse Cr Deborah Harding Cr Patrick Holmes Cr Scott McKenzie Cr Marie Olsen Cr Carol Peters Cr Simon Reid Cr Phoenix Ruka Cr Paul Yovich
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Not in Attendance	Cr Gavin Benney
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Scribe	C Brindle (Senior Democracy Adviser)
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1. Karakia/Prayer

Cr Carol Peters opened the meeting with karakia.

Cr Nicholas Connop joined the meeting at 9:01am following karakia.

2. Declarations of Interest / Take Whaipānga

No declarations of interest were made.

3. Apologies / Kore Tae Mai

Cr Gavin Benney (leave of absence)

Cr Jayne Golightly joined the meeting via Teams at 9:03am following the apologies.

4. Decision Reports / Whakatauripoata

4.1 Dog Management Policy and Bylaw – Deliberations

4.1.1 Dog Management Policy and Bylaw Replacement Attachments 1 and 2

Item 4.1.1 providing replacement attachments 1 and 2 including tracked changes, was tabled at the meeting.

The motion was taken in parts.

Moved By His Worship the Mayor

Seconded By Cr Scott McKenzie

That Council:

1. Approves the following dog access rules, as provided in section 4.1 of this report, to be included in the final Dog Management Policy (the Policy):
 - a. City centre: Option 1 to retain the proposed default on-leash rule;
 - b. Hikurangi: Option 1 to allow dogs off a leash in the open grass area immediately south of the transfer station;
 - c. Marsden Bay: Option 1 to allow dogs on a leash on the beach and foreshore eastward to the groyne;
 - d. Panorama Drive Reserve (upper): Option 1 to allow dogs off a leash in the open grass area southeast of the playground;
 - e. North Ruakākā Beach: Option 1 to allow dogs off a leash on the beach and foreshore from the Mair Road beach access southward to a line eastward from the eastern end of Taotahi Walk;
 - f. Tip Road northwards (Uretiti Beach): Option 1 to allow dogs off a leash on the beach and foreshore from a line eastward of the southern boundary of the Uretiti Beach Conservation Campground southwards to the beach access point at the end of Tip Road;
 - g. Urquharts Bay: Option 1 to reinstate the default beach and foreshore rule;
 - h. Whangaruru/Bland Bay: Option 1 to prohibit dogs on the beach and foreshore from the northern end of Bland Bay southward to a line northeast of the northernmost point of Logan Nicks Reserve; and from Waitapu Rock eastward to the western end of Tuparehuia Bay;

2. Agrees that, with the exception of the changes proposed in 1 above, no further changes are required to the dog access rules as provided in Schedules 1 and 2 of the Policy;
3. Approves the summer season rule as provided in clause 2.6 of Schedule 1 of the Policy;
4. Approves the following recommendations for the Policy and Dog Control Bylaw (the Bylaw), as provided in sections 4.2 and 4.3 of this report:
 - a. Policy topic 1: Option 1 (no change to proposal);
 - b. Policy topic 2: Option 1 to approve the proposed changes to the Policy as provided in track changes in Attachment 1;
 - c. Bylaw topic 1: Option 1 (no change to proposal);
 - d. Bylaw topic 2: Option 1 to approve the proposed changes to the Bylaw as provided in track changes in Attachment 2;
5. Agrees that, with the exception of the changes proposed in 4 above, no further changes are required to the Policy and Bylaw.

Amendment

Moved By Cr Simon Reid

Seconded By Cr Paul Yovich

Recommendation 1a amended to Option 2: 'a. *Return to status quo dog ban in the city centre.*'

On the amendment being put Cr Scott McKenzie called for a division:

	For	Against	Abstain
His Worship the Mayor		X	
Cr Nicholas Connop		X	
Cr Ken Couper		X	
Cr Phil Halse	X		
Cr Deborah Harding		X	
Cr Patrick Holmes		X	
Cr Scott McKenzie		X	
Cr Marie Olsen	X		
Cr Carol Peters		X	
Cr Simon Reid	X		
Cr Phoenix Ruka		X	

Cr Paul Yovich	X		
Results	4	8	0

The amendment was Lost (4 to 8)

Cr Jayne Golightly was offline during the vote on the amendment.

On the motion being put Cr Simon Reid called for divisions on recommendations 1a to h:

That Council:

1. Approves the following dog access rules, as provided in section 4.1 of this report, to be included in the final Dog Management Policy (the Policy):
 - a. City centre: Option 1 to retain the proposed default on-leash rule;

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen		X	
Cr Carol Peters	X		
Cr Simon Reid		X	
Cr Phoenix Ruka	X		
Cr Paul Yovich		X	
Results	9	4	0

The motion was Carried (9 to 4)

- b. Hikurangi: Option 1 to allow dogs off a leash in the open grass area immediately south of the transfer station;

	For	Against	Abstain
His Worship the Mayor	X		

Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0

The motion was Carried (13 to 0)

Unanimous

- c. Marsden Bay: Option 1 to allow dogs on a leash on the beach and foreshore eastward to the groyne;

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0

The motion was Carried (13 to 0)

Unanimous

- d. Panorama Drive Reserve (upper): Option 1 to allow dogs off a leash in the open grass area southeast of the playground;

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0

The motion was Carried (13 to 0)

Unanimous

- e. North Ruakākā Beach: Option 1 to allow dogs off a leash on the beach and foreshore from the Mair Road beach access southward to a line eastward from the eastern end of Taotahi Walk;

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		

Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0

The motion was Carried (13 to 0)

Unanimous

- f. Tip Road northwards (Uretiti Beach): Option 1 to allow dogs off a leash on the beach and foreshore from a line eastward of the southern boundary of the Uretiti Beach Conservation Campground southwards to the beach access point at the end of Tip Road;

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0

The motion was Carried (13 to 0)

Unanimous

- g. Urquharts Bay: Option 1 to reinstate the default beach and foreshore rule;

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		

Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0

The motion was Carried (13 to 0)

Unanimous

- h. Whangaruru/Bland Bay: Option 1 to prohibit dogs on the beach and foreshore from the northern end of Bland Bay southward to a line northeast of the northernmost point of Logan Nicks Reserve; and from Waitapu Rock eastward to the western end of Tuparehuia Bay;

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0

The motion was Carried (13 to 0)

Unanimous

On the motion being put Cr Simon Reid called for a division on recommendations 2 to 5:

2. Agrees that, with the exception of the changes proposed in 1 above, no further changes are required to the dog access rules as provided in Schedules 1 and 2 of the Policy;
3. Approves the summer season rule as provided in clause 2.6 of Schedule 1 of the Policy;
4. Approves the following recommendations for the Policy and Dog Control Bylaw (the Bylaw), as provided in sections 4.2 and 4.3 of this report:
 - a. Policy topic 1: Option 1 (no change to proposal);
 - b. Policy topic 2: Option 1 to approve the proposed changes to the Policy as provided in track changes in Attachment 1;
 - c. Bylaw topic 1: Option 1 (no change to proposal);
 - d. Bylaw topic 2: Option 1 to approve the proposed changes to the Bylaw as provided in track changes in Attachment 2;
5. Agrees that, with the exception of the changes proposed in 4 above, no further changes are required to the Policy and Bylaw.

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	12	1	0

The motion was Carried (12 to 1)

Cr Halse requested his vote against be recorded.

5. Closure of Meeting / Te katinga o te Hui

Cr Carol Peters closed the meeting with karakia at 9:41am.

Confirmed this 26th day of September 2024

His Worship the Mayor (Chairperson)

7.1 Temporary Road Closure – Blessing and Opening of a Whare

Meeting: Whangarei District Council

Date of meeting: 26th September 2024

Reporting officer: Lana van Bergenhenegouwen (Community Events Co-ordinator)
 Michael Turner (Economic Development Facilitator)
 Gordon Whyte (CAR Specialist)

1 Purpose / Te Kaupapa

To seek approval of the proposal to temporarily close roads, to allow the Blessing and Opening of a Whare event to be held on date 25 October 2024.

2 Recommendation/s / Whakataunga

That the Council:

1. Approves the temporary closure of the following roads to ordinary traffic for the Blessing and Opening of a Whare event on the following date in accordance with section 342 (1)(b) and Schedule 10 Clause 11 of the Local Government Act 1974.

Friday 25th October 2024

Cameron Street, from corner of John Street and Cameron Street to James Street.

James Street, from Cameron Street to Robert Street.

Period of Closure: 4am to 10am

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 metres from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all the temporary road closures if applicable.

3 Background / Horopaki

Te Hau Āwhiowhio ō Otangarei Trust, a kaupapa Māori organisation dedicated to health and social wellness through a kainga whānau ora approach, is planning the blessing and opening of a new health centre in the Whangarei City Centre. The centre, located at 28 James Street, will provide essential health services to the community, supporting their holistic wellness model. The event will be attended by over 200 people, including Central Government

Ministers, and will involve a traditional blessing performed by local hapu, Te Parawhau. As part of the tikanga, the blessing must take place in front of the building. Alternative locations that do not require a road closure were considered but found unsuitable due to cultural requirements.

4 Discussion / Whakawhiti kōrero

Te Hau Āwhiowhio ō Otangarei Trust has requested a temporary closure of a section of James and Cameron Streets to accommodate the blessing ceremony. Given the expected attendance and the significance of the tikanga requiring the event to occur in front of the building, the road closure will ensure the safety of attendees and facilitate the appropriate cultural observance.

A traffic management plan will be developed and submitted to Council for approval to manage traffic disruptions on the day. This plan will include provisions for pedestrian safety, traffic rerouting, and suitable parking options for attendees. Public communications will be issued prior to the event to inform the community of the closure. Consultation with affected businesses and residents within the closure area will be carried out by event organisers to address any concerns and ensure minimal disruption.

4.1 Risks

As the event could attract over 200 people, closing this section of Cameron/James Street will dramatically reduce the likelihood of a vehicular/pedestrian related incident occurring.

5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via Agenda publication on the website, Council News, Facebook and marketing by the event organisers.

6 Attachments / Ngā Tāpiritanga

1. Application Letter
2. Route Map
3. Insurance Certificate



Te Hau Āwhiowhio ō Otangarei Trust

Tena Koutou Katoa: Whangarei District council Board

Tē tōia, tē haumatia.

Nothing can be achieved without a plan, workforce, and way of doing things.

I hope this letter finds our council well.

I am writing to inform you of our organisations grand opening of our new building, a unique and innovative Hauora clinic in the heart of Whangārei CBD, at **28 James Street on Friday, October 25th, at 5:00am.** The event is a celebration of our achievements and an opportunity to showcase our new facilities.

Our Nurse-led Hauora practice developed by Te Hau Āwhiowhio o Otangarei Trust. With its unique features and innovative design, this clinic represents a significant milestone in our commitment to supporting the WDC growth plan by improving access to social and health services in central Whangārei.

Our Hauora & Service Centre will house over 30 kaimahi across two floors.

Our Hauora clinic, located on the ground floor, includes a triage room, six consult rooms, and a treatment room for our healthcare workers. We have incorporated a spacious whānau-specific consultation room for kōrero with patients and their wider whānau about important diagnoses and treatments, fostering cross-generational communication.

The first-floor houses Allied Health Services, offering complete wrap-around services from one location, making it easier for whānau to receive assistance and support beyond their healthcare needs.

In this spirit of holding space for new initiatives and outlooks, the most exciting aspect of the building is its future design, which will lay new ground for health and social care environments.

Rather than a standard clinical approach to space, we have designed our facility to provide a sense of calm and comfort. Beyond just colour palettes, we have incorporated large imagery of local ngāhere (native bush), low lighting, constellations, and natural birds and insects accompanied by soundscapes from the natural environment.

In short, our facility will be unique to Whangārei, Kaupapa driven, but open to all.

Enrolment will be for new arrivals to the area, and those turned down by providers already at capacity. We are excited to bring a new, innovative resource to central Whangārei

The opening ceremony will feature a tour of the new facilities and a few words from critical stakeholders. We are also planning a light breakfast and an opportunity for informal networking after the formal proceedings.

Our application for the road closure in James Street will ensure Pedestrians will be safe and we minimize interruption to all other business in the vicinity.

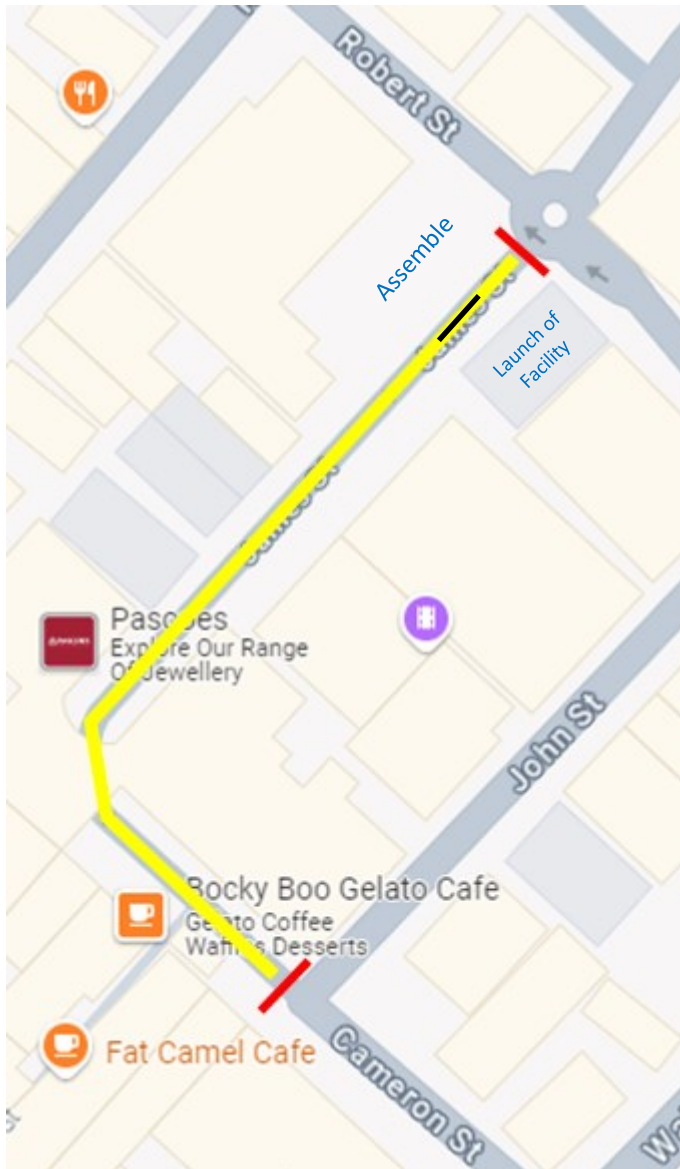
We apologise for the late application however we only just had confirmation for hand over to us by the contractors and we are already a month over our projected opening.

We eagerly await your response. Thank you for considering us,

Nāku noa, nā,



Martin Kaipo
Chief Executive Officer
Te Hau Awhiowhio o Otangarei Trust
kaipo.martin@otangarei.org
0275437090



— CLOSURE POINTS

— SEATING

Thank you for choosing to trust QBE with provision of your insurance protection.

This schedule comprises an important part of your insurance contract with QBE and should be read in conjunction with the policy wording supplied.

Policy Schedule for Te Hau Awhiowhio O Otangarei Trust, Otangarei Papakainga Limited

Broker	Arthur J Gallagher and Co (NZ) Ltd - Whangarei
Broker Address	P O Box 1240, Whangarei 0140
Insured	Te Hau Awhiowhio O Otangarei Trust, Otangarei Papakainga Limited
Period of Insurance	From: 28 February 2024 at 4pm to 28 February 2025 at 4pm
Policy Number	P000078122PUR
Wording	PURPL Combined Liability PUR0116
QBE Line	100%
Association Activities	Health Care Services; Social, housing and community services

Officers Liability

Limit of Indemnity	NZD 500,000	in the aggregate any one Period of Insurance
Defence Costs Limit of Indemnity	NZD 500,000	in the aggregate any one Period of Insurance
Excess	NZD 5,000	each and every Claim, inclusive of Defence Costs (company reimbursement / entity cover only)
Retroactive Date	19 December 2014	
Endorsements	R2127.01 PURPL Associations Liability	

General Liability

Public Liability Limit of Indemnity	NZD 2,000,000	any one Occurrence
Excess	Policy Territory	
NZD 500 any one Occurrence	New Zealand	
Products Liability Limit of Indemnity	NZD 2,000,000	in the aggregate any one Period of Insurance
Excess	Policy Territory	
NZD 500 any one Occurrence	New Zealand	

Endorsements R0717 Property Developers Exclusion
R2055.01 Business Advice or Service Exclusion (PUR)
R2097.01 Policy Territory Limitation (PUR)

Statutory Liability

Limit of Indemnity NZD 1,000,000 in the aggregate any one Period of Insurance

Excess NZD 500 each and every Event, inclusive of Defence Costs, except in respect of claims against individual directors, officers or employees when the Excess is Nil.
NZD 2,500 Health and Safety in Employment Act and the Health and Safety at Work Act
each and every Event, inclusive of Defence Costs, except in respect of claims against individual directors, officers or employees when the Excess is Nil

Retroactive Date 31 December 2004

Employers Liability

Limit of Indemnity NZD 1,000,000 in the aggregate any one Period of Insurance

Excess NZD 500 each and every Claim, inclusive of Defence Costs

Retroactive Date 31 December 2004

Employment Disputes

Limit of Indemnity NZD 250,000 in the aggregate any one Period of Insurance

Excess NZD 5,000 each and every Claim, inclusive of Defence Costs

Retroactive Date 19 December 2014

Crime

Limit of Indemnity NZD 50,000 in the aggregate any one Period of Insurance

Excess NZD 5,000 each and every Loss, inclusive of Defence Costs

Internet Liability

Limit of Indemnity NZD 250,000 in the aggregate any one Period of Insurance

Excess NZD 1,000 each and every Claim, inclusive of Defence Costs

Retroactive Date 19 December 2014

Criminal Defence Legal Costs

Limit of Indemnity NZD 100,000 in the aggregate any one Period of Insurance

Excess NZD 500 each and every Prosecution, inclusive of costs

Retroactive Date Unlimited

Liability Consequential Loss

Limit of Indemnity NZD 100,000 in the aggregate any one Period of Insurance

Professional Indemnity

Not Included

Premium Company Premium: As Agreed

Authorisation and Financial Strength

Issued and signed by QBE's authorised representative



Date 11 March 2024

Financial Strength The table below outlines QBE Insurance (Australia) Limited's insurer financial strength ratings from the major rating agencies that rate QBE Insurance (Australia) Limited.

Rating agency	Entity	Rating
Standard & Poor's	QBE Insurance (Australia) Limited	A+

QBE Insurance (Australia) Limited has been given an "A+" Insurer Financial Strength Rating by Standard & Poor's (Australia) Pty Ltd.

AAA (Extremely strong)	BBB (Good)	CCC (Very Weak)	SD (Selective Default)
AA (Very Strong)	BB (Marginal)	CC (Extremely Weak)	D (Default)
A (Strong)	B (Weak)	NR (Not Rated)	R (Regulatory Action)

Plus (+) or Minus (-); The ratings from "AA" to "CCC" may be modified by the addition of a plus or minus sign to show relative standing within major rating categories.

Credit ratings issued by Standard & Poor's Ratings Services are solely statements of opinion and not statements of fact or recommendations to purchase or discontinue any policy or contract or to buy, hold or sell any security issued by QBE Insurance (Australia) Limited or make any other investment decisions. Credit ratings may be changed, withdrawn or suspended at any time. Latest ratings can be found at www.standardandpoors.com.

An overseas policyholder preference applies to QBE Insurance (Australia) Limited ("QBE"). This means that in the event that QBE is wound up, Australian law requires that its assets in Australia are applied to satisfy its Australian liabilities, before those assets can be applied to satisfy overseas liabilities, which would include claims by policyholders in New Zealand. However, QBE is required to hold capital which meets minimum regulatory capital requirements.

THE ABOVE TERMS FOR POLICY P000078122PUR ARE SUBJECT TO THE FOLLOWING ENDORSEMENTS:

General Liability

R0717 Property Developers Exclusion

Property Developers Exclusion

QBE shall not indemnify the Insured for any claim in respect of or alleging Personal Injury or Property Damage arising out of the use, preparation or approval of maps, plans, designs, specifications, engineering or survey reports or any reports of a building or planning nature by or on behalf of the Insured or any Project Management Services by the Insured.

"Project Management Services" means the provision of design consultancy or project co-ordination services for construction or development projects where:

1. those services are rendered for a fee; and
2. those services fall within the Business of the Insured.

R2055.01 Business Advice or Service Exclusion (PUR)

Business Advice or Service Exclusion

Automatic Extension 'Business advice or service' is deleted.

R2097.01 Policy Territory Limitation (PUR)

Policy Territory Limitation

It is hereby declared and agreed, notwithstanding anything contained in the Policy to the contrary, the Policy Territory in respect of Section 2 (General Liability) is amended to New Zealand only.

Directors and Company Liability

R2127.01 PURPL Associations Liability

Associations Liability

INSURING CLAUSE AMENDMENT

Complimentary Legal Advice Extension

General Insuring Clause 2 (Complimentary Legal Advice) is extended to include Section 5 (Employers Liability).

DEFINITIONS

Company Definition

Definition 10 (Company) is extended to include the Association named in the Schedule.

Association Definition

'Association' means the entity specified in the Schedule as the Insured including any Subsidiary.

Employee Extension

Definition 24 (Employee) is extended to include any person employed by the Association under a contract of service on a voluntary basis.

Employment Breach Amendment

Definition 26 (Employment Breach) is amended by deleting the words 'in breach of the law' from 'actual or constructive termination of the contract of service in breach of the law'.

7.2 Temporary Road Closure – Whangarei Christmas Parade 2024

Meeting: Whangarei District Council

Date of meeting: 26th September 2024

Reporting officer: Lana van Bergenhenegouwen (Community Events Co-ordinator)
 Gordon Whyte (CAR Specialist) & Brendon Tong (ITS Signals).

1 Purpose / Te Kaupapa

To seek approval of the proposal to temporarily close roads, to allow Whangarei Christmas Parade Committee to hold the Whangarei Christmas Parade 2024 on 30 November 2024.

2 Recommendations / Whakataunga

That the Council:

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the Whangarei Christmas Parade 2024 on the following date in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965, subject to event organisers providing proof of public liability insurance to the Chair of the Infrastructure Committee and GM Infrastructure by no later than 30 October 2024.

Saturday 30 November 2024

Alexander Street, from University Campus to Rust Ave intersection.

Period of Closure: 7:30am to 12 noon.

Rust Avenue, from Whangarei Intermediate Pedestrian Crossing to Bank Street Intersection.

Bank Street, from Dent St roundabout down to Water St/Vine St intersection (including Hunt Street and Bank Street intersections).

Cameron Street West, from Bank Street intersection to Cameron Street Mall.

Period of Closure: 10am to 12 noon.

Rathbone Street, from Cameron Street West to Laurie Hall Lane (including Butter Factory Lane intersection).

Robert Street, from Rathbone/Robert Street intersection to Walton Street (includes Rathbone/Robert Street intersection, James/Robert Street roundabout and John/Robert Street roundabout).

Period of Closure: 10am to 1pm.

John Street, from John Street Service Lane to Cameron Street East (includes John Street Service Lane).

Period of Closure: 10am to 2pm.

Cameron Street East, from Walton Street to Cameron Street Mall.

James Street, from Cameron Street Mall to Dent Street.

Period of Closure: 7:30am to 2pm.

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 metres from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all the temporary road closures if applicable.

3 Background / Horopaki

In 2020, the combined Lions and Rotary Clubs of Whangarei held the first Whangarei Christmas Parade that replaced the historical Kamo Christmas Parade and the Onerahi Christmas Parade. These individual parades are no longer sustainable due to costs around traffic management and the number of volunteers required to run each event separately.

This year the Whangarei Christmas Parade will be run by the Whangarei Christmas Parade Committee.

The Committees aim of finishing in the CBD's Laneway/Cameron Street Mall area is the hope that it enlivens the central city attracting public to the area. The Whangarei Christmas Parade has historically been a well-loved and supported community event.

4 Discussion / Whakawhiti kōrero

Due to Police feedback the original parade route had to been changed/amended, Police have already been consulted regarding the new parade route and have given their approval.

The organisers will consult with all affected businesses in the areas well in advance. The marketing and promotion of the event will also ensure the public and the wider community are aware of the event and the associated road closures.

The Organisers have been working with Whangarei District Council Transportation and Venues & Events departments to ensure regulatory compliance is met.

The organisers will engage with a Traffic Management provider to submit a traffic management plan to council prior to the event and implement traffic management on the day.

The organisers have years of experience planning and running individual events and will bring their knowledge and experience to the planning and implementation of this event.

An operational plan has been prepared by the council Transportation team to manage and control risks to ensure public safety and limit impact.

The intent of the operations plan is to ensure that areas of the road closure can be cleared as soon as they are no longer required. The methodology of the plan involves manually controlling the traffic signals along the parade route within the closure so that roads are only closed as long as they need to be, and road closures can be lifted as soon as the parade passes.

4.1 Risks

The temporary road closures eliminate the traffic associated risks and helps to ensure the event can be managed safely.

The operations plan considers controls to back up the temporary road closures and ensure the parade moves through the CBD with a minimum delay.

Event personnel and traffic controllers are located along the parade route and will be on hand throughout the parade to ensure safety of participants and spectators.

5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via Agenda publication on the website, Council News, Facebook and marketing by the event organisers.

6 Attachments / Ngā Tāpiritanga

1. Application Letter
2. Route Map
3. Public Liability Insurance Letter



August 2024

Whangarei District Council
Rust Ave
Whangarei

To Whom It May Concern

We are requesting temporary road closures to hold the Whangarei Santa Parade in the CBD. This event came about in 2020 when the Kamo and Onerahi Parades were no longer viable due to closing main highways.

The Santa Parade is a Community Event for half a day. It is a free, fun event for everyone to enjoy and bring the community together and also bring people back into the CBD to celebrate Christmas and support our local businesses.

The event is not a profit making event, it is free to the community and we hope to be able to get enough support and sponsorship to make it happen.

Kind regards

The Christmas Parade Committe
Sue Hill – Rotary Club of Whangarei South
Kelly Jelavich – Hikurangi Lions
Natasha Judd



28 August 2024

Whangarei District Council
Rust Ave
WHANGAREI

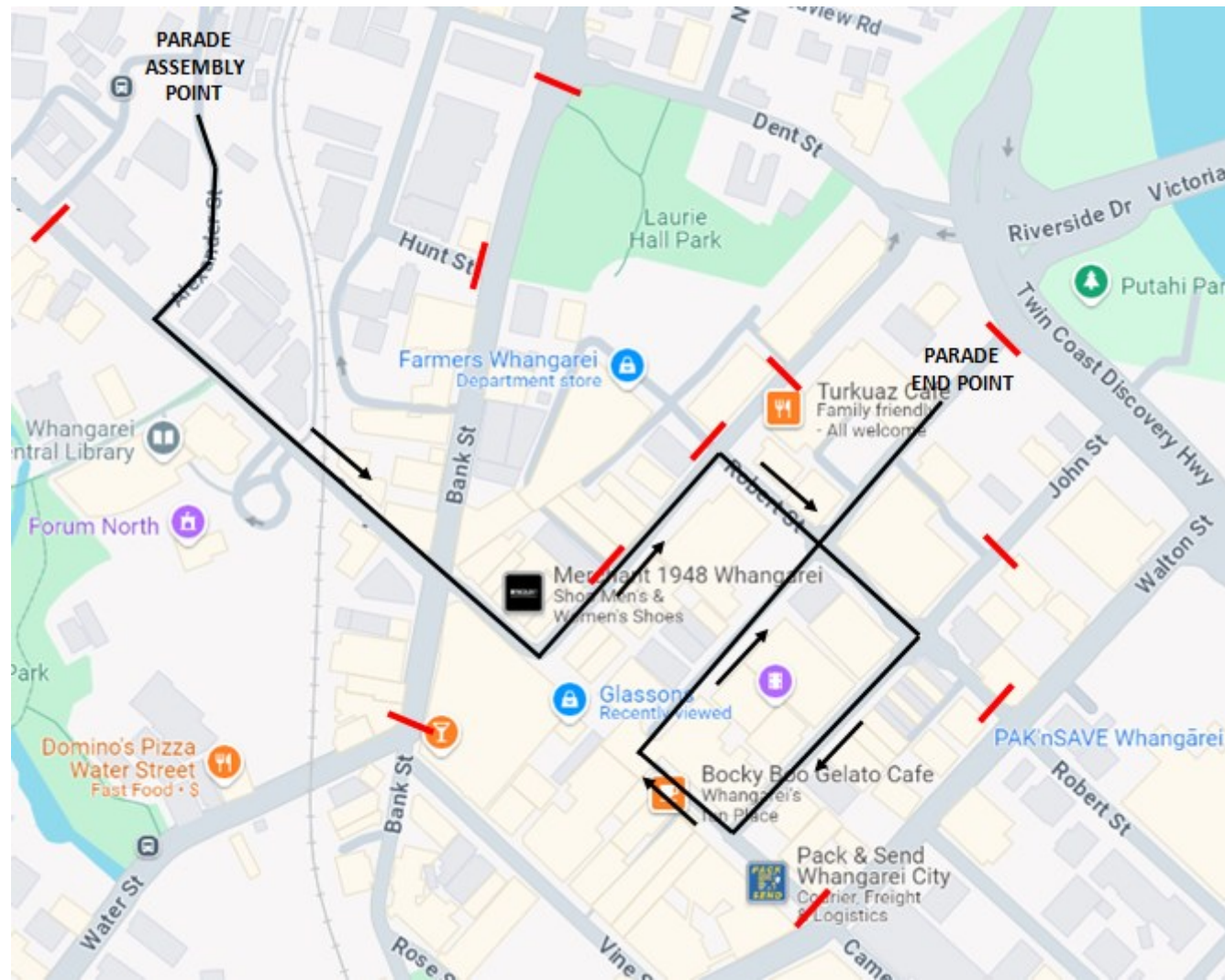
To Whom It May Concern

The Christmas Parade Committee is currently seeking PI Insurance to cover the 2024 Whangarei Santa Parade.

We undertaken to have this in place and forward a copy as soon as possible. We understand that if this is not provided that the parade will not be able to go ahead.

Kind regards

The Whangarei Christmas Parade Committee
Sue Hill
Kelly Jelavich
Natasha Judd



— CLOSURE POINTS

— PARADE ROUTE

7.3 Dog Management Policy and Dog Control Bylaw – Adoption

Meeting: Whangarei District Council
Date of meeting: 26 September 2024
Reporting officer: Will McNab (Strategic Planner – Bylaws)

1 Purpose / Te Kaupapa

To amend the Dog Management Policy and make the Dog Control Bylaw 2024.

2 Recommendations / Whakataunga

That Council:

1. Amends the Dog Management Policy, as provided in Attachment 1, with effect from 28 October 2024;
2. Determines that the proposed Dog Control Bylaw 2024 (Attachment 2)—
 - a. is the most appropriate form of bylaw; and
 - b. does not give rise to any implications under, and is not inconsistent with, the New Zealand Bill of Rights Act 1990.
3. Revokes the Dog Management Bylaw 2013 and makes the Dog Control Bylaw 2024 with effect from 28 October 2024;
4. Delegates to the Chief Executive all its responsibilities, duties and powers under the Dog Control Bylaw 2024, except—
 - a. the power to set fees;
 - b. the power to make a decision for which a Council resolution is required;
 - c. the power to hear and decide on any appeal process.
5. Authorises the Chief Executive to make any minor edits or amendments to the Dog Management Policy and the Dog Control Bylaw 2024 to correct any spelling or typographical errors and/or to reflect decisions made by Council at this meeting.

3 Background / Horopaki

Council began reviewing the existing Dog Management Policy and Dog Management Bylaw in early 2023. The public and key stakeholders were invited to give their views during two separate rounds of engagement.

First, early engagement in mid-2023 sought feedback on the existing rules. This feedback then informed new rules, which were developed into a new draft Dog Management Policy (the Policy) and Dog Control Bylaw (the Bylaw) across a series of Council briefings.¹

Second, Council consulted with the public on the proposed Policy and Bylaw, as required under section 83 of the Local Government Act 2002 (LGA), during May and June 2024.² A hearing was held on 3 July 2024 in Council Chambers, where 21 speakers presented their views in person. At the close of the consultation period, the proposal had received 804 items of feedback.³

At a Council Briefing on 23 July 2024, Elected Members provided direction on several of the salient issues that arose during the consultation period.⁴ Council then confirmed that direction at a meeting on 28 August 2024 to deliberate on feedback received on the proposal.⁵ At that meeting, Council approved changes to the dog access rules consulted on in seven different locations. It also approved new wording under clause 12 of the Policy and under clause 6 of the Bylaw.

4 Discussion / Whakawhiti kōrero

4.1 The proposed Bylaw is the most appropriate form of bylaw

The Bylaw is consistent with the Dog Control Act 1996 and the Local Government Act 2002. It is authorised and is not repugnant with respect to any other legislation. It is also consistent with and gives effect to the Policy.

The drafting is clear and reflects modern best practice. Crucially, the Bylaw is enforceable.

4.2 The proposed Bylaw is consistent with the New Zealand Bill of Rights Act 1990

The proposed Bylaw is not inconsistent with the New Zealand Bill of Rights Act 1990. There are potential limitations to the freedom of movement of dog owners when accompanied by their dog. Staff consider that this limitation is justifiable for the following reasons:

- It protects the safety of children and minimises conflict between dogs and other people;
- Access to public places is restricted only for dogs, not their owners;
- The Dog Control Act 1996 provides exemptions for people who depend on disability assist dogs.

The final Policy will include some new related information, including new maps and an updated list of controlled and open dog areas on land administered by the Department of Conservation, as required by section 10(5)(a) of the Dog Control Act 1996.

¹ See agenda report for the Council Briefing on 29 November 2023 here: <https://pub-wdc.escribemeetings.com/FileStream.ashx?DocumentId=3718>. The report for the Briefing on 8 February 2024 is available here: <https://pub-wdc.escribemeetings.com/FileStream.ashx?DocumentId=3779>.

² See agenda report for the Council Meeting on 24 April 2024 here: <https://pub-wdc.escribemeetings.com/FileStream.ashx?DocumentId=3942>.

³ See agenda report for the Hearing here: <https://pub-wdc.escribemeetings.com/FileStream.ashx?DocumentId=4076>. The report contains the full record of submissions received on the proposal during the consultation period.

⁴ See agenda report for the Council Briefing on 23 July 2024 here: <https://pub-wdc.escribemeetings.com/FileStream.ashx?DocumentId=4126>.

⁵ See agenda report here: <https://pub-wdc.escribemeetings.com/FileStream.ashx?DocumentId=4172>.

Under the new Policy and Bylaw, the authority will be delegated to the Chief Executive to declare temporary dog access rules to respond in a timely manner to unforeseen circumstances.

The new Policy and Bylaw will be required to be reviewed again in 2029.

4.3 Financial/budget considerations

Staff estimate that new signage to implement the new dog access rules will cost in the vicinity of \$10,000 to \$15,000. These costs will be met by the existing budget of the Health and Bylaws department.

4.4 Policy and planning implications

Nothing in the Policy or Bylaw is inconsistent with other Council policies, plans or strategies.

4.5 Options

Council may either—

Option 1: accept the recommendations in this report and amend the Policy and make the Bylaw; or

Option 2: request that staff review their recommendations.

Staff recommend Option 1.

4.6 Risks

The operative Dog Management Bylaw 2013 is set to expire in March 2025. If Council does not make a new bylaw before that date, it will no longer have the means to enforce the Policy.

5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this agenda report do not trigger the significance criteria outlined in Council's Significance and Engagement Policy. The public will be informed via publication of this report on Council's website and via a news story announcing the new rules.

Council has consulted with the community on the proposed Policy and Bylaw following the requirements of section 83 of the Local Government Act 2002 (LGA). The community was notified of the consultation via public notice in print media, social media and a Council News story. In addition, staff sent notification of the proposal to all dog owners in Council's dogs register, as required by section 10(2) of the Dog Control Act 1996. The Have Your Say webpage went live on 1 May 2024. Written submissions were invited through multiple channels until 14 June 2024. A hearing in Council Chambers met the specific requirement under section 83(1)(d) of the LGA for Council to offer the opportunity for spoken interaction with submitters.

6 Attachments / Ngā Tāpiritanga

Attachment 1 - Proposed Amended Dog Management Policy

Attachment 2 - Proposed Dog Control Bylaw 2024

Whangarei District Council

Dog Management Policy

draft

Table of contents

Introduction.....	3
Registration and enforcement	8
Responsible dog ownership	11
Dog access rules.....	12
Schedule 1.....	14
Schedule 2.....	15

Introduction

1. Purpose

- 1.1. To provide for the needs of dogs and their owners in a way that also protects the community and wildlife.
- 1.2. To achieve this purpose, the Policy aims to:
 - a. minimise the problems caused by dogs; and
 - b. protect dogs from harm and ensure their welfare; and
 - c. provide opportunities for owners to take their dogs into public places.

2. Interpretation

- 2.1. Any word used in this Policy that is not included in clause 2.2 below and which is defined in section 2 of the Dog Control Act 1996, has for the purposes of this Policy, the same meaning as in section 2 of the Act.

- 2.2. In this Policy, unless the context otherwise requires —

Access way	has the meaning given by section 315 of the Local Government Act 1974 .
Act	means the Dog Control Act 1996 .
Authorised Officer	means a Whangarei District Council staff member or a Council authorised contractor in charge of a public place.
Beach	means and includes the following: d. the foreshore as defined by section 2 of the Resource Management Act 1991 e. the inter-tidal zone above mean low water springs f. any adjacent area that can reasonably be considered part of the beach environment including areas of sand, pebbles, shingle, dunes or coastal vegetation and includes the adjacent coastal marine.
Bylaw	Means the Whangarei District Council Dog Control Bylaw 2024.
Cemetery	means any land or premises for the burial and/or cremation of the dead and includes a closed cemetery and urupā.
Control	in relation to a dog, means that the owner is able to obtain an immediate and desired response from the dog.
Council	means Whangarei District Council, including any person or committee delegated to act on its behalf in relation to this Policy.
Council-controlled public place	means all public places owned or managed by Whangarei District Council.
District	Means the area administered by Council as defined in Part 2 of Schedule 2 of the Local Government Act 2002
Dangerous dog	means a dog that has been classified as a dangerous dog under section 31 of the Act.
Footpath	has the meaning given by section 315 of the Local Government Act 1974 .

Foreshore	has the meaning given by section 2 of the Resource Management Act 1991 .
Menacing dog	means a dog that has been classified as a menacing dog under section 33A of the Act.
Neutered dog	has the meaning given by section 2 of the Act.
Owner	has the meaning given by section 2 of the Act.
Park/Reserve	means any land vested in or administered by Council under the provisions of the Reserves Act 1977 ; and/or any park, domain or recreational area under the control or ownership of Council.
Playground	means a developed outdoor area that contains children's play equipment or objects, and includes a skatepark.
Policy	means this policy, being the Whangarei District Council Dog Management Policy 2024.
Premise and Premises	means any land, dwelling, storehouse, warehouse, shop, cellar, yard, building, or part of the same, or enclosed space separately occupied. All lands, buildings and places adjoining each other and occupied together are deemed to be the same premises.
Private way	has the meaning given by section 315 of the Local Government Act 1974 .
Public place	has the meaning given by section 2 the Act.
Road	has the meaning given by section 315 of the Local Government Act 1974 except that where a road is adjacent to a park, and the land within the road and park is developed in an integrated way, the common boundary between the road and park will be reduced or extended to: g. a line parallel to the road that follows any physical separation between the road and park (e.g. fence or bollards); or h. where no physical separation exists, a line parallel to the road that follows the edge of the road carriageway, footpath or cycle track that is closest to the centre of the park.
Sports field	means any area developed or marked out, for example those used for soccer, rugby, or rugby league, artificial turf, sports range, sports park or velodrome.
Skatepark	means a purpose-built recreational environment made for skateboarding, BMXing, rollerblading, roller skating or scootering, and includes pump tracks.
Service lane	has the meaning given by section 315 of the Local Government Act 1974 .
Working dog	has the meaning given by section 2 of the Act.

3. Related information

- 3.1. **Related information** and links to webpages do not form part of this Policy and may be inserted, changed or removed without any formality.

4. Relationship between the Policy and the Bylaw

- 4.1. Under the Dog Control Act 1996 (the Act), Council is required to develop a Policy on Dogs (the Policy) and may make a bylaw (the Bylaw) to implement the Policy. A bylaw cannot be inconsistent with a policy. Dog owners who do not comply with the Act or the Bylaw may be subject to enforcement action.

The broad purpose of the Act is to:

- a. provide for the care and control of dogs; and
- b. address issues relating to damage caused by dogs.

The purpose of the Policy and Bylaw is to provide for matters specified in the Act that must be included, as well as a range of additional matters that Council may include if deemed necessary or appropriate.

The Policy and Bylaw do not duplicate any provisions of the Act, but align with it to provide a comprehensive framework of rules for the District.

However, to assist in understanding, this Policy contains related information and links to webpages regarding relevant provisions of the Act or to assist in other ways. This information does not form part of this Policy and may be inserted, changed or removed without any formality.

The approaches and requirements of the Policy and Bylaw can be summarised as follows:

Document	Purpose	What the document covers
Dog Management Policy	Required to have regard to: • minimising danger, distress and nuisance • restricting uncontrolled access to public places that are frequented by children • the use of streets and public amenities without fear of attack or intimidation by dogs • the exercise and recreational needs of dogs and their owners.	• Nature and application of the Bylaw. • Fees and charges relating to dogs. • General dog access rules, including default dog access rules. • Specific areas where dogs are prohibited, either at all times or during specific dates and times. • Specific areas where dogs must be on-leash, either at all times or during specific dates and times. • Specific areas where dogs are allowed off-leash. • Specific designated dog exercise areas. • Requirements for menacing dogs. • Council's and dog owners' obligations.

Dog Control Bylaw	To provide adequate opportunities to fulfil the exercise, recreational and socialisation needs of dogs and their owners while minimising any danger, distress or nuisance caused by dogs.	• Clauses to give effect to the dog access rules contained in the Policy for enforcement purposes. • Temporary changes to the dog access rules. • Requirements to pick up dog faeces. • Rules for dogs on heat and dogs with infectious diseases. • Requirements to neuter uncontrolled dogs. • Requests to review a menacing dog classification. • Enforcement, offences and penalties.
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Related information about the Dog Management Policy

Section 10(5)(a) of the Act requires Council to identify any land within the District that is included in a controlled dog area or open dog area under section 26SZ of the Conservation Act 1987.

This relates to land that is under the control of the Department of Conservation and where the Department has by gazette notice declared the land to be a controlled dog area or an open dog area. This information is provided in Appendix 1 of this Policy.

5. Fees and charges relating to dogs

- 5.1. Section [37](#) of the Act sets out what matters Council may set fees for in relation to its dog control activities. Council's fees and charges are reviewed through the Long Term Plan and Annual Plan processes under the [Local Government Act 2002](#).
- 5.2. Dog registration fees will be set through the processes detailed in clause 5.1 and in accordance with the following provisions—
 - a. fees for neutered dogs will be set at a lower rate than the standard registration fee:
 - b. fees for working dogs (excluding disability assist dogs) will be set at a lower rate than the standard registration fee:
 - c. fees for disability assist dogs as defined in [Schedule 5](#) of the Act will not be charged:
 - d. fees for the first registration of puppies will be charged on a pro-rata monthly rate.

Related information about fees and charges for dogs

Section [32](#) of the Act requires fees for dangerous dogs to be set at 150% of the standard dog registration fee.

Registration and enforcement

6. What will Whangarei District Council do?

- 6.1. Council will provide registration administration services including—
 - a. maintaining a record of all dogs registered in the District, including those classified as dangerous or menacing;
 - b. maintaining a record of probationary and disqualified owners;
 - c. informing and educating dog owners through the registration process;
 - d. following up on non-registered dogs and non-compliance with the Bylaw or the Act.
- 6.2. Council will provide dog compliance and enforcement activities to proactively use Council's powers under the Act to—
 - a. seize and hold dogs that are a threat to public safety or where concerns regarding a dog's welfare are identified;
 - b. classify dogs identified as menacing or dangerous as defined in the Act;
 - c. classify and disqualify owners as necessary by applying the processes set by sections [21](#) and [25](#) of the Act;
 - d. provide services that promote responsible dog management, including but not limited to investigating and resolving dog-related issues.

Related information on dangerous dogs

In accordance with Sections [31](#) and [57A](#) of the Act, Council must classify a dog as dangerous where —

- a. the owner of the dog has been convicted of an offence because the dog rushed at or startled any person, animal or vehicle in a manner that caused, or was likely to cause a vehicle accident or to endanger, injure or kill a person; or
- b. the dog is considered on reasonable grounds to be a threat to the safety of any person, stock, poultry, domestic animal or protected wildlife, based on sworn evidence of aggressive behaviour; or
- c. the owner admits in writing that the dog poses a threat to the safety of any person, stock, poultry, domestic animal or protected wildlife.

When a dog is classified as dangerous—

- a. ownership of the dog cannot change without consent from Council;
- b. the dog maintains its classification no matter where it lives in New Zealand;
- c. the dog must be:
 - i. neutered within one month of receipt of the classification; and
 - ii. microchipped within two months of the date of classification; and
 - iii. muzzled in any public place or private way except when confined in a vehicle or cage; and
 - iv. kept within a securely fenced portion of the dog owner's property that provides dog-free access to at least one door of all dwellings on the property; and
 - v. controlled on a leash in any public place or private way (except when in a designated dog exercise area).

Dog owners that fail to comply with the above requirements may be subject to a fine under the Act.

Regulation 12 of the [Animal Welfare \(Care and Procedures\) Regulations 2018](#) includes provisions for the safe use of muzzles. Failure to comply with the regulation is an offence.

7. What does Whangarei District Council expect of dog owners?

- 7.1. Dog owners are expected to—
- register their dog(s); and
 - microchip their dog(s); and
 - neuter their dog(s) if required; and
 - meet the requirements of dogs classified as dangerous or menacing under the Act ([section 32](#) and [section 33E](#)); and
 - meet the requirements of a classified, probationary or disqualified owner under the Act ([section 21](#) and [section 25](#)).

8. Classification of menacing dogs under Section 33C of the Act

- 8.1. Due to the visual similarities between American Staffordshire Terriers and Pitbull Terriers, Council will classify all American Staffordshire Terriers as menacing, unless—
- the owner provides a certificate of ownership issued by Dogs New Zealand which indicates the dog's pedigree and has the dog's microchip number recorded on the certificate; or
 - the owner provides a DNA certificate indicating that American Staffordshire Terrier is the predominant or largest percentage of the breed makeup.

Related information about American Staffordshire Terriers

The Act requires all dogs of the breeds or types listed in Schedule 4 of the Act to be classified as menacing. [Schedule 4](#), Part 2 lists the American Pitbull Terrier as a type of dog. It is generally accepted that the visual characteristics of an American Staffordshire Terrier are similar to that of an American Pitbull Terrier.

9. Neutering of Menacing Dogs

- 9.1. Council requires all dogs that have been classified as menacing to be neutered within one month of receipt of the classification.
- 9.2. A dog classified as menacing maintains its classification no matter where it lives in New Zealand. The requirements of clause 9 apply to dogs classified by any other council and registered with Whangarei District Council.
- 9.3. Council may defer the requirement to meet clause 9.1 above—
- in accordance with section [33E\(1\)\(b\)\(ii\)](#) of the Act;
 - where the owner of the dog classified as menacing lodges an objection in accordance with the requirements of the Act. If Council decides to retain the menacing classification, the dog must be neutered within one month of receipt of this decision;
 - where additional enforcement actions or proceedings are being taken by Council against the owner of the dog because of the actions that resulted in the classification being made under section 33A(1) of the Act. Council reserves the right to request a menacing dog to be neutered on the completion of any such proceedings and within one month of Council notifying the dog owner of this request.

Related information on menacing dogs

Council must classify a dog as menacing where—

- a. it has not been classified as dangerous; and
- b. the dog may pose a threat to the safety of any person, stock, poultry, domestic animal or protected wildlife, because of—
 - i. any observed or reported behaviour of the dog;
 - ii. any characteristics typically associated with the dog's breed or type;
 - iii. if the dog belongs wholly or predominantly to one or more of the breeds or types listed in [Schedule 4](#) of the Dog Control Act 1996.

The owner of a dog classified as menacing must ensure the dog is—

- a. neutered within one month of receipt of the classification; and
- b. microchipped within two months of the date of the classification; and
- c. muzzled in any public place or private way except when confined in a vehicle or cage.

Dog owners that fail to comply with the above classification requirements may be subject to a fine under the Dog Control Act 1996.

Regulation 12 of the [Animal Welfare \(Care and Procedures\) Regulations 2018](#) includes provisions for the safe use of muzzles. Failure to comply with the regulation is an offence.

10. What is covered by the Dog Control Bylaw 2024?

- 10.1. Owners of dogs classified as menacing due to the behaviour of the dog are encouraged to undertake steps to improve the behaviour of the dog to be eligible to have the classification of the dog reviewed.

Responsible dog ownership

11. What will Whangarei District Council do?

- 11.1. Council will provide services that support the promotion of responsible dog management, including—
- a. encouraging educational opportunities to promote the purposes of the Policy and Bylaw from time to time;
 - c. promoting the welfare of dogs, as stated in the [Code of Welfare: Dogs, the Animal Welfare \(Care and Procedures\) Regulations 2018](#) and [Animal Welfare Act 1999](#). This includes, but is not limited to, providing sufficient food, water, shelter and care;
 - d. providing services that promote responsible dog management, including investigating and resolving complaints and other dog-related issues;
 - e. working to change attitudes and behaviours of irresponsible dog owners and, where appropriate, penalising irresponsible dog owners.

Related information about the Code of Welfare: Dogs, the Animal Welfare (Care and Procedures) Regulations 2018 and the Animal Welfare Act 1999

The Ministry of Primary Industries is responsible for administering the Animal Welfare Act 1999 and the associated Regulations and Codes.

The Code of Welfare: Dogs establishes minimum standards for the care and management of dogs. There are also housing requirements under the Regulations specific to dogs.

While not directly enforceable, failure to meet a relevant minimum standard in the Code of Welfare: Dogs may be used as evidence to support prosecution under the Animal Welfare Act 1999.

12. What does Whangarei District Council expect of dog owners?

- 12.1. Dog owners are expected to—
- a. know and comply with the rules concerning the management of their dog(s); and
 - b. be responsible for their dog's behaviour; and
 - c. provide proper care and attention to their dog(s), including providing sufficient food, water, shelter and adequate exercise, as defined by the [Animal Welfare Act 1999](#) and Act; and
 - d. consider neutering their dog(s) as early as possible under guidance from a vet; and
 - e. ensure their dog does not leave their property by itself; and
 - f. take all reasonable steps to ensure their dog does not cause a nuisance to any other person. Be particularly vigilant near children and closely supervise interaction; and
 - g. appropriately remove and dispose of their dog's faeces; and
 - h. always keep their dog under control.

13. What is covered by the Dog Control Bylaw 2024?

- 13.1. When in a public place or premises, dog owners must ensure the immediate removal and disposal of their dog's faeces in a way that does not cause nuisance.
- 13.2. Dog owners may be required to neuter their dog, if the dog has been found to be uncontrolled more than once in a 12-month period.

Related information about Bylaw breaches

Owners who do not comply with the above are in breach of the Bylaw and may be subject to enforcement action.

Dog access rules

14. What will Whangarei District Council do?

- 14.1. Council will provide dog access rules in the Bylaw that are comprehensive, consistent, easy to understand and comply with the following dog access principles:
 - a. recognise dog owners as legitimate users of public places and that dog access to these places is essential for dog welfare:
 - b. integrate, where practicable, dog owners and their dogs with other users of public places:
 - c. provide opportunities for dog owners to take their dog(s) to public places that are accessible, desirable, and provide diversity of experience for both the dog and owner:
 - d. promote safe interaction between dogs and people using public places to ensure that dogs do not injure, endanger, intimidate or otherwise cause distress to any person, in particular children and vulnerable adults:
 - e. manage conflict between dogs and protected wildlife, native flora, livestock, poultry, domestic animals and property.
- 14.2. When making decisions regarding any changes to a dog access rule on parks or beaches, Council will consider the matters provided in 14.1 above.
- 14.3. Council will provide information to dog owners via signage and Council's website that is comprehensive, easy to understand, and up to date.
- 14.4. Council will maintain rules on dog access in public places and private ways as per Schedules 1 and 2 of this Policy.
 The types of dog access rules provided in Schedules 1 and 2 are—
 - a. default dog access rules, to ensure there is a rule applied to all public places in the District where the rules provided in (b) to (f) below, and as detailed in Schedule 2, do not apply:
 - b. on-leash: a place shared with other users, where dogs must be on a leash and under control at all times:
 - c. prohibited: a place where dogs are not permitted to be, and other users have priority:
 - d. off-leash: a place shared with other users, where dogs may be off a leash but must still be under control at all times:
 - e. designated dog exercise area: a place where dog owners are the priority user. Dog owners may take their dogs off a leash, including dangerous dogs, but they must be under control at all times:
 - f. summer season rules: a place shared with other users where the dog access rules will be different depending on the time of day during the summer season. This is to minimise the conflict between dogs and other users of the space during peak hours.
- 14.5. From time to time, Council may make temporary changes to the dog access rules in Schedules 1 and 2 in relation to—
 - a. leisure and cultural events (including dog friendly events):
 - b. the protection of wildlife vulnerable to dogs:
 - c. the protection of flora vulnerable to dogs:
 - d. pest control in any park and/or beach:
 - e. other circumstances of a similar nature.

15. What does Whangarei District Council expect of dog owners?

- 15.1. Dog owners are expected to—
- a. respect other people's personal space and be aware that public places are for everyone's enjoyment and not everyone is fond of dogs; and
 - b. know when their dog must be on a leash and always carry a leash in public; and
 - c. keep their dog under control at all times in public places, including putting their dog on a shortened leash, even in off-leash areas if their dog is likely to ignore their commands; and
 - d. make reasonable efforts to determine and comply with the dog access rule that applies at a park or on a beach before taking their dog(s) into the area; and
 - e. ensure any female dog in season or a dog with a contagious disease does not enter or remain in any public place unless—
 - i. the dog is confined in a vehicle or cage for the purposes of transportation; or
 - ii. the owner of the dog has the permission of the occupier or person controlling the public place and complies with any reasonable conditions imposed.

16. What is covered by the Dog Control Bylaw 2024?

- 16.1. Owners must exercise their dog(s) in locations and/or ways that are consistent with the dog access rules. This includes ensuring their dog is under control on-leash, off-leash or in a designated dog exercise area as specified.
- 16.2. Dog owners must ensure that their dog is kept under control in public places and private ways.
- 16.3. The ability to make temporary changes to dog access rules.
- 16.4. Exemptions for working dogs from being prohibited in any areas.

Related information about Bylaw breaches

Owners who do not comply with the above are in breach of the Bylaw and may be subject to enforcement action.

Schedule 1

1. General dog access rules

The general dog access rules listed in Schedule 1 always apply, regardless of any rule stated in Schedule 2.

For example, if a park is listed as an off-leash area in Schedule 2 but the park has a playground, dogs are still prohibited on the playground.

Playgrounds and skateparks under the control of Council

Dogs are prohibited on all playgrounds and skateparks at all times and must be under control on a leash in the vicinity of all playgrounds and skateparks.

Sports fields under the control of Council

Dogs are prohibited on all sports fields at all times and must be kept under control on a leash in the vicinity of any sports field.

Council cemeteries

Dogs are **prohibited** from all Council-controlled cemeteries, unless:

- a. permission is obtained from an Authorised Officer; or
- b. signage indicates dogs are allowed, provided that the person who is accompanying the dog complies with any reasonable conditions imposed by Council in relation to the dog.

2. Default dog access rules

Unless otherwise stated in Schedule 2, the following default rules apply:

- 2.1 Dogs must be **under control on a leash** in all Council-controlled public places where there are no physical restrictions to access (such as fences or other indoor facilities). This includes:
 - a. all formed public roads (including any street, highway, access way, service lane, and any footpath, cycle track, shared path, bus stop and berm within the boundaries of the road);
 - b. private ways;
 - c. Council-controlled car parks;
 - d. Council-controlled boating areas (including any wharf, jetty, boat ramp or boat marshalling area).
- 2.2 Dogs are **prohibited** in all Council-controlled public places with restricted access (such as fenced sports stadiums and libraries), unless:
 - a. permission is obtained from an Authorised Officer; or
 - b. there is official Council signage which indicates dogs are permitted.
- 2.3 Where dog access is permitted under 2.2, dog owners must comply with any reasonable conditions imposed in relation to their dog(s).
- 2.4 Dogs are prohibited in all Council-controlled water supply or stormwater treatment areas that are generally accessible to the public unless there is official Council signage which indicates dogs are permitted.
- 2.5 Dogs must be under control on a leash in all other public places not under the control of Council (such as cafes, shopping malls, school grounds, non-Council cemeteries and urupā), unless:
 - a. there is signage indicating that dogs are prohibited; or
 - b. the person in charge of the place states that dogs are prohibited and requests the dog to be removed.
- 2.6 The summer season rule that applies to any area specified in Schedule 2 is:
 - a. Time: 9am to 5pm.
 - b. Season: 20 December to 31 January.

Schedule 2

Location specific dog access rules

Related information about Schedule 2

To assist in understanding, maps have been provided as [related information](#) for some of the areas listed in the following sections. In each case a map reference number is provided. The maps can be found at the end of Schedule 2.

1. Dogs are allowed under control off a leash in designated dog exercise areas

The following areas are designated dog exercise areas:

Area	Location
William Fraser Memorial Park on Pohe Island	Fenced area southeast of David Culham Drive
William Fraser Memorial Park on Pohe Island	Fenced area opposite carpark off Pohe Island Road

2. Dogs are allowed under control on a leash

- 2.1 The default rule on-leash rule in **Schedule 1** applies to all parks and reserves in the District unless a different rule, either for the entire park or a section of the park, is provided for in Schedule 2.

However, to assist in understanding, the list below of key parks and reserves in the District is provided as [related information](#), but does not constitute the complete list of parks and reserves where dogs must be on a leash. This list may be updated at any time without formality.

Related information			
Location	Appendix 1 Map #	Location	Appendix 1 Map #
Abbey Caves		<i>Mair Park - all areas not listed elsewhere in Schedule 2</i>	
Albany Road Reserve		Marina Reserve Tutukaka	
<i>Barge Park – all areas not listed elsewhere in Schedule 2</i>		Nixon Street Park	
Biller Road Walkway		Otangarei Central Reserve	
Cafler Park		Panorama Drive Reserve	
Cookson Park		Potter Park	
Fishbone Park		Puriri Park Reserve	
Fitzpatrick Reserve		<i>Raumanga Valley Scenic Reserve - all areas not listed elsewhere in Schedule 2</i>	
Headland Park		Resolution Place/Endeavour Place Reserve	
King Street Park, Hikurangi		Sherwood Park	
Kitemaunga Avenue Reserve		<i>Tarewa Park - all areas not listed elsewhere in Schedule 2</i>	
<i>Korau Road Reserve - all areas not listed elsewhere in Schedule 2</i>		Tikipunga Library Reserve	

Related information			
Location	Appendix 1 Map #	Location	Appendix 1 Map #
Lake Waro		<i>Totara Parklands - all areas not listed elsewhere in Schedule 2</i>	
Laurie Hall Park		Waipu Caves Reserve	
Lockheed Place Reserve		Wairau Drive Reserve	
<i>Limeburners Creek Walkway - all areas not listed elsewhere in Schedule 2</i>		<i>William Fraser Memorial Park on Pohe Island - all areas not listed elsewhere in Schedule 1 or 2</i>	

2.2 Dogs are allowed under control on a leash on the following beach and foreshore areas:

Area	Location	Appendix 1 Map #
Marsden Bay	Beach northwest of channel and beach and foreshore from channel southeastward to groyne	
Marsden Point	Beach and foreshore from Northport at Ralph Trimmer Drive to Mair Road	
Whananaki North	Rockell Bay - <i>rocky outcrop to rocky outcrop</i>	
Whananaki North	Brookers Bay/Woolshed Bay - <i>from the rocky outcrop at the northern end of Moureeses Bay northward to the northern outcrop at the northern end of Brookers Bay</i>	
Tutukaka Coast	Matapouri Estuary Reserve - boat launching area	
Tutukaka Coast	Ngunguru - Kauakarangi Bay sandspit (opposite Ngunguru School)	

3. Dogs are allowed under control off a leash

3.1 On the following reserves/parks:

Location	Attachment 1 Map #
Anzac Park	
Barge Park - <i>main fields from road boundary to wetlands</i>	
Beazley Park	
Blacksmith's Creek Walkway - <i>open grass area from beginning of walkway eastward to second bridge</i>	
Cairnfield House parklet	
Cairnfield Reserve	
Cobham Place Reserve	
Corks Road/Amber Drive reserve	
Deveron Reserve	
Elgin Place Reserve	
Gillingham Road - Waitaua Stream Reserve	
Hikurangi - <i>open grass area immediately south of transfer station</i>	
Hodges Park	
Korau Road Reserve - grass area beyond low fence	
Lower Panorama Drive Reserve	
Mair Park - <i>on the grass area on the western side of the river north of the footbridge and on connecting walkway to Deveron Reserve</i>	

Mander Park	
Moody Ave Reserve	
Nottingham Road Reserve	
Okara – Former Old Boys rugby grounds playing fields	
Panorama Drive Reserve (upper) - <i>open grass area southeast of playground</i>	
Pah Road Reserve	
Raumanga Valley Scenic Reserve - <i>grass area west of playground</i>	
Raurimu Avenue Park	
Riverside Reserve	
Ross Street Park	
Shearwater Reserve	
Station Road Reserve	
Tamingi Street Reserve	
Tarewa Park - <i>grass area at southwestern end of park beyond footpath</i>	
Tauroa Reserve	
Te Paka Reserve	
Tikipunga Sports Park - <i>grass area off Ngunguru Road and grass area bordered by walkway and Hatea River</i>	
Totara Parklands - Wairau Drive/Harrison Drive - <i>large grass area north of shared path</i>	
Waiarohia Reserve	
Waikaraka Beach Road grass area (road reserve)	
Whale Tail Park/Kopipi Reserve	

3.2 On the following beach and foreshore areas:

Area	Location	Attachment 1 Map #
Bream Bay	From Mair Road beach access southward to a line eastward from the eastern end of Taotahi Walk	
Bream Bay	From boardwalk beach access point between 117 and 119 Bream Bay Dr southward to pedestrian access point at Uretiti Beach Conservation Campground	
Bream Bay	From a line eastward of the southern boundary of the Uretiti Beach Conservation Campground southwards to the beach access point at the end of Tip Road	
One Tree Point	Foreshore from Marsden Yacht Club southeastward to carpark area and foreshore access opposite 189 One Tree Point Road	
Tutukaka Coast	Ngunguru - beach and foreshore area from south-eastern end of Kauakarangi Bay sandspit southeastward to the beginning of the Whangaumu lookout walkway	
Tutukaka Coast	Ngunguru Estuary - Village side - foreshore area from opposite public toilets northward to opposite shops	
Tutukaka Coast	Tutukaka Marina Beach	
Whananaki North	Foreshore area between boat ramps	
Whangarei Heads	Waikaraka Beach Road foreshore area	

4. Dogs are prohibited

4.1 On the following reserves/parks:

Location	Attachment 1 Map #
AH Reed Park - <i>excluding Hatea River Walkway - Elizabeth Track</i>	
Barge Park - <i>all wetland areas</i>	
Blacksmith's Creek Walkway - <i>all wetland areas and walkway beyond second bridge</i>	
Coronation Scenic Reserve	
Dip Road Reserve (Kamo)	
Elgin Place Bush Reserve (Kamo)	
Granfield Place Reserve (Kamo)	
Kauri Mountain Reserve	
Kauri Mountain Trail	
Kukupu Road Reserve (Matapouri)	
Magnolia Avenue Bush Reserve (Kamo)	
Matakohe/Limestone Island	
Maungatapere Bush Reserve	
McLeod Bay Reserve (opposite Fire Station)	
Mt Aubrey - Reotahi Walkway & Mt Aubrey Walkway	
Neptune Drive Reserve (McLeod Bay)	
Parihaka Mountain Bike Park - <i>all mountain bike trails</i>	
Parihaka Reserve	
Pukenui Forest	
Tutukaka Lighthouse Walk - Kukutauwhao Island	
Whale Bay/Matapouri Reserve	
Whananaki Coastal Walkway	
Whananaki Sandspit	
Whangārei Quarry Gardens	

4.2 On the following beach and foreshore areas and wetlands:

Area	Location	Attachment 1 Map #
Bland Bay/Whangaruru	Bland Bay Beach - northern end of beach southward to a line northeast of the northernmost point of Logan Nick Reserve	
Bland Bay/Whangaruru	From Waitapu Rock eastward to the western end of Tuparehuia Bay	
Bream Bay	Princes Road foreshore area from one-way bridge on Ruakaka Beach Road northward to northern end of Princes Road boat ramp reserve	
Bream Bay	Ruakaka Racecourse access point southward to end of accessible beach/foreshore at Ruakaka River	
Bream Bay	Ruakaka River from one-way bridge on Ruakaka Beach Road northward along the foreshore around campground to northern pedestrian access point at Ruakaka Beach Reserve	
Bream Bay	From Tip Road southward to Waipu River mouth.	
Bream Head	From Urquhart Bay Road carpark southward around headland to southern end of Ocean Beach west of Moturaka and Tarakanahi Islands	

Kauri Mountain	Kauri Mountain Beach, from Awarua Rock southward to rocky outcrop at northern end of Ocean Beach	
Port Whangarei	Kioreroroa Road Wetlands/Limeburners Creek Walkway – <i>all wetland areas not part of the walkway</i>	
Marsden Bay	Beach and foreshore area including wetlands from the groyne at Marsden Bay Beach eastward to Northport and southward to Papich Road	
Mimiwhangata	From Parapahi Point southward to southern end of Ruatahi Islet	
Tutukaka Coast	From the eastern end of Ngunguru River Reserve (DOC Reserve) eastward then northward around the sandspit and southward to southern side of Horahora River mouth	
Tutukaka Coast	Tutukaka Lighthouse walkway - beach and foreshore area between DOC reserve and Kukutauwhao Island	
Waipū	From accessible beach/foreshore area at Waipu River mouth southward to access track at northern end of campground	
Whananaki	Whananaki Inlet	
Whananaki	Whananaki Sandspit foreshore	
Whananaki North	From the northwestern end of Motutara Beach southeastward around the headland to the boat ramp on Whananaki Wharf Road	
Whananaki North	Otamure Bay - from rocky outcrop at western end of Otamure Bay eastward to Andesite Point	
Whangarei Heads	Beach and foreshore from end of Reotahi Road southward and eastward to the western end (but not including) little Munro Bay	

5. A summer season rule applies

- 5.1 Dogs are allowed on all beach and foreshore areas in the Whangarei District, except for those areas provided for under sections 2.2, 3.2 and 4.2 of Schedule 2, subject to the following summer season rule:

Summer (20 December to 31 January)			Outside summer season
	Morning (before 9am)	Under control off a leash	All times Under control off a leash 
	Daytime (9am to 5pm)	Prohibited	
	Evening (after 5pm)	Under control off a leash	

- 5.2 Dogs are allowed in the areas below, subject to the following summer season rule:

- Pataua South at bridge/toilets - grass area from footbridge eastward to end of accessible grass area (Map #22)
- Whananaki North Boatramp Reserve (reserve next to boat ramp and foreshore area between boat ramps) (Map #29)
- Logan Nick Reserve (Bland Bay/Whangaruru) (Map #02)
- Parua Bay Reserve /Boatramp - grass area within bollards (Map #21)

Summer (20 December to 31 January)			Outside summer season
	Morning (before 9am)	Under control off a leash	All times Under control off a leash 
	Daytime (9am to 5pm)	Under control on a leash	
	Evening (after 5pm)	Under control off a leash	

- 5.3 Dogs are allowed in the areas below, subject to the following summer season rule:

- Bland Bay Beach - From a line northeast of the northernmost point of Logan Nick Reserve southeastward to Waitapu Rock (Map #02)

Summer (20 December to 31 January)			Outside summer season
	Morning (before 9am)	Under control on a leash	All times Under control on a leash 
	Daytime (9am to 5pm)	Prohibited	
	Evening (after 5pm)	Under control on a leash	

Related Information – Maps

to be finalised

DRAFT

Whangarei District Council

Dog Control Bylaw 2024

draft

Table of contents

1..... Title	3
2..... Commencement	3
3..... Application.....	3
4..... Purpose	3
5..... Interpretation	3
6..... Prohibition of dogs in public places.....	5
7..... Dogs on a leash in public places and private ways.....	5
8..... Dogs off a leash in public places	6
9..... Dogs in designated dog exercise areas	6
10... Temporary changes to dog access rules	6
11... Dog faeces	6
12... Requirement to neuter uncontrolled dog.....	7
13... Objection to requirement to neuter uncontrolled dog	7
14... Effect of requirement to neuter uncontrolled dog	7
15... Request for review of a menacing dog classification.....	8
16... Enforcement.....	9
17... Offences and penalties	9
18... Requests for removal of menacing classification	9

1. Title

- 1.1. This Bylaw is the Dog Control Bylaw 2024.

2. Commencement

- 2.1. This Bylaw comes into force on 28 October 2024.

3. Application

- 3.1. This Bylaw applies to the Whangarei District.

Part 1 – Preliminary provisions

4. Purpose

- 4.1. The purpose of this Bylaw is to give effect to Whangarei District Council's Dog Management Policy 2024 by:
- a. prohibiting dogs, whether under control or not, from specified public places;
 - b. requiring dogs, other than working dogs, to be controlled and on a leash in specified public places;
 - c. regulating and controlling dogs in any other public place;
 - d. requiring the owner of any dog that defecates in a public place or on land or premises other than that occupied by the owner to immediately remove the faeces;
 - e. requiring any female dog in season or a dog with a contagious disease to be excluded from public places;
 - f. requiring the owner of any dog which has not been kept under control on more than two occasions to be neutered; and
 - g. providing a review process for owners of dogs classified as menacing by behaviour to have that classification reviewed.

5. Interpretation

- 5.1 Any word used in this Bylaw that is defined in section 2 of the Dog Control Act 1996, and not included in clause 5.2 below, has, for the purposes of this Bylaw, the same meaning as in [section 2](#) of the Dog Control Act 1996.
- 5.2. In this Bylaw, unless the context otherwise requires:

Access way

has the meaning given by [section 315](#) of the [Local Government Act 1974](#).

Act

means the [Dog Control Act 1996](#).

Authorised Officer

means a Whangarei District Council staff member or a Council authorised contractor in charge of a public place.

Beach

means and includes the following:

- a. the foreshore as defined by [section 2](#) of the [Resource Management Act 1991](#)
- b. the inter-tidal zone above mean low water springs
- c. any adjacent area that can reasonably be considered part of the beach environment including areas of sand,

pebbles, shingle, dunes or coastal vegetation and includes the adjacent coastal marine.

Cemetery	means any land or premises for the burial and/or cremation of the dead and includes a closed cemetery and urupā.
Control	in relation to a dog, means that the owner is able to obtain an immediate and desired response from the dog.
Council	means Whangarei District Council, and includes any person or committee delegated to act on its behalf in relation to this Bylaw.
Council-controlled public place	means all public places owned or managed by Whangarei District Council.
Dangerous dog	means a dog that has been classified as a dangerous dog under section 31 of the Act.
Footpath	has the meaning given by section 315 of the Local Government Act 1974 .
Foreshore	has the meaning given by section 2 of the Resource Management Act 1991 .
Menacing dog	means a dog that has been classified as a menacing dog under section 33A of the Act.
Neutered dog	has the meaning given by section 2 of the Act.
Owner	has the meaning given by section 2 of the Act.
Park/Reserve	means any land vested in or administered by Council under the provisions of the Reserves Act 1977 ; and/or any park, domain or recreational area under the control or ownership of Council.
Playground	means a developed outdoor area that contains children's play equipment or objects, and includes a skatepark. Use of a playground means that the playground is currently being used or occupied by one or more persons.
Policy	means the Whangarei District Council Dog Management Policy 2024.
Premise	means any land, dwelling, storehouse, warehouse, shop, cellar, yard, building, or part of the same, or enclosed space separately occupied. All lands, buildings and places adjoining each other and occupied together are deemed to be the same premises.
Private way	has the meaning given by section 315 of the Local Government Act 1974 .
Public place	has the meaning given by section 2 of the Act.
Road	has the meaning given by section 315 of the Local Government Act 1974 , except that where a road is adjacent to a park, and the land within the road and park is developed in an integrated way, the common boundary between the road and park will be reduced or extended to: - a line parallel to the road that follows any physical separation between the road and park (e.g. fence or bollards); or - where no physical separation exists, a line parallel to the road that follows the edge of the road carriageway,

footpath or cycle track that is closest to the centre of the park.

Sports field

means any area developed or marked out, for example those used for soccer, rugby, or rugby league, artificial turf, sports range, sports park or velodrome. Use of a sports field means that the area is being used for sports events or training for sports events by one or more persons.

Skatepark

means a purpose-built recreational environment made for skateboarding, BMXing, rollerblading, roller skating or scootering, and includes pumptracks.

Service lane

has the meaning given by [section 315](#) of the [Local Government Act 1974](#).

Working dog

has the meaning given by section 2 of the Act.

- 5.3. Related information and links to webpages do not form part of this Bylaw and may be inserted, changed or removed without any formality.
- 5.4. The [Legislation Act 2019](#) applies to this Bylaw.
- 5.5. To avoid doubt, compliance with this Bylaw does not remove the need to comply with all other applicable Acts, regulations, bylaws, regional or district plans, or reserve or park management plans.

Part 2 – Regulation and control of dogs

6. Prohibition of dogs in public places

- 6.1. The owner of any dog must ensure that their dog (including when confined in a vehicle or cage) does not enter or remain in any public place specified as prohibited in Schedule 1 or 2 of the Policy.
- 6.2. Clause 6.1 does not apply to a working dog; if a working dog is present in a prohibited area for the purpose of performing its functions as provided for in section 2(b) of the Act.
- 6.3. The owner of any female dog in season must ensure the dog does not enter or remain in any public place or private way unless—
 - a. that dog is confined in a vehicle or cage for the purposes of transportation; or
 - b. the owner of that dog has the permission of the occupier or person controlling the public place and complies with any reasonable conditions imposed.
- 6.4. The owner of any dog infected with a contagious disease must ensure the dog does not enter or remain in any public place or private way unless that dog is confined in a vehicle or cage for the purposes of transportation to a veterinary clinic for treatment.

7. Dogs on a leash in public places and private ways

- 7.1. The owner of any dog must ensure that the dog is controlled on a leash in the public places and private ways as specified in Schedule 1 or 2 of the Policy.
- 7.2. Clause 7.1 does not apply to any dog confined in a vehicle or cage.

Related information

Working dogs include disability assist dogs, dogs kept by state departments such as police dogs and customs dogs, pest control dogs and dogs kept solely or principally as stock or herding dogs. A full list can be found in [section 2](#) of the Act.

Working dogs are excluded from the requirement to comply with clause 7 of this Bylaw under [section 10\(3\(c\)\)](#) of the Act.

Disability assist dogs are those dogs certified as disability assist dogs by the organisations listed in [Schedule 5](#) of the Act. Disability assist dogs are not required to comply with clauses 6 or 7 of this Bylaw under [section 75](#) of the Act.

[Section 54A](#) of the Act requires all dog owners to carry a leash at all times regardless of the provisions of this Bylaw. This section does not apply to the owner of a working dog in relation to the working dog.

8. Dogs off a leash in public places

- 8.1. The owner of any dog (other than a dangerous dog) may take that dog off a leash in the public places as specified in Schedule 2 of the Policy, provided that the dog is kept under control.

9. Dogs in designated dog exercise areas

- 9.1. The owner of any dog (including a dangerous dog that is muzzled) may take that dog off a leash in a designated dog exercise area as specified in Schedule 2 of the Policy, provided that dog is kept under control.

Related information

Clause 2 of this Bylaw defines 'control' as: "in relation to a dog, means that the owner is able to obtain an immediate and desired response from the dog."

10. Temporary changes to dog access rules

- 10.1. Council may make temporary changes to Schedules 1 and 2 of the Policy in relation to:
- leisure and cultural events (including dog friendly events);
 - dog training;
 - the protection of wildlife vulnerable to dogs;
 - the protection of flora vulnerable to dogs;
 - pest control in any park and/or beach (as defined in the Policy); or
 - other circumstances of a similar nature to subclauses (a) to (e) of this clause.
- 10.2. In making or removing a temporary change to Schedules 1 and 2 of the Policy under Clause 10.1, Council must:
- have regard to the dog access principles in the Policy;
 - specify in writing the reasons, location and timeframe for which the temporary change is to apply;
 - publicise the temporary change in a manner that Council considers appropriate in the circumstances; and
 - clearly indicate the area subject to the temporary change by 1 or more clearly legible signs affixed in 1 or more conspicuous places on, or adjacent to, the place to which the temporary change relates, unless it is impracticable or unreasonable to do so.

11. Dog faeces

- 11.1. When in a public place or premise, dog owners must ensure the immediate removal and disposal of their dog's faeces. This must be done in a way that does not cause a nuisance.
- 11.2. Clause 11.1 does not apply to a premise occupied by the owner.
- 11.3. Clause 11.1 does not apply to any working dog herding or driving stock on a road where the dog is kept solely or principally for the purposes of herding or driving stock.

12. Requirement to neuter uncontrolled dog

- 12.1. Council may require the owner of a dog to have that dog neutered if, within a 24-month period—
 - a. an infringement notice, under section 53 of the Act, has been issued at least twice; or
 - b. the dog has been impounded at least twice as a result of not being kept under control.
- 12.2. A breach of a requirement under Clause 12.1 is an offence against this Bylaw.

Related information

Section 53 of the Act provides that it is an offence for a dog owner to fail to keep their dog under control and in relation to this, Schedule 1 of the Act states the infringement fee for such an offence is \$200.

Section [52\(2\)](#) of the Act provides a specific description of the circumstances where a dog can be deemed to be "not under control" for the purposes of being issued an infringement notice under Clause 12.1.a as well as allowing for dogs to be impounded under Clause 12.1.b.

Dog owners who do not get their dog neutered in the time specified may be subject to enforcement action in accordance with Clause 12.2 of this Bylaw and will still be required to neuter their dog.

13. Objection to requirement to neuter uncontrolled dog

- 13.1. If a dog is required to be neutered under clause 12, the owner of that dog:
 - a. may, within 14 days of receiving the notice, object to the requirement by writing to Council; and
 - b. has the right to be heard in support of their objection under clause 13.1.a.
- 13.2. Council may, when considering an objection under clause 13, uphold or rescind the requirement. In making its determination, Council must have regard to:
 - a. the evidence which formed the basis for the requirement;
 - b. the matters relied upon in support of the objection; and
 - c. any other relevant matters.
- 13.3. Following its consideration of an objection under clause 13.2, Council must, as soon as practicable, give written notice to the dog owner of:
 - a. its determination on the objection; and
 - b. the reasons for its determination.

14. Effect of requirement to neuter uncontrolled dog

- 14.1. If a dog is required to be neutered under clause 12, the owner of that dog must, within 1 month of receiving the notice of the requirement, provide to Council a certificate issued by a veterinarian certifying that:
 - a. the dog is or has been neutered; or

- b. for reasons that are specified in the certificate, the dog will not be in a fit condition to be neutered before a date specified in the certificate.

14.2. If a certificate under clause 14(1)(b) is provided to Council, the owner must provide to Council, within 1 month after the date specified in that certificate, a further certificate under subclause 14 (1)(a).

15. Request for review of a menacing dog classification

- 15.1. If a dog has been classified as menacing due to its behaviour under [section 33A](#) of the Act, the owner may request the classification be reviewed no earlier than 24 months after the date of classification, if—
- a. the owner provides evidence of a dog behavioural assessment report, such report to be obtained at the owner's expense; and
 - b. the owner has not been issued with any infringement notices in relation to the dog within the preceding 24-month period.
- 15.2. Removing the classification of a dog as menacing is at Council's discretion.

Part 3 – Enforcement, offence, penalties

16. Enforcement

- 16.1. Council may use its powers under the Dog Control Act 1996 and the [Local Government Act 2002](#) to enforce this Bylaw.

17. Offences and penalties

- 17.1. Every person who breaches this Bylaw commits an offence.
- 17.2. Every person who commits an offence under this Bylaw is liable to the penalties under the Dog Control Act 1996 and the Local Government Act 2002.

Part 4 – Savings, transitional provisions

18. Requests for removal of menacing classification

- 18.1. Requests for the removal of a menacing classification due to the behaviour of a dog may be made for classifications made within the 12-month period prior to this Bylaw coming into force.

7.4 Te Rerenga - Taitokerau Northland Economic Wellbeing Pathway

Meeting: Whangarei District Council
Date of meeting: 26 September 2024
Reporting officer: Tony Collins

1 Purpose / Te Kaupapa

For Council to endorse Te Rerenga: Taitokerau Northland Economic Wellbeing Pathway (Attachment 1) as the key strategy document for advancing economic development in the region.

2 Recommendations / Whakataunga

That Council:

1. Receives Te Rerenga: Taitokerau Northland Economic Wellbeing Pathway.
2. Endorses Te Rerenga: Taitokerau Economic Wellbeing Pathway as an important vision document for Northland.

3 Background / Horopaki

At its meeting on 25 May 2020, the Northland Mayoral Forum tasked the Chief Executives to develop a regional economic development strategy as part of a broader proposal for the joint delivery of local government economic development services in Northland. Northland Inc were then tasked with facilitating the development of a strategy in partnership with local and central government, tangata whenua, regional communities, and industry.

In fulfilling this task Northland Inc with the steering group conducted comprehensive background research of key strategic documents related to economic development and the wellbeing economy, integrating and aligning relevant elements of these works into a vision document. This document aims to create an overarching vision of a Northland we all want to be part of, with a hundred-year horizon, to which other key regional economic development documents can align towards and form a cohesive approach. The development of Te Rerenga has been a significant collaborative effort and is a major achievement that will provide a solid vision platform for guiding economic development in the region.

Whangarei District Council has been involved in the development of Te Rerenga. Council contributed \$25,000 to the development Te Rerenga as a co-funder. The other co-funders were the Ministry of Social Development (\$100,000) and the Joint Regional Economic Development Committee (JREDC) allocated \$80,000 from the Investment and Growth Reserve (IGR).

Earlier versions of Te Rerenga have been discussed at seven previous JREDC meetings: 20 April 2023 (high-level direction), 18 May 2023 (strawman narrative), 15 June (initial draft), 20 July (second draft), 28 September (revised draft), 30 November (provisional final draft), and 25 March 2024 (workshop to refine final draft).

Alongside this, and recognising that Council was not a member of the Northland Inc. at that time, there was direct engagement with Whangarei District through the development stages, with feedback and direction provided by Council through the direction setting, strawman narrative and drafting stages. In this calendar year, since the decision to consult on membership of Northland Inc through the LTP, Council has had the Mayor and Deputy Mayor as informal members of the Joint Committee.

4 Discussion / Whakawhiti kōrero

The purpose of this report is to seek the endorsement by Council of Te Rerenga: Taitokerau Northland Economic Wellbeing Pathway (Attachment 1). The completion of the development of Te Rerenga was noted by the Joint Regional Economic Development Committee (Joint Committee) at its meeting on 26 July 2024. Te Rerenga has been endorsed by Northland Regional Council (NRC) at its 27 August 2024 Council Meeting and Te Kahu o Taonui via a letter (Attachment 2). Far North District Council will be presenting a report on Te Rerenga to its 12 September 2024 Council Meeting and staff are not aware of plans for Kaipara District Council to have Te Rerenga presented to its Council.

4.1 Community Views

A Steering Group. was assembled by Northland Inc to set the strategic direction, identify priorities, provide input into a high-level action plan and advocate for strategic outcomes within regional networks. The Steering Group includes representatives from Te Kahu o Taonui, Whāriki, Northland Inc, the Joint Regional Economic Development Committee, and the Tai Tokerau Regional Public Services Commissioner, as well as Northland business and community leaders from across diverse sectors, demographics and regions. Engagement across the region gathered insights from business and industry sectors, local and central government, Māori, community including youth, workforce and education.

To engage community and Māori, the development of the strategy was based on collaboration and co-authoring, which required an engagement process across the region spread over a number of months.

Specific feedback was also sought on the contents and approach of the draft strategy during a series of workshops with Council, including Workshops on 26 April 2023, 28 June 2023 and with Te Karearea 31 May 2023. Feedback was also gathered from other stakeholders including the Joint Committee, Kaipara District Council, the Far North District Council, Northland Regional Council, the Steering Group and other forums. Draft versions of the strategy document were presented either at workshops or via a feedback platform to the aforementioned groups from May to September 2023.

Several workshops and discussions were held with industry sectors, thought-leaders, youth, Northland Chamber of Commerce, a range of SME's (small to medium enterprises), industry and central government agencies through the Tai Tokerau Northland Economic Action Plan (TTNEAP) Advisory and Working Groups, Council Māori Advisory Forums, community, private sector, councils, large enterprises Chief Executive Forum, and the Mayoral Forum, regarding the development of the strategy. A draft Engagement document and feedback form was made available on the Northland Inc website.

4.2 Financial/budget considerations

At the time of writing this report there are no known financial implications. However, funding will be required to support the implementation of actions. Any funding requirements will come from the Investment and Growth Reserve (IGR) and existing financial commitments as set out in shareholder councils' Long Term Plans. Funding requests will need to align with the criteria for allocation of funding from the IGR.

4.3 Implementation Issues

Following the launch of Te Rerenga in early 2024, a Roadmap and Action Plan are being drafted by Northland Inc. As part of this work, consideration will be given to the most appropriate leadership model to guide implementation. The region has successful models to draw from such as the Tai Tokerau Economic Action Plan (TTNEAP) and Destination Management Plan (DMP) which, along with other project focussed plans, form an overall cohesive base under this vision document.

4.4 Options

Option No.	Option	Advantages	Disadvantages
1	Receive and endorse Te Rerenga: Taitokerau Northland Economic Wellbeing Pathway	Signals council's strong support for Te Rerenga as the region's pathway to economic wellbeing. Matches the decisions taken by Northland Regional Council and Te Kahu o Taonui, thereby laying the foundation for working together on implementation	Some important actions and/or perspectives of some partners and stakeholders may not have been adequately or accurately represented in Te Rerenga
2	Receive and note Te Rerenga: Taitokerau Northland Economic Wellbeing Pathway	As for Option 1 but support is not so strong	As for option 1
3	Do not receive and note Te Rerenga: Taitokerau Northland Economic Wellbeing Pathway	None – Joint Committee has already noted completion of development	Misses an opportunity to take a decision that will reinforce a pathway forward with tangata whenua on regional economic development

The staff's recommended option is Option 1 to endorse Te Rerenga.

5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via agenda publication on the website.

6 Attachments / Ngā Tāpiritanga

Attachment 1 - Te Rerenga - Taitokerau Northland Economic Wellbeing Pathway

Attachment 2 - Te Kahu o Taonui Endorsement Letter

TAITOKERAU NORTHLAND
ECONOMIC WELLBEING
PATHWAY

Te Rerenga



Lead by:

NorthlandInc

Growing Northland's Economy

Kia tupu ai te ōhanga o Te Tai Tokerau



Supported by:



MINISTRY OF SOCIAL DEVELOPMENT

TE MANATŪ WHAKAHIATO ORA



MINISTRY OF BUSINESS, INNOVATION & EMPLOYMENT

HIKINA WHAKATUTUKI

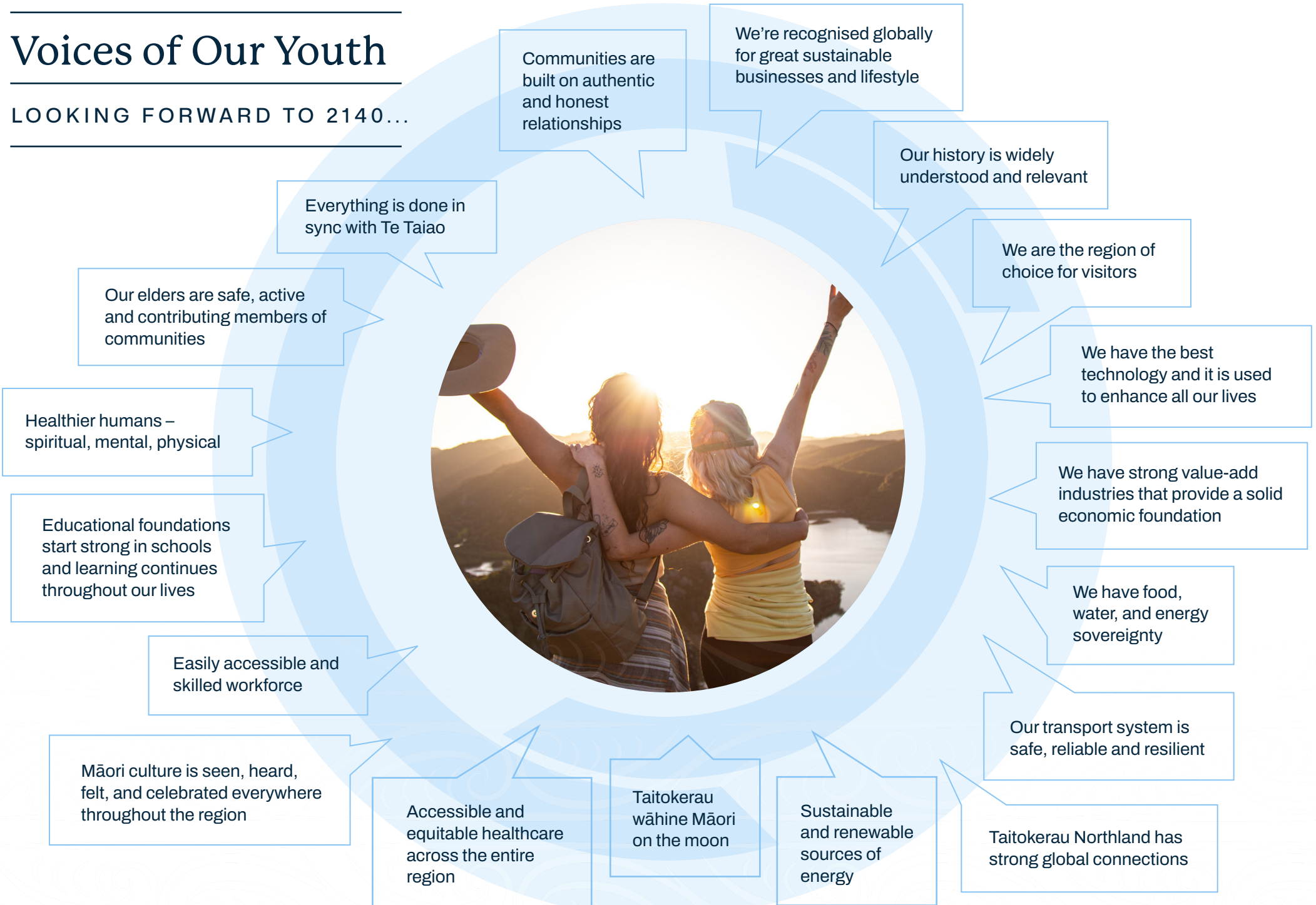
Te Rerenga Steering Group Terms of Reference



Credit for Front Cover and Inside Cover Photos to -David Kirkland

Voices of Our Youth

LOOKING FORWARD TO 2140...



Foreword

Taitokerau Northland Economic Wellbeing Pathway is a comprehensive evidence and strength-based strategy that encompasses the collective aspirations of our region. It has been co-created by representation from business and industry, Iwi/Māori, local and central government, community, Northland Inc, and guided by Te Rerenga Steering Group. Te Rerenga seeks to cultivate a prosperous, sustainable, and innovative economy for all to partake in its benefits.

What is a Wellbeing Economy? An economy that is designed with the purpose of serving the wellbeing of people and the planet first and foremost; and in doing so, it delivers social justice on a healthy planet.

This is the first iteration in the hope that in the months and years to come we will continue to build and strengthen this pathway, together. With this in mind, the aim of this wellbeing pathway is to bind effective working partnerships with local and central government, so we may resolve our hardest issues efficiently. By creating our best opportunities to produce the outcomes that have been co-produced with communities and investment stakeholders.

Why design an economic wellbeing pathway? Around the world important shifts are being witnessed in the understanding of progress and development. Societies and governments are moving beyond evaluating progress in terms of GDP or average income levels to evaluating progress in terms of quality of life and collective wellbeing. This shift in thinking comes from a recognition that wellbeing is determined by much more than money. A wellbeing economy is described as an economy that is designed with a purpose of serving the wellbeing of the planet first and foremost. In doing so it delivers social justice on a healthy planet. By recognising this, the ultimate measure of success is not wealth but wellbeing - now and for generations to come.

Why now? Northland's Mayoral Forum tasked Northland Inc in 2020 to develop a strategy, given it was two decades since the last economic development strategy was undertaken, Northland Forward Together - 2002. There are many plans which speak to the region's economic development, but no one overarching strategy which can put its arms around all of those documents and brings alignment and cohesion. We need a strategy with an intergenerational view which outlines ways to improve the wellbeing of our region - economic, social, cultural, environmental.

What will it do? Te Rerenga Wellbeing Pathway, over a hundred-year horizon, is crucial for the future of our entire region, in areas like global competitiveness, technological advancements, demographic changes, regulatory landscapes and inward investments. However, does any of this matter without our social and cultural aspirations and thriving local communities enjoying high standards of living at the forefront?

This wellbeing pathway shifts the focus towards a more holistic and sustainable approach based around the intergenerational themes of people, economy and environment. Here you will find actions that offer a forward-focused approach to our future, one of deliberate planning.

How will it be done? This strategy empowers Taitokerau Northland to shape its destiny, fostering a region where people can grow, connect, and achieve balance with their environment. Importantly, this strategy is not limited to one group but involves many organisations, individuals, businesses, and community groups working together to create a place where people and enterprise choose to thrive.

This strategy is for all and invites those who can invest to help drive our regional transformation.



He Whakaputanga me

Te Tiriti o Waitangi

Home of He Whakaputanga and Te Tiriti o Waitangi, Te Taitokerau is the birthplace of the nation. Te Rerenga acknowledges that our nation's constitutional documents form a necessary foundation for the success of Taitokerau Northland's economic development and prosperity now and in the future.

He Whakaputanga o te Rangatiratanga o Niu Tirene declared the constitutional arrangements in Aotearoa - that Rangatira are sovereign in Aotearoa and that no one else could make or adjudicate laws without the permission of Te Wakaminenga. Te Tiriti o Waitangi re-affirmed Rangatiratanga and outlined that the Crown would join the established constitutional arrangements and govern their Hapū of European settlers. As such, Rangatira retained their sovereign powers and duties within the exercise of “tino rangatiratanga” and the Crown gained the ability to govern their own people through “kawanatanga”.

Te Rerenga is an economic development strategy positioned within the kawanatanga sphere and therefore, acknowledges the Rangatiratanga of ngā Iwi me ngā Hapū o Te Taitokerau. Te Tiriti o Waitangi established a relationship between Rangatiratanga and Kawanatanga which allowed for an exchange of knowledge and resources and, the dual exercise of laws. Te Tiriti o Waitangi was transformational in its constitutional effect and Te Rerenga aspires to uphold and continue the legacy of Te Tiriti o Waitangi for the prosperity of Te Taitokerau - all Northlanders.

Te Rerenga focuses on three primary needs and aspirations for the wellbeing of Taitokerau Northland - environment, people, and economy. Our collective responsibility to Te Tiriti o Waitangi can be activated through each of these focus areas and provides a unique opportunity to elevate and enrich Taitokerau Northland's economic activity.

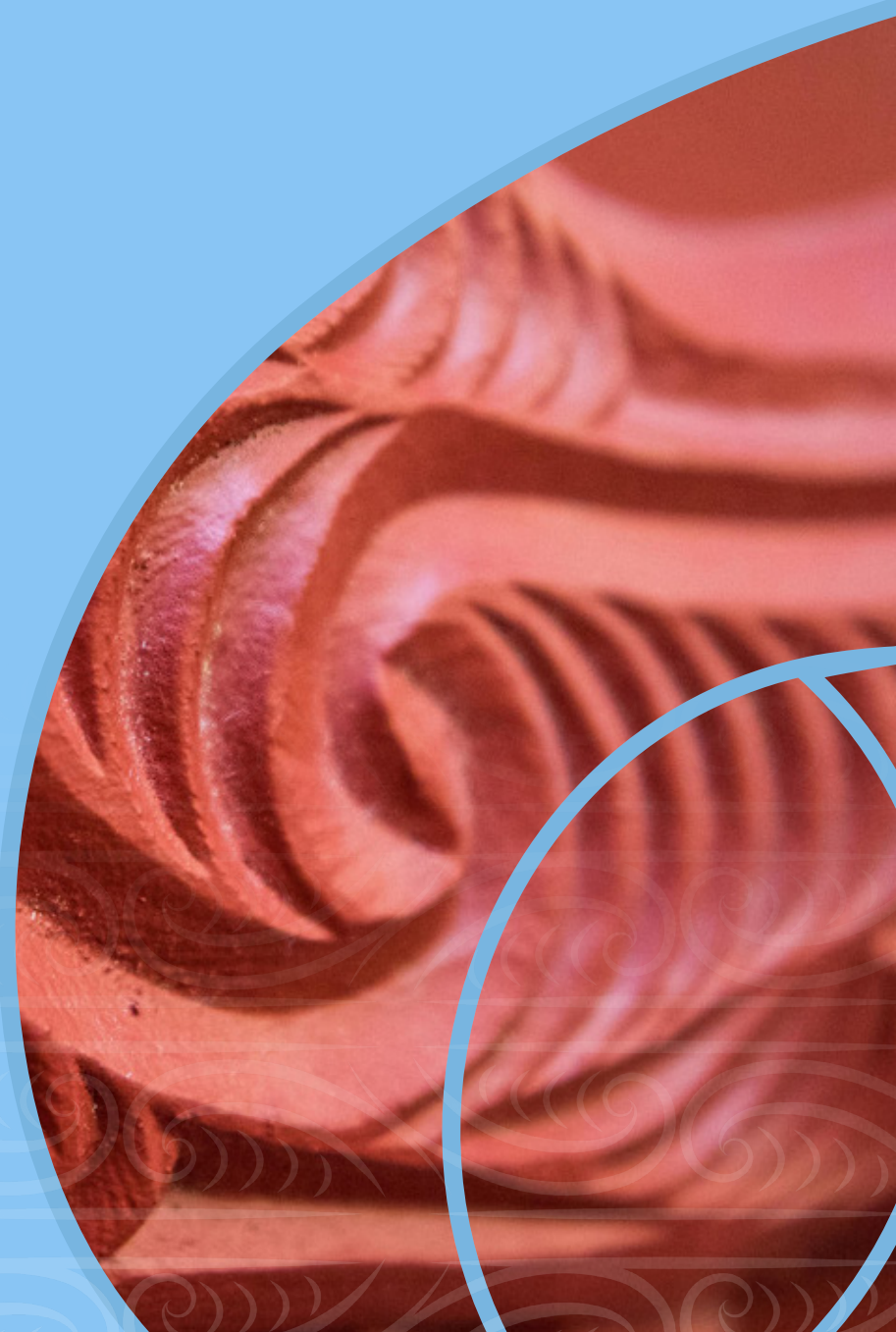


Table of Contents

VOICES OF OUR YOUTH - LOOKING FORWARD TO 2140	03
FOREWORD	04
HE WHAKAPUTANGA ME TE TIRITI O WAITANGI	05
TABLE OF CONTENTS	06
DEVELOPING THE STRATEGY	07
2140 – OUR FUTURE	08
2140 – OUR MOONSHOTS	09
2040 – OUR FIRST MILESTONE	10
WELLBEING LOGIC	11
OUTLINE PROGRAMME IMPLEMENTATION	12
- OUR ENVIRONMENT	
- OUR PEOPLE	
- OUR ECONOMY	
HERE TO THERE	15
CONDITIONS FOR SUCCESS	16
2024 - OUR STARTING POINT	17
OUR PRIORITY PIPELINE	19
OUTCOME INDICATORS	22
BUILDING MOMENTUM	24
ACKNOWLEDGEMENTS	25
HE TAKI	26

Developing the Strategy

A CO-CREATIVE PROCESS

Getting started

When we began the process of designing an economic wellbeing pathway for Taitokerau Northland, people, co-creation and a [wellbeing](#) approach were at the heart. We were after a plan that was practical and dynamic. A plan that enabled leaders and communities to progress; to remove obstacles as they appear, solve problems, and keep moving. A locally led, regionally enabled, centrally supported approach providing for diversity; for local economies to do what they know needs doing and for regional and central government levers to support the broader prosperity and wellbeing of the region. As a living document and the first of the thought leadership papers, with others to follow as we adapt, the focus is on areas of economic life most important for intergenerational wellbeing.

The Concept of a Unifying Economic Strategy

The Mayoral Forum in 2020 first voiced a concept of a unifying economic strategy for Councils. It was part of a bigger discussion on joint delivery of local government economic development services in Northland through Northland Inc. Every region in New Zealand has an Economic Development Agency and Northland Inc is the Economic Development Agency for Taitokerau Northland.

A long term 100-year plus vision is proposed with three horizon timelines - 2024, 2040 & 2140.

Engagement across the region was essential with insights gathered from business and industry sectors, Iwi and Hapū, community, Te Hiku – Crown Social & Wellbeing Accord, local and central government, workforce and education sectors, those young and not so young.

[The Taitokerau Northland Economic Action Plan](#) Advisory and Working Groups, the Regional

Skills Leadership Group, Northland's Intersectoral Forum Regional Leadership Group, the Councils' CE Forum, small and medium business, [Northland Chamber of Commerce](#), Large Employers CE Forum and the Employers and Manufacturers Association.

Moving from Concept to Action

The creation of this paper started as far back as early 2022 when Northland Inc put out a public invitation process for members to form a Steering Group. These thought leaders came from different areas and diverse sectors of Taitokerau Northland. They have helped to shape and guide this strategy.

The Northland Inc Board and their Executive Leadership have provided ongoing feedback and input from Far North, Kaipara, Northland Regional and Whangārei District Councils, along with Northland's Joint Regional Economic Development Committee. Representation from [Te Kahu O Taonui](#) have also been closely involved.

A review of key documents, regional, national, and international, that speak to economic development and/or a wellbeing economy was completed, integrating and aligning relevant elements of these works into the strategy. Of particular note are the [Destination Management Plan](#), [Regional Skills Workforce Plan](#), [Māori Economic Growth Strategy](#), and the [Tai Tokerau Northland Economic Action Plan](#).

We are grateful to all who contributed to this strategy's development, the result of several thousand hours of input. It is truly a collaborative effort, developed as a pathway that can be used by all in our community.



Our Future

*Papaki kau ana ngā tai ki Te Rēinga,
Ka ao, ka ao, ka awatea.*

E rere ngā tai o ngā moana e rua o Te Moana-tāpokopoko-a-Tāwhaki me Te Moana-nui-a-Kiwa.

Mai i Te Tai Tamatāne ki Te Tai Tamawahine.

Ko Te Taitokerau tēnei, tū te ao, tū te pō.

He rerenga tēnei mō te oranga tonutanga o tō tātou rohe.

He rerenga mai i ngā mātua tūpuna, ki tēnei whakatupunga, rere tonu atu rā ki ngā uri e anga mai nei.

Mai i Te Whakaputanga ki Te Tiriti o Waitangi, tae noa mai ki te ao hurihuri nei.

He rerenga mō te ōhanga, mō te taiao, mō ngā lwi tāngata o Te Taitokerau.

He rerenga wai nō Ranginui, heke ki ngā maunga tapu,

Rere iho rā i ngā kōawaawa o ngā haukāinga, tau atu rā ki ngā tai e rua nei.

E rere nei ko te mauri o te ao tukupū.

E whatua nei ko ngā tini aho ki te rerenga kia ū, kia mau, kia ita.

The rerenga is the flow of the tides where our two oceans join together at Te Rēinga.

We are Taitokerau Northland 2140! We have arrived at our future by design rather than chance.

We know who we are, where we came from and where we are going. We invest time in relationships, which are strong and valued.

We actively uphold our responsibility to Te Tiriti o Waitangi. We recognise that all things are connected and interrelated.

We are explorers, navigators and entrepreneurs who lead change. We keep our gaze on the horizon; the long pathway. Decisions sit with us. We are locally led, regionally enabled, and centrally supported.

We empower our own, to stand tall at home and on the world stage. We have strong succession and a commitment to life-long learning.

We have an unparalleled wellbeing economy that through mātauranga and innovation, protects and works in synch with the planet. Economic activity is informed by our whakapapa relationship to the environment, regulated and informed by local tikanga.

Our businesses trade internationally and are thriving, resilient, globally respected and connected. Māori enterprises are flourishing. We innovate and leverage our uniqueness.

We have affordable spaces and places that work for us and the environment. We travel with ease enjoying robust infrastructure.

We lead in looking after our people and our place, operating with humility and provenance. Our young, our old, our vulnerable, are all nurtured. We achieve our potential and live long lives.

We are a region of hope and commitment to intergenerational, sustainable prosperity and wellbeing. We have thrived along our pathway.

We know generations to come will stand on our shoulders and be proud of the work we have done.

We are Taitokerau!

2040

Our First Milestone

First milestone- change is needed!

Our first milestone at 2040 was chosen to align with the significance of the commemoration of the 200-year anniversary of the signing of Te Tiriti o Waitangi in Te Taitokerau Northland. In this short timeframe, our mission is clear; to purposefully empower a change in the course of our region for the betterment of our people and place. We will determinedly seize opportunities, connections, and capability, while being good guardians.

The high-level plans for the three key themes of Environment, People and Economy were identified through several pieces of work, in conjunction with the Te Rerenga Steering Group. Firstly, a review of the rich strategic kaupapa that has already been undertaken over the last 20 years here in Taitokerau Northland. This then evolved through a series of engagement processes with various organisations, including business and industry, Māori, local government, and individuals via survey and hui.

We have taken the best of existing works such as the Tai Tokerau Northland Economic Action Plan; He Tangata, He Whenua, He Oranga; Taitokerau Destination Management Plan; and Te Purunga ki te Raki Regional Workforce Plan, Ngā Taumata O Te Moana, Long Term Plans and many other Council documents.

Three key missions are identified to drive change in addressing our key challenges, while supporting the realisation of opportunity.

THEME	TE TAIAO OUR ENVIRONMENT	TE TANGATA OUR PEOPLE	TE ŌHANGA OUR ECONOMY
FUTURE STATE	Sustainable environmental stewardship (protect and restore)	Skilled, resilient workforce and workforce pipeline	Fit for purpose, resilient infrastructure and technology that enables productivity
KEY MISSION	Drive innovative solutions building environmental resilience	Grow skills and talent to ensure our people match our exciting growth opportunities	Boost infrastructure and investment to address Northland's infrastructure deficit
OWNER/S	- Central and local government - Private sector - Māori/business/community	MBIE, industry, government, community working together, including tertiary providers	Collaborative and cohesive commitment between the region, Iwi, central and local government and private interests

Wellbeing Logic

Needs and Aspirations of Northlanders

03 | OUR ECONOMY

Support the development of a progressive and successful economy where people of Taitokerau Northland have a raised standard of living comparable to the rest of New Zealand.

02 | OUR PEOPLE

Empower our people to reach their full potential, be in good health and actively engage in the workforce and community, in the place of their choice.

01 | OUR ENVIRONMENT

Develop the environmental foundations and conditions necessary to support a resilient, sustainable environment and a thriving regional economy.

Programme Governance, Implementation, Planning, Monitoring, Evaluation

Programme implementation team plans, develops, delivers, monitors, evaluates, and report to agreed programme plan.



BILLY-G, 19 YEARS OLD

“Move out of the way! Entrepreneurs in the house.”

2040

Outline Programme Implementation Plan: Years 1-10 (across 100+ year programme)

Te Taiao - Our Environment

In 2040 our relationship with the natural world is healthy. Innovative solutions with a circular economy approach are in place, such as energy and waste efficiency, mitigating climate impacts, improving resilience, accelerating the transition to a clean energy future, and addressing social and economic concerns. When utilising natural resources, we ensure development is sustainable and appropriate. We have established mechanisms for best practice that respect and preserve the natural environment. We have preserved open spaces and ensured public access, recognising the value these spaces bring to our communities. [Te Tai Tokerau Climate Adaptation Strategy](#) and Council Long Term Plans have strategically aligned.

We are vigilant in safeguarding our waterways and freshwater supply, [Te Mana o te Wai](#), exemplified by initiatives like Te Taitokerau Water Storage Project [Nga Puna Wai](#) and local government reforms. In our quest for resilience and holistic wellbeing, we acknowledge the importance of melding Western science with indigenous knowledge and practices. Mātauranga Māori has served as a tool facilitating the transition towards a tikanga approach, fostering inclusivity and cultural integrity including policy development.

We have restored and value our connection to the natural environment. Nature has the right to thrive in our region without overuse. Our approach is guided by the aspirations of our people for our treasured home - the natural world. It shapes our planning, strategy, and actionable initiatives, thereby forging a sustainable and thriving future.

OUR ENVIRONMENT Develop the environmental foundations and conditions necessary to support a resilient, sustainable environment and a thriving regional economy				
HIGH-LEVEL ACTIONS	HIGH LEVEL GOALS	DRIVER	YEARS 1-5	YEARS 6-10
1.1 Plan for our natural resources to be utilised sustainably. 1.2 Develop a long-term adaptive roadmap that ensures the region transitions equitably to a thriving net zero emission society by 2050. 1.3 Create a regional best practice Environmental Toolbox. 1.4 Develop a Mātauranga Māori Lead Policy of regional stewardship with regard to the circular economy and Takarangi model. 1.5 Review and reset Arohatia Te Taiao – Flicking the Switch. 1.6 Support the implementation of the Te Tai Tokerau Climate Adaptation Strategy Tai Tokerau Climate Adaptation Strategy .	- Strengthen environmental stewardship, focusing on restoration and doing no further harm. - Innovation highly visible and delivering solutions. - Protect and restore waterways and fresh water supply – Te Mana o te Wai. - Climate resilience, reducing emissions, while developing a light environmental footprint. - Mātauranga Māori led approach, in sync with the natural world, Te Taiao and at the centre of decision making.	Māori, NRC, DoC, TPK, MBIE, MPI, Northland Inc. Private sector, Māori, local & central govt, Top Energy/ Northpower. Māori, industry, community, NRC, DoC. Iwi/Māori, NRC, DoC, community. NRC, DoC, Māori. Councils of Northland, tangata whenua representatives of Councils, Māori.	Mapping of natural resources, consumption, waste generation and mitigation. Long-term adaptive roadmap. Regional best practice Environmental Toolbox. Mātauranga Māori Lead Policy. Refreshed Arohatia Te Taiao. Climate Adaptation Strategy implementation significantly progressed.	Subject to review of value/ effectiveness.

TAMA, 24 YEAR-OLD HAPŪ SPATIAL PLANNER

“We’ve held tight to Te Taiao at the centre of our decision making, we’re thriving!”

2090



Te Tangata - Our People

In 2040 we are bound by a positive narrative that unites us all. We have visible leadership and a united voice for the region when it matters, for the best of everybody. This collective effort nurtures our naturally curious young minds, paving the way for their growth and ensuring a strong succession plan for our future leaders, our rangatahi. Guided by the principles of localism and subsidiarity, decisions that shape our region are made right here on our doorstep, ensuring a deep connection between the choices and the community they impact.

We champion 'place-based' initiatives, empowering our communities and building their capabilities from within. We have created a pathway greater than the sum of its parts. Our approach is simple yet effective: locally led, enabled regionally, and boosted by central support.

As we reimagine our workforce across sectors, we embrace the transformative power of technology, redesigning education solutions. Our workforce transforms into a resilient, sustainable, skilled and highly productive collective. We embrace innovation, future skills pathways, and high-value jobs. Central to our narrative is inclusivity, and the nurturing of our young minds, laying a robust foundation for their future prospects. Through our collective efforts, we forge a path towards a workforce that embodies resilience, sustainability, and productivity ensuring every individual has an equitable opportunity to thrive in the labour market. Accessible to all.

Our aspiration is communities where longevity is matched by quality of life and wellbeing is universal for all. Our mindset has shifted. Innovation knows no bounds. We know nothing changes if nothing changes, so together, we write our future, where the promise of Taitokerau Northland's potential is fulfilled by the hands of its people.

2140

AYDYN, 15, SCHOOL
CAREERS DAY

"In Taitokerau Northland we learn, we lead, we lift, we make a difference in the world and there's no limit to what we can do."



OUR PEOPLE

Empower our people to reach their full potential, be in good health and actively engage in the workforce and community, in the place of their choice.

HIGH-LEVEL ACTIONS	HIGH LEVEL GOALS	DRIVER	YEARS 1-5	YEARS 6-10
2.1 A united voice when it matters for the best of everybody. 2.2 An ecosystem developed which grows good leaders. 2.3 Empowered local decision-making in place – a locally led, regionally enabled, centrally supported approach. 2.4 Transformative education and workforce development so our people can stand connected with confidence and competence anywhere in the world. 2.5 Healthy, secure, and affordable housing solutions appropriate to our people's needs. 2.6 Taitokerau Northland Hauora Health strategy 2040 implemented.	- Strong, cohesive leadership – courageous wayfinders, championing agreed narratives. - Enduring legacies of wellbeing and prosperity in communities. - Access for all to good sustenance, quality education, nature, and healthy affordable homes. - Empowered communities that are connected, resilient and self-determining. - Improved quality of life with equity.	Regional and Local Leadership Forums. Community & Region. Communities, Industry, Local & Central Government. Community working with tertiary education providers, Industry Groups, local & central government Agencies. Community, Industry, Māori, Northland Inc, central and local government. Te Whatu Ora, Community, Industry, Māori, central and local government agencies.	Forums in action achieving positive outcomes. Visible leadership & growing. Increase in locally made decisions. Tertiary infrastructure significantly improved. New service delivery partnerships in place. Whangārei Knowledge precinct. Affordable housing in place. Health Strategy implementation well progressed.	Subject to review of value/ effectiveness.

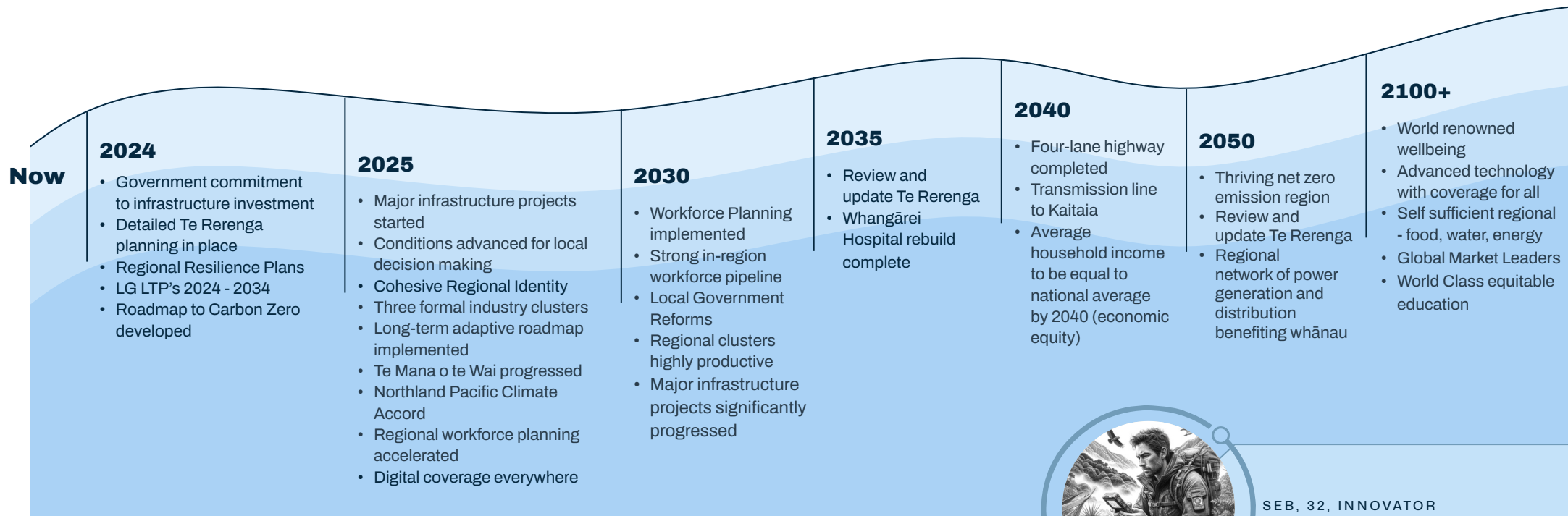
Te Ōhanga - Our Economy

In 2040 our economy is one of opportunity, anchored in a long history of trade, export and entrepreneurship. We embrace innovation, new thinking, research, and development. Our productivity is high. We have embraced technology. We flourish in an enabling, agile, flexible, business-friendly ecosystem. We design and deliver sustainable growth practices, embracing a circular regenerative economy, affirming and developing our own competency frameworks. We have a cohesive global identity and celebrate and promote our unique value proposition. Our Māori economy is thriving supported by an environment that reinforces prosperity and wellbeing.

Collaboration and collective action have attracted long-term investment for resilience of our infrastructure, new and existing - roads, rail, sea/port, air, digital, water and power. We have a four-lane arterial highway - our economic lifeline. We have affordable, accessible connectivity everywhere. We have command of our supply chain. We have our own regional energy network, generating and distributing power, with the benefits going back to our communities. Effective water storage supplies, businesses and community. We are a major enabler of Auckland's rapid growth through our strong high-value manufacturing, energy sectors and natural food supply. Technology has transformed our emerging sectors (advanced transportation, space, digi tech and innovation, aquaculture, renewable energy, high-value foods) and our foundational sectors (agriculture, horticulture, tourism, construction, health and services). Clusters have supported the internationalisation of many of our businesses, industrial transformation, and the development of specialisations within our region. Robust local data supports decision making. We are meeting the needs of our changing demographics such as population growth. We highly value the non-monetised benefits: the pool of expertise, mentorship, shared learnings and transfer of knowledge across generations, available to our region through the voluntary sectors, NGO's, marae, Hapū and Iwi. This contributes to our holistic wellbeing and regional resilience far beyond economic prosperity.

OUR ECONOMY		Support the development of a progressive and successful economy where people of Taitokerau Northland have a raised standard of living comparable to the rest of New Zealand.		
HIGH-LEVEL ACTIONS	HIGH LEVEL GOALS	DRIVER	YEARS 1-5	YEARS 6-10
3.1 Implement a multi decade Resilience Plan for multi modal transport infrastructure, digital connectivity, and energy. Prioritise a four-lane highway Warkworth to Mid-North with all three airports functional. 3.2 Strategic development of key sectors where we have natural advantage including export pathways: Primary sector (agriculture, agritech, horticulture, forestry, fisheries and aquaculture), High Value Manufacturing, Construction, Destination Management, Digital Connectivity/Digitech, Natural Food and Medicinal production, service sector and the blue-green economy. 3.3 Support acceleration and additional resourcing for the implementation of the Tai Tokerau Northland Destination Management Plan (TNDMP). 3.4 Taitokerau Northland positioned for substantial investment for infrastructure and as an enabler for Auckland. 3.5 Develop, foster, and implement Regional Clusters such as mid-north's Ngāwhā Innovation and Enterprise Park. 3.6 Identify and support Social Investment projects with economic wellbeing outcomes.	- Resilient infrastructure and connectivity: fit-for-purpose, integrated, efficient, safe and accessible (Including logistics, energy, digital, land and water). - Economic equity by 2040. - Average household income to be equal to national average by 2040 (economic equity). - The region strongly positioned globally. - Regional identity celebrated & promoted. - Regional clusters lifting prosperity through innovation, entrepreneurship, and collaboration.	Central & local government, private interests (industry), Māori, Regional Transport Committee, Civil Defence, Communities. Industry, Māori, and Northland Inc. TNDMP Leadership Advisory and Working Groups, Northland Inc & industry. Industry, private sector, Northland Inc, Māori, Local & Central Government. Northland Inc, Industry, Māori, Local Government, FNHL, Community. Projects identified and supported.	Resilience Plan 4-lane highway underway. Key priorities progressed. Shared food manufacturing facility completed. TNDMP significantly progressed. Business Case Completed. Initial investment. Initial regional clusters formed.	Subject to review of value/ effectiveness.

Here to There



SEB, 32, INNOVATOR
- LARGE LANDSCAPES

“We’ve achieved the balance between tech and preservation. Progress hasn’t come at the cost of nature.”

2089



Conditions for Success

The shiny nuggets often get the cameo moment and a feel-good, but many don't last the distance. The ingredients for failure are things like lack of resourcing, poor product design, not enough establishment time, inability to test and adapt, lack of visible leadership, complexity with too many players, substandard programme cadence, lack of skills and so the list goes.

But...what do successful projects and successful businesses do to ensure their products and services are sustainable, valued & successful?

What is a critical success factor? It's something we've learned, through experience, that we **MUST HAVE** for Te Rerenga to succeed. These are non-negotiables. It is a specific requirement or factors that must be met or achieved in order for a project, initiative, or strategy to be considered successful.

We apply these critical success factors in all we say and do:

- Visible Leadership
- Locally led decisions, regionally enabled, centrally supported
- Culture of accountability
- Right skills, right time, right people, right place
- Serve Taitokerau Northland whānau at the decision-making tables
- Maximise economic opportunity as a way of achieving social outcomes
- Resourced to succeed, funded to flourish
- Implement lessons learned
- Compelling communication
- Bring in help when needed
- Build local capability

We agree to these as critical to the success of Te Rerenga.



Our Starting Point

Birthplace of a Nation

Taitokerau Northland is located at the northernmost part of Aotearoa New Zealand and holds a significant place in the nation's history as the birthplace of New Zealand. It is home to the nation's first two constitutional documents, He Whakaputanga (1835) and Te Tiriti o Waitangi (1840). These internationally recognised foundations shaped the pathway for the development of the regional economy and played a pivotal role in shaping Aotearoa's identity. This was led by Taitokerau Rangatira through extensive international trade and export agreements, and prior to 1840, were already integral players in the region's economy.

Rich in culture and history, the region boasts a stunning natural environment north of a boundary line that stretches from south-east of Mangawhai across to the Kaipara Harbour and all the way up to New Zealand's northernmost tip, Cape Rēinga. Taitokerau Northland has more than 3,000km of coastline, 1.25 million hectares of land, excellent air quality and an abundance of freshwater.

Leveraging natural advantage

As the northernmost and warmest of Aotearoa New Zealand's 16 regions, Northland is known as the 'Winterless North'. The low elevation and close proximity to the sea result in a mild, subtropical climate and provides a natural advantage. The region is a combination of natural taonga such as golden beaches, secluded coves, breathtaking seascapes, ancient forests, and a rich tapestry of flora and fauna.

Taitokerau Northland's main industries are primary (agriculture, horticulture, forestry, fishing, marine activities), wood processing, tourism, marine engineering, and value-added manufacturing. The deep-water harbour at Whangārei is home to Northport and Channel Infrastructure (formally Refining NZ). Some of the world's most exclusive superyachts have been built in Whangārei. Other industries around the region include cement manufacture, wood products and dairy processing. Over half of the region's land area is used for pastoral farming, while tourism activity in Northland is higher than the national average. Many work in the services industry, which makes up over a third of the region's economy and provides for much of the region's employment, especially in more urban areas such as Whangārei City and towns.

The Māori economy

The Māori economy's distinct tikanga-based approach emphasises intergenerational wellbeing, environmental sustainability, and Rangatiratanga (self-determination). Taitokerau Māori view land, people, and nature as interconnected through whakapapa, demanding responsible stewardship. This approach, a bedrock for Māori success, intertwines cultural values with economic endeavours.

The Taitokerau Māori economy, a blend of developing and developed aspects, plays a pivotal role in regional prosperity. [He Tangata He Whenua He Oranga 2015](#) strategy reflects Māori aspirations for cultural legitimacy and Rangatiratanga. This tikanga-based template focuses on generational and sustainable well-being, upholding Māori self-determination.

To catalyse Māori economic transformation, conversations must align with Māori values. The commitment to the United Nations Declaration on Rights of Indigenous Peoples ensures support for culturally appropriate economic development. Māori rights to maintain spiritual connections with land and resources are affirmed, demanding fair processes from the government.

To unlock Māori economic potential, genuine partnerships, equitable access to education and employment, infrastructure investment, and Treaty case resolutions are crucial. Diversification opportunities in aquaculture, tech, tourism, energy, and agriculture should empower Māori Rangatiratanga. Striking a balance between people, place, assets, and business development is vital for sustainable growth.

The Taitokerau Māori economy, poised for substantial growth, is essential for regional success and future prosperity. Upholding tikanga values, sustainability, and Rangatiratanga in Te Rerenga will intertwine cultural integrity with economic success, shaping the region's resilient and innovative future.

Our Starting Point

Opportunity

While natural resources, including fertile land, forests, and rich fishing grounds, drive economic prosperity, the region faces challenges such as unemployment and poverty. Factors contributing to this include distribution of population, geographic isolation, seasonal industries, lower education levels, and a high proportion of young people facing employment barriers, yet provides an opportunity for improved economic wellbeing. The region is now focusing on lifting economic growth and productivity through boosting innovation, diversifying the economy and shifting economic activity up the value chain. Common threads include building a skilled workforce, increasing international connections and exporting, supporting research and science, deepening capital markets, and investing in infrastructure.

Productivity

Productivity matters for wellbeing. Achieving higher productivity – producing more with what we have (people, knowledge, skills, produced capital, and natural resources) – means there is more to go around for current and future generations. How productive we are impacts our daily lives – for example, what healthcare we can afford, the quality of education available, how much we get paid, the interest rates we pay and how much time off work we can afford. When productivity growth is stronger, real wage growth is stronger too. This may mean that more families can have decent incomes without having to work long hours.

Investment

Recent years have seen investments in infrastructure, including the expansion of the Northland Port and improvements to our transport links. The region is diversifying its economy, particularly in technology and creative sectors, and prioritising environmental sustainability and cultural preservation. We have experienced economic growth driven by population growth, tourism, infrastructure investment, Māori businesses flourishing and the primary sector's contribution. The growth of businesses in the region is mixed, with a large proportion of small businesses, tourism-related ventures, agriculture, forestry, and an emerging technology and innovation sector being key players.

Potential

Taitokerau Northland has huge potential. However, that potential needs to be realised. Increasing inclusion and equitable outcomes require new opportunities for people. Having more people with higher skills has been a long-term battle as the jobs that require high skills are in short supply and often not filled by Northlanders. Taitokerau Northland needs, demand side pull to match all the efforts that locals are making in the labour supply through strengthening educational and training organisations and the mechanisms that support in-work success. The economic engine working better will address long standing inequities.



Our Priority Pipeline

To start Taitokerau Northland on the journey to success, we have identified actions that will drive the initial transformation to a wellbeing economy by 2040.

INFRASTRUCTURE

A multi decade Resilience Plan for multi modal transport infrastructure, energy, water and digital connectivity, with immediate actions identified.

Connecting Taitokerau Northland - *Deliver a Northland Expressway and improvement in major roads*

- Implement a quality transport system connecting Northland to Auckland ensuring roads are safe for our community.
- Northland Expressway (four-lane) from Warkworth to Whangārei
- Resilient State Highways Whangārei to Te Hiku
- Multi modal access from Northport to Auckland
- Roading network across Northland improved and resilient
- New Whangārei Airport development confirmed
- Rail link Auckland north with mid-north logistics hub

CHANGE FOR A RESILIENT ENVIRONMENT

Create resilient infrastructure by improving critical services and ensuring our communities are ready and supported around changes in climate

- Energy - Facilitate renewable energy generation including an upgraded power transmission line Bream Bay to Kaitia, and support of a regional network of power generation and distribution with maximum benefit to consumers
- Water – Support security of water supply for industry and towns/communities, primary sector, and wastewater and waste improvements
- Digital – Improve connectivity, skills and capability, providing equitable and affordable coverage across the region

DESTINATION MANAGEMENT

Enhance the value of our visitor experiences in collaboration with Iwi, Hapū and stakeholders, for the benefit of our communities, businesses, the environment, and future generation

- Acceleration and further resources for the implementation of the Taitokerau Northland [Destination Management Plan](#) including product development, environmental stewardship, marketing, capability, insights, leadership and infrastructure
- Deliver Taitokerau Northland positioning as a cohesive identity – celebrating and promoting our unique value proposition Increase quality visitor accommodation across Northland
- Develop the entertainment precinct in Whangārei's Town Basin

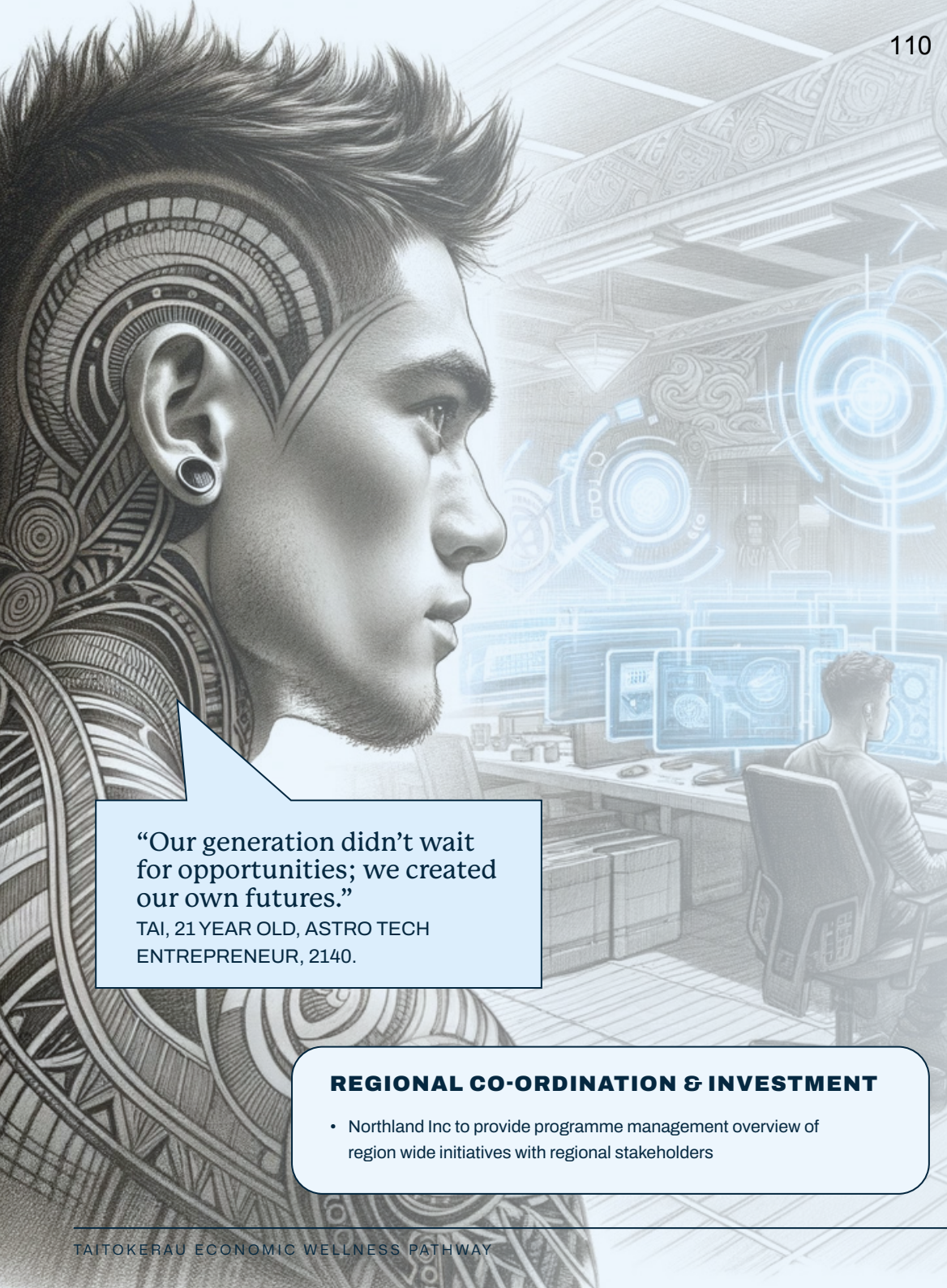
ENVIRONMENT

Protect and enhance the biodiversity & our natural resources through increased investments in innovation & workforce development

- Develop a long-term adaptive roadmap that ensures the people and environment of Taitokerau Northland are resilient in a changing climate and the region transitions equitably to a thriving net zero emission society

“We’ve grown a knowledge-driven economy and share our talents across the globe.”

DAVID, 29 YEAR OLD, 2038



“Our generation didn’t wait for opportunities; we created our own futures.”

TAI, 21 YEAR OLD, ASTRO TECH ENTREPRENEUR, 2140.

REGIONAL CO-ORDINATION & INVESTMENT

- Northland Inc to provide programme management overview of region wide initiatives with regional stakeholders

INVESTMENT

Enable investment into key activities including sector and place-based opportunities

Inward Investment

- Champion inward investment opportunities through Northland Inc’s Landing Pad
- Position through projects, Taitokerau Northland as an enabler of Auckland (particularly northern and western Auckland growth pressure)
- Enable an environment for business growth and export

Sector Based

- Primary Sector - Increase adaption and innovation in the primary sector, land use optimisation and high value-add manufacturing including a shared food manufacturing facility
- Grow the services sector particularly for our urban-based young people
- Support the growth of the natural foods/medicinal sector

Marine Sector

- Install infrastructure to support the growth of marine manufacturing such as the Dry Dock Project
- Realise opportunities to increase market demand for marine manufacturing and refit such as the Inshore Innovation project

Aquaculture

- Maximise the value of aquaculture farms through innovation, extend into high value land-based (expansion of Kingfish) and innovation marine-based initiatives such as spat, algae, seaweeds, mussels

Creative Sector

- Build on the region’s artistic, cultural and heritage strengths, realising benefits that creativity brings to the region

Digital/High Tech Sector

- Deliver on a plan to achieve 100% connectivity, 100% opportunity, affordably, equitably, with skills pathways especially for our rangatahi

Place Based

- Activate distributive economic activity across the region such as Te Hiku, Hokianga, Kawakawa, Kaikohe, Kerikeri, Bay of Islands, Dargaville, Mangawhai, and Whangarei.
- Support economic development of Ngawha Innovation and Enterprise Park and other like centres within Northland
- Support a primary industry-based focus and targeted growth (all of region)
- Support developments in Marsden Point area

ENTERPRISE & INNOVATION

Enable the business and innovation sector with targeted support for Iwi, Hapū and whanau initiatives

- Enable an environment for business growth and export
- Enable Iwi, Hapū and whanau business development and growth
- Negotiate procurement conditions necessary to deliver preferred supplier status for Taitokerau Northland enterprises with all Crown and local government agencies via procurement policy and large-scale contracting

WORKFORCE DEVELOPMENT

To stand connected with confidence and competence anywhere in the world

- Accelerated implementation of workforce planning
- Supporting regional leadership to drive seismic shifts in the Tertiary Sector to empower local and regional decision-making
- Support at speed and scale, filling the pipeline of skills urgently with priority emphasis on economic development
- A high-level programme of workforce needs for all major projects to 2033
- Supporting pilot programmes and 'earn and learn' opportunities across the region, especially for youth, wāhine and those with a disability

EDUCATION

An education ecosystem that delivers equitable, excellent outcomes

- Improved, fit for purpose tertiary infrastructure across Taitokerau Northland
- Progress a knowledge precinct in Whangārei including tertiary programme delivery

HEALTH

People living longer in good health, having improved quality of life with equity between all groups

- High quality services and facilities accessible for all across the region
- Partnerships with those in other sectors to address social and economic drivers of health, and ensure environmental sustainability and thriving, climate-resilient communities
- Assess and deliver on economic development aspects of the Whangārei Hospital rebuild and social impact analysis

HOUSING

Housing – healthy, secure, and affordable solutions

- Support the increase of affordable, healthy housing stock prioritising communities of greatest need
- Ensure associated infrastructure is in place to support housing growth (water, power, roading, open spaces)
- Support the increase of Papakāinga and Māori Housing
- Deliver a business-friendly environment to support equitable housing outcomes
- Advocate for local employment and business development through housing initiatives

“Wellbeing is our ultimate currency. Not just living; but truly thriving.”

KIMI, 23 YEAR-OLD, REGENERATIVE ECONOMY ENTREPRENEUR 2067

Outcome Indicators

As we transition to a wellbeing economy, we will monitor our progress and measure performance over time. A range of indicators are required to guide and assess this progress.

An initial set of indicators across our wellbeing themes of economy, people, and environment have been chosen to show how our region is performing. These have been selected based on the future state for 2040 and because they are currently available.

Consideration has also been given to the suite of indicators used in other wellbeing frameworks both domestically such as New Zealand Treasury and the Waikato Wellbeing Project, and internationally e.g., the OECD and indigenous Takarangi approach.

Some of the indicators can be reported on at a district council level (marked with *) with others able to be reported by ethnicity (marked with ^). It is intended that where a district or ethnic breakdown is available, then commentary on the indicator at this level will be provided in progress reporting.

Limited datasets pose a significant barrier as not all metrics exist, and of those that exist, not all offer the granularity required, especially at a sub-regional or community level. Also, some sector-based data has ceased to be collected over recent years, so we will look to add more indicators once data collectors confirm those future data sets.

This initial set of indicators, which is **‘what we know’** will be further refined as part of the implementation process, including feedback with wider partners and stakeholders, and research. There is a lot that **‘we know now but can’t collect yet’** and then there is **‘what we would like to collect’**.

As we move forward with the strategy, we will develop indicators that tell us where we are making progress and crucially where more interventions are required. In the meantime, we will work with what is available.



MIA, 19 YEAR-OLD COMMUNITY
HEALTHCARE STUDENT

2084

“Smileage’ is our true measure of wealth. The more smiles we share, the more prosperous we become.”

TE TAIAO - OUR ENVIRONMENT

Indicator	Current level	2040 target
Freshwater quality (index)	To be calculated	Improve
Swimming quality (coastal and freshwater)	To be calculated	Improve
Greenhouse gases	4 million tonnes CO2 equivalent	Reduce carbon emission by a minimum of 25% on the path to net carbon zero by 2050
Air quality	To be calculated	Maintain air quality

TE TANGATA - OUR PEOPLE

Indicator	Current level	2040 target
Income inequality*	To be calculated	Decrease over time
Child poverty (% of children living in households with low income)	14%	Decrease to less than 5%
Education level (Total 18-yr olds with a Level 2 qualification or above)*^	78% (National average 82%)	Increase to at least national average
Residential building activity*	1,380	Increase in activity at least matches population growth
Home Affordability Index	39.7%	Reduce to at least national average
Social connectedness	To be calculated	Increase over time

TE ŌHANGA - OUR ECONOMY

Indicator	Current level	2040 target
Productivity (GDP per worker)	\$117,281 (Average real growth over past 5 years 0.2%, decade of 0.8%)	Increase productivity by at 1% per annum in real terms
Economic diversity (HH Index)	23.3	Improve economic diversity shown by a reduction in the HH Index to less than 20
Underutilisation rate	13%	Reduce to less than 10%
Proportion of young people (aged 15-24 years) actively engagement in meaningful employment, education and training (NEET) ^	84%	No less than 95%
Annual mean income from salaries and wages*	\$64,240	Increase 1% per annum in real terms
Business (number of units)*	23,253	Business - Growth at least equal to population growth
Business capital index*	To be calculated	Growth in private sector capital investment of 1% per annum
Maori Unemployment rate	8.5%	Decrease to 5%

Building Momentum

This strategy provides a pathway for Taitokerau Northland's transition to a wellbeing economy. It represents high-trust collaborative partnerships between businesses, industries, Iwi, Pakihi Māori, communities, local and central government. It belongs to all of us. Each has a part to play.

A key priority will be Taitokerau Northland's leadership platform vigorously advocating with a united voice for investment into crucial regional priorities, to the new government. The Joint Regional Economic Development Committee (JREDC) of Northland Local Government will revise the governance and Steering Groups of Te Rerenga and other plans, to ensure an appropriate leadership model is in place. The region has successful models to draw from, such as the Tai Tokerau Economic Action Plan (TTNEAP). Northland Inc will provide the Secretariat role to support and advise the governance group and engage a Project Implementation Team.

The initial work plan will run from May 2024 to October 2024

Immediate actions for Northland Inc working with regional leadership to October 2024:

- A leadership model in place for governance of the strategy implementation
- Funding and resources secured to stand up a Project Team (PMO) within Northland Inc to drive the strategy implementation for the long-term, and administrate and support governance
- Potential public and private funds identified to deliver the first of the initiatives in the priority pipeline
- A detailed work programme, regionally agreed with action owners confirmed
- Regional outcomes and indicators confirmed
- Ongoing delivery of Tai Tokerau Northland Economic Action Plan, Destination Management Plan and workforce projects

Beyond October 2024:

- Priority pipeline projects in delivery supported by public and private funds
- Identify new opportunities for a regional wellbeing economy.
- Report back on progress

We have taken all necessary steps to ensure that the information and viewpoints presented in this Strategy are accurate and reliable. Northland Inc will provide regular updates on their website to include key engagements or related events.

If you would like to be involved in Te Rerenga implementation, please email: tererenga@northlandnz.com



2083

TUI, 25 YEAR OLD
GUIDE

“Empowered
people,
empowered
planet; harmony.”

Acknowledgements & Membership

Special thanks and acknowledgements to all who have contributed to the development of Te Rerenga Taitokerau Northland Economic Wellbeing Pathway. This project was overseen by a Steering Group of Taitokerau Northland leaders, who have provided insights and direction. We thank them, along with our four Councils', the Project Team, supporting organisations, business and industry, community, individuals and agencies, for their involvement. This strategy would not exist without your contribution.

This project would not have been possible without the financial support of Kānoa, Ministry of Social Development; Whangarei District Council and Northland Inc.

A special acknowledgment to those who embrace Te Rerenga and commit to bring it to life. Through courage and collaboration, we can uplift the economic wellbeing of Taitokerau Northland and create a legacy of unity - of our environment, our people, and our economy.

Te Rerenga Steering Group members include:



Harry Burkhardt
TE RERENGA CO-CHAIR
Te Kahu o Taonui



Blanche Morrogh
TE RERENGA CO-CHAIR
Managing Director,
Kai Ora Honey Ltd



Carol Berghan
CHIEF EXECUTIVE
Te Hiku Iwi
Development Trust



Nicole Anderson
IMMEDIATE PAST
CHAIR
of Northland Inc



Shane Witehira
SENIOR ADVISOR
Te Puni Kōkiri, Ministry for
Māori Development



John Vujcich
CHAIR
Joint Regional Economic Development
Committee(JREDC) and Far North
District Councillor Kaikohe-Hokianga
General Ward



Lindsay Faithfull
MANAGING DIRECTOR
McKay Group



Kathryn de Bruin
DIRECTOR
De Bruin Chartered Accountants
Director of HortNZ



Justice Hetaraka
DIRECTOR
of Hā



Mihi Harris
CO- CHAIR
of Waima Topu B Ahu
Whenua Trust



Penetaui Kleskovic
DEPUTY CHAIR
of JREDC and Far North District
Councillor Ngā Tai o Tokerau
Māori Ward



Tania McInnes
DIRECTOR
of GBT Ventures Ltd



Eru Lyndon
FORMER REGIONAL PUBLIC
SERVICE COMMISSIONER
TE TAITOKERAU
Kaitautoko

HE TAKI - A CHALLENGE!

*Mā te wawata, mā te tūmanako, mā te kotahitanga
Tātou whakakaha ake ai i te whai rawa, i te whai hua,
Kia ora ai te tangata, te whenua, me te ao whānui.
Ko te oranga toitū te kaupapa matua e whāia nei.*

*With aspiration, determination, and unity,
We will enhance prosperity and fruitful endeavours,
To uplift the people, the land, and the wider environment.
Sustainable wellbeing is the core principle to pursue.*

*Te tiaki i ngā taonga tuku iho,
Me anga mua tātou, kia ū ki te kotahitanga,
Hei whakatairanga i te oranga ōhanga,
E takatū nei Te Rerenga hei huarahi mō tātou katoa.*

*Nurturing our ancestral natural resources,
Let us move forward, embracing a holistic approach,
To promote economic wellbeing,
Te Rerenga stands as a pathway for us all.*



Friday 19 July 2024

Mayor Moko Tepania

Far North District Council

Mayor Vince Cocurullo

Whangārei District Council

Mayor Craig Jepson

Kaipara District Council

Chair Geoff Crawford

Northland Regional Council

John Vujcich

Chair Joint Economic Development Committee

Chief Executive Paul Linton

Northland Inc.

E ngā mana, e ngā reo, tēnā koutou katoa

RE: TE KAHU O TAONUI ENDORSEMENT OF TE RERENGA: TAI TOKERAU ECONOMIC WELLBEING PATHWAY

We are pleased to advise that Te Kahu o Taonui collective of Iwi endorse Te Rerenga – Tai Tokerau Economic Wellbeing Pathway and we look forward to working together to tautoko and activate the aspirations in the strategy for the betterment of Te Tai Tokerau.

Ngā manaakitanga, nā

Harry Burkhardt
Co-Chairperson
Te Kahu o Taonui

Aperahama Edwards
Co-Chairperson
Te Kahu o Taonui

7.5 Amendments to Council's Standing Orders

Meeting: Whangarei District Council
Date of meeting: 26 September 2024
Reporting officer: C Brindle (Senior Democracy Adviser)

1 Purpose / Te Kaupapa

To obtain Council's agreement to amend its Standing Orders to align with recent legislative changes, to approve additional discretionary Standing Orders and to highlight the conditions around the use of digital devices at formal meetings of council and its committees.

2 Recommendations / Whakataunga

That the Council;

1. Note the report and approve the following legislative amendments to its Standing Orders that were adopted by Council on 15 December 2022:
 - i. **13.8 Member's status: quorum** (page 35)
 Members who attend meetings by electronic link will be counted as present for the purposes of a quorum. *cl.25A(4) Schedule 7, LGA 2002.*
 - ii. **Definition - delete** the definition '*Present at the meeting to constitute a quorum*'. (page 14)
 - iii. **11.1 Council meetings** (page 32)
 The quorum for a meeting of the council is:
 - (a) Half of the members ~~physically~~ present, where the number of members (including vacancies) is even;
 - (b) A majority of the members ~~physically~~ present, where the number of members (including vacancies) is odd.
 - iv. **13.9: Member's status: voting** (page 36)
 13.9 Where a meeting has a quorum, determined by the number ~~physically~~ present, the members attending by electronic link can vote on any matters raised at the meeting.
2. Approve the following discretionary amendments to its Standing orders (to be taken in parts):
 - v. **13.1 Members right to attend meetings** (page 34)
Public excluded: Members physically present at the meeting, should remain in the room during public excluded business, unless granted leave from the Chair, or are leaving the room having declared a conflict of interest.
 - vi. **13.7 Right to attend via audio or audio visual link** (page 35)
 Members attending via audio or audio visual link must display on screen.

vii. **13.13 Chairperson may terminate link** (page 37)

(f) [Where] The Member is not displaying visually on screen.

viii **14.2 Chairperson's role in meetings (Other meetings)** (page 38)

The Chairperson may agree to vacate the Chair to enable the Deputy Chairperson to chair the meeting at pre-agreed times. Where this occurs, the Chairperson will need to formally vacate the Chair at the start of each meeting that it is pre-agreed the Deputy Chair will chair, and this must be recorded in the minutes of that meeting. The Chairperson is then able to be present, and participate in the meeting, including voting, while not chairing the meeting.

3. Note Standing Order 20.11, use of digital devices at meetings:

20.11 Electronic devices at meetings (page 47)

Members use of digital devices is limited to the sole purpose of accessing notes and agendas.

3 Background / Horopaki

The purpose of this report is to obtain Council's agreement both to amend the Standing orders to align with the recent legislative change that allows remote participation at Council meetings counting towards a quorum; and to make several discretionary changes specifically the interpretation of SO 14.2 Chairperson's role in meetings (vacating the chair and remaining in the meeting) and SO 13.13 Members attending electronically.

Any amendments to Standing Orders must be made by Council and by a vote of not less than 75% of the Members present (Clause 27(3) Schedule 7 LGA 2002).

3.1 Legislative change (and consequential changes)

13.8 Member's status: quorum

On Wednesday 30 August 2023, the Local Government Legislation Bill received royal assent. The Electoral Legislation Act 2023 (the Act) changed the definition of a quorum, as defined in the Local Government Act 2022, for councils that allow remote participation.

The specific change makes it clear that anyone joining a meeting by audio visual means is to be counted towards the quorum.

In response to COVID-19 and Cyclone Gabrielle the Government allowed Members who attended council meetings remotely to be counted towards quorum requirements. The Act now makes this change permanent and enables councils to manage remote participation through their standing orders.

The Change will come into effect on 1 October 2024 which is when the temporary settings for severe weather allowances expire on 30 September 2024. Councils will have to amend their standing orders by 1 October 2024 to allow for remote participation.

The legislative provisions in Council's Standing Orders that need to be amended are:

- Clause 13.8 – Members' status: quorum (page 35)

Consequential changes required are:

- Definition - Present at the meeting to constitute quorum (page 14)
- Clause 11.1 – Council meetings (page 32)

- Clause 13.9 – Members’ status: voting (page 35)

The recommended changes are:

- **13.8 Member’s status: quorum**
Members who attend meetings by electronic link will be counted as present for the purposes of a quorum. *cl.25A(4) Schedule 7, LGA 2002.*
- **Delete** the definition ‘Present at the meeting to constitute a quorum’.
- **Amend Clause 11.1 Council meetings**, by deleting the word “*physically*” in sub-clauses ‘a’ and ‘b’.

“The quorum for a meeting of the council is:

(c) Half of the members ~~physically~~ present, where the number of members (including vacancies) is even;

(d) A majority of the members ~~physically~~ present, where the number of members (including vacancies) is odd.”

- **Amend Clause 13.9: Member’s status: voting**, by deleting the word “*physically*”

13.9 Where a meeting has a quorum, determined by the number ~~physically~~ present, the members attending by electronic link can vote on any matters raised at the meeting.

3.2 Discretionary changes proposed

Council may adopt additional Standing Orders to provide guidance on discretionary matters while ensuring they are consistent with current legislation. Council can choose a practice that best meets the need of their decision-making process. The proposed changes are outlined below.

Standing order		Explanation	Options
13.1	Members right to attend meetings – remain in room during public excluded <i>Page 34</i>	Including this SO protects against perceived confidentiality breach	<u>Option 1:</u> It is recommended to include the following under Standing Order 13.1: <i>Members physically present should, unless granted leave from the Chair, remain in the room during public excluded business.</i> <u>Option 2:</u> status quo.
13.7 & 13.13	Attending via audio visual link – displaying on screen Chairperson may terminate link	SO 13.7 makes it clear that remote attendance is permitted so long as certain conditions are satisfied. <i>Page 35</i>	<u>Option 1:</u> It is recommended to include the following under Standing Order 13.7: <i>Members attending by audio or audio visual link must display on screen.</i>

		SO 13.13 gives the circumstances under which a Chairperson may direct a link be terminated. <i>Page 37</i> All members must be able to hear (and ideally see), and in turn be heard and seen.	And to incorporate the following under Standing Order 13.13 (d) – Chairperson may terminate link where: <i>(e) Information classified as confidential may be compromised.</i> <i>(f) The member is not displaying visually on screen.</i> <u>Option 2:</u> status quo: Chairperson to decide all procedural questions where insufficient provision is made in Standing Orders.
14.2	Other meetings Chairperson may vacate the chair <i>Page 38</i>	Including this SO makes it explicit that vacating the chair means the chair can still be present and participate in the meeting as a member. This enables a deputy chair to chair a meeting on occasion even when the chair is in the room. The person chairing the meeting has the powers set out in standing orders including the option to use the casting vote in the case of equality of votes.	<u>Option 1:</u> It is recommended to include the following under Standing Order 14.2: <i>The Chairperson may agree to vacate the Chair to enable the Deputy Chairperson to chair the meeting at pre-agreed times. Where this occurs, the Chairperson will need to formally vacate the Chair at the start of each meeting that it is pre-agreed the Deputy Chair will chair, and this must be recorded in the minutes of that meeting. The Chairperson is then able to be present, and participate in the meeting, including voting, while not chairing the meeting.</i> <u>Option 2:</u> status quo. Chairperson to decide all procedural questions where insufficient provision is made in Standing Orders.
20.11	Electronic devices at meetings	SO 20.11 provides that electronic devices and phones can only be used at council meetings to access notes and agendas to advance the business of the meeting.	<u>Option 1:</u> status quo. Members can only use electronic devices and phones at meetings to access notes and agendas to advance the business of the meeting. Personal use by exception.

		Personal use may only occur at the discretion of the chair. This Standing Order highlights that the use of electronic devices and phones during formal council meetings, is limited to accessing notes and agendas to advance the business of the meeting this will ensure the provisions of LGOIMA in terms of operating in an open and transparent way; and the Public Records Act, in terms of principle of availability, are complied with. The use of digital communications during council meetings opens additional channels to influence Members immediately during a vote, potentially leading to a lack of transparency. Attached is an extract from Council Briefing Agenda 2 November 2022, general explanation of the laws affecting Elected Members. <i>Page 47</i>	<u>Option 2:</u> Council could consider including the following additional condition under Standing Order 20.11 – Electronic devices at meetings: <i>The use of digital communication such as e-mail, texting and messaging by Members is prohibited by Members during formal council meetings (open and public excluded).</i>
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4 Discussion / Whakawhiti kōrero

It is important that Council ensure their Standing Orders are up to date to meet their legislative obligations and responsibilities and that the conduct at meetings reflect respectful and orderly conduct.

Should Council approve the amendments to its Standing orders these will be finalised, distributed to members, including appointed members, and published on the Council's website.

All of the proposed changes are highlighted in the attached Whangarei District Council's Standing Orders.

5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via Agenda publication on the website.

6 Attachments / Nga Tapiritanga

1. WDC Standing Orders – proposed changes highlighted
2. Extract from Council Briefing Agenda 2 November 2022 – General Explanation of Laws Affecting Elected Members

Standing Orders

Ngā Tikanga Whakahaere Hui

Adopted: 15 December 2022



Preface/Kupu whakapuaki

Standing orders contain rules for the conduct of the proceedings of local authorities, committees, subcommittees, subordinate decision-making bodies, and local and community boards. Their purpose is to enable local authorities to exercise their decision-making responsibilities in a transparent, inclusive, and lawful manner.

In doing so the application of standing orders contributes to greater public confidence in the quality of local governance and democracy in general.

These standing orders have been designed specifically for local authorities, their committees, subcommittees, subordinate decision-making bodies, and local and community boards. They fulfil, with regard to the conduct of meetings, the requirements of the Local Government Act 2002 (LGA 2002) and the Local Government Official Information and Meetings Act 1987 (LGOIMA).

Although it is mandatory that local authorities adopt standing orders for the conduct of their meetings, it is not necessary that they are adopted every triennium. However, LGNZ recommends that every council, committee, subordinate body and local and community board review their standing orders within at least the first six months following an election to ensure that they fully meet their needs for effective and inclusive meetings (see LGA 2002, sch 7, cl 27).

For clarity's sake whenever a question about the interpretation or application of these Standing Orders is raised, particularly where a matter might not be directly provided for, it is the responsibility of the chairperson of each meeting to make a ruling.

All members of a local authority must abide by standing orders.

Contents/Ihirangi

1. Introduction	10
1.1 Principles	10
1.2 Statutory references	11
1.3 Acronyms	11
1.4 Application	11
2. Definitions	11
General matters/Ngā take whānui	17
3. Standing orders	17
3.1 Obligation to adopt standing orders	17
3.2 Process for adoption and alteration of standing orders	17
3.3 Members must obey standing orders	17
3.4 Application of standing orders	17
3.5 Temporary suspension of standing orders	17
3.6 Quasi-judicial proceedings	18
3.7 Physical address of members	18
4. Meetings	18
4.1 Legal requirement to hold meetings	18
4.2 Meeting duration	18
4.3 Language	18
4.4 Webcasting meetings	19
4.5 First meeting (inaugural)	19
4.6 Requirements for the first meeting	19
5. Appointments and elections	20
5.1 Mayoral appointment of deputy Mayor, committee chairs and members	20
5.2 Council Discharge of a Mayoral Appointment	20
5.3 Establishment of committees by the Mayor	20
5.4 Elections of regional chairpersons, deputy Mayors and deputy chairpersons	21
5.5 Removal of a deputy Mayor	21
5.6 Voting system for chairs, deputy Mayors and committee chairs	21
6. Delegations	22
6.1 Duty to consider delegations to community boards	22
6.2 Limits on delegations	22
6.3 Committees may delegate	23
6.4 Use of delegated powers	23
6.5 Decisions made under delegated authority cannot be rescinded or amended	23
6.6 Committees and sub committees subject to the direction of the local authority	23

7. Committees	23
7.1 Appointment of committees and subcommittees	23
7.2 Discharge or reconstitution of committees and subcommittees	24
7.3 Appointment or discharge of committee members and subcommittee members	24
7.4 Elected members on committees and subcommittees	24
7.5 Local authority may replace members if committee not discharged	24
7.6 Membership of Mayor	25
7.7 Decision not invalid despite irregularity in membership	25
7.8 Appointment of joint committees	25
7.9 Status of joint committees	25
7.10 Power to appoint or discharge individual members of a joint committee	25
Pre-meeting/I mua i te hui	26
8. Giving notice	26
8.1 Public notice – ordinary meetings	26
8.2 Notice to members - ordinary meetings	26
8.3 Extraordinary meeting may be called	26
8.4 Notice to members - extraordinary meetings	26
8.5 Emergency meetings may be called	27
8.6 Process for calling an emergency meeting	27
8.7 Public notice – emergency and extraordinary meetings	27
8.8 Meetings not invalid	27
8.9 Resolutions passed at an extraordinary meeting	28
8.10 Meeting schedules	28
8.11 Non-receipt of notice to members	28
8.12 Meeting cancellations	28
9. Meeting agenda	29
9.1 Preparation of the agenda	29
9.2 Process for raising matters for a decision	29
9.3 Chief executive may delay or refuse request	29
9.4 Order of business	29
9.5 Chairperson's recommendation	29
9.6 Chairperson may prepare report	30
9.7 Public availability of the agenda	30
9.8 Public inspection of agenda	30
9.9 Withdrawal of agenda items	30
9.10 Distribution of the agenda	30
9.11 Status of agenda	31

9.12	Items of business not on the agenda which cannot be delayed	31
9.13	Discussion of minor matters not on the agenda	31
9.14	Public excluded business on the agenda	31
9.15	Qualified privilege relating to agenda and minutes	31
	Meeting Procedures/Ngā Tikanga Hui	32
10.	Opening and closing	32
11.	Quorum	32
11.1	Council meetings	32
11.2	Committees and subcommittee meetings	32
11.3	Joint Committees	32
11.4	Requirement for a quorum	33
11.5	Meeting lapses where no quorum	33
11.6	Business from lapsed meetings	33
12.	Public access and recording	33
12.1	Meetings open to the public	33
12.2	Grounds for removing the public	33
12.3	Local authority may record meetings	34
12.4	Public may record meetings	34
13.	Attendance	34
13.1	Members right to attend meetings	34
13.2	Attendance when a committee is performing judicial or quasi-judicial functions	34
13.3	Leave of absence	35
13.4	Apologies	35
13.5	Recording apologies	35
13.6	Absent without leave	35
13.7	Right to attend by audio or audiovisual link	35
13.8	Member's status: quorum	35
13.9	Member's status: voting	36
13.10	Chairperson's duties	36
13.11	Conditions for attending by audio or audiovisual link	36
13.12	Request to attend by audio or audiovisual link	36
13.13	Chairperson may terminate link	37
13.14	Giving or showing a document	37
13.15	Link failure	37
13.16	Confidentiality	37
14.	Chairperson's role in meetings	37
14.1	Council meetings	37

14.2	Other meetings	38
14.3	Addressing the chairperson	38
14.4	Chairperson's rulings	38
14.5	Chairperson standing	38
14.6	Member's right to speak	38
14.7	Chairperson may prioritise speakers	38
15.	Public Forums	40
15.1	Time limits	40
15.2	Restrictions	40
15.3	Questions at public forums	40
15.4	No resolutions	40
16.	Deputations	41
16.1	Time limits	41
16.2	Restrictions	41
16.3	Questions of a deputation	41
16.4	Resolutions	41
17.	Petitions	42
17.1	Form of petitions	42
17.2	Petition presented by petitioner	42
17.3	Petition presented by member	42
18.	Exclusion of public	42
18.1	Motions and resolutions to exclude the public	42
18.2	Specified people may remain	43
18.3	Public excluded items	43
18.4	Non-disclosure of information	43
18.5	Release of information from public excluded session	44
19.	Voting	44
19.1	Decisions by majority vote	44
19.2	Open voting	44
19.3	Chairperson has a casting vote	44
19.4	Method of voting	44
19.5	Calling for a division	45
19.6	Request to have votes recorded	45
19.7	Members may abstain	45
20.	Conduct	45
20.1	Calling to order	45
20.2	Behaviour consistent with Code of Conduct	45
20.3	Retractions and apologies	45

20.4	Disorderly conduct	46
20.5	Contempt	46
20.6	Removal from meeting	46
20.7	Financial conflicts of interests	46
20.8	Non-financial conflicts of interests	47
20.9	Qualified privilege for meeting proceedings	47
20.10	Qualified privilege additional to any other provisions	47
20.11	Electronic devices at meetings	47
21.	General rules of debate	48
21.1	Chairperson may exercise discretion	48
21.2	Time limits on speakers	48
21.3	Questions to staff	48
21.4	Questions of clarification	48
21.5	Members may speak only once	48
21.6	Limits on number of speakers	48
21.7	Seconder may reserve speech	49
21.8	Speaking only to relevant matters	49
21.9	Restating motions	49
21.10	Criticism of resolutions	49
21.11	Objecting to words	49
21.12	Right of reply	49
21.13	No other member may speak	50
21.14	Adjournment motions	50
21.15	Chairperson's acceptance of closure motions	50
22.	General procedures for speaking and moving motions	50
22.1	Options for speaking and moving	50
22.2	Option A	51
22.3	Option B	51
22.4	Option C	51
23.	Motions and amendments	52
23.1	Proposing and seconding motions	52
23.2	Motions in writing	52
23.3	Motions expressed in parts	52
23.4	Substituted motion	52
23.5	Amendments to be relevant and not direct negatives	52
23.6	Foreshadowed amendments	53
23.7	Carried amendments	53
23.8	Lost amendments	53

23.9	Where a motion is lost	53
23.10	Withdrawal of motions and amendments	53
23.11	No speakers after reply or motion has been put	53
24.	Revocation or alteration of resolutions	54
24.1	Member may move revocation of a decision	54
24.2	Revocation must be made by the body responsible for the decision	54
24.3	Requirement to give notice	54
24.4	Restrictions on actions under the affected resolution	54
24.5	Revocation or alteration by resolution at same meeting	55
24.6	Revocation or alteration by recommendation in report	55
25.	Procedural motions	55
25.1	Procedural motions must be taken immediately	55
25.2	Procedural motions to close or adjourn a debate	55
25.3	Voting on procedural motions	56
25.4	Debate on adjourned items	56
25.5	Remaining business at adjourned meetings	56
25.6	Business referred to the council, committee or local or community board	56
25.7	Other types of procedural motions	56
26.	Points of order	56
26.1	Members may raise points of order	56
26.2	Subjects for points of order	56
26.3	Contradictions	57
26.4	Point of order during division	57
26.5	Chairperson's decision on points of order	57
27.	Notices of motion	57
27.1	Notice of intended motion to be in writing	57
27.2	Refusal of notice of motion	57
27.3	Mover of notice of motion	58
27.4	Alteration of notice of motion	58
27.5	When notices of motion lapse	58
27.6	Referral of notices of motion	58
27.7	Repeat notices of motion	58
28.	Minutes	59
28.1	Minutes to be evidence of proceedings	59
28.2	Matters recorded in minutes	59
28.3	No discussion on minutes	60
28.4	Minutes of last meeting before election	60

29. Keeping a record	60
29.1 Maintaining accurate records	60
29.2 Method for maintaining records	60
29.3 Inspection	60
29.4 Inspection of public excluded matters	61
Referenced documents	62
Appendix 1: Grounds to exclude the public	63
Appendix 2: Sample resolution to exclude the public	65
Appendix 3: Motions and amendments (Option A)	68
Appendix 4: Motions and amendments (Option B)	69
Appendix 5: Motions and amendments (Option C)	70
Appendix 6: Table of procedural motions	71
Appendix 7: Webcasting protocols	73
Appendix 8: Powers of a Chairperson	74
Appendix 9: Process for removing a chairperson or deputy Mayor from office	79
Appendix 10: Sample order of business	80
Appendix 11: Process for raising matters for a decision	81

1. Introduction/Kupu Whakataki

These standing orders have been prepared to enable the orderly conduct of local authority meetings. They incorporate the legislative provisions relating to meetings, decision making and transparency. They also include practical guidance on how meetings should operate so that statutory provisions are complied with and the spirit of the legislation fulfilled.

To assist elected members and officials the document is structured in three parts:

- Part 1 deals with general matters.
- Part 2 deals with pre-meeting procedures.
- Part 3 deals with meeting procedures.

The Appendix, which follows Part 3, provides templates and additional guidance for implementing provisions within the Standing Orders. Please note, the Appendix is an attachment to the Standing Orders and not part of the Standing Orders themselves, consequently amendments to the Appendix do not require the agreement of 75% of those present. In addition the 'Guide to Standing Orders' provides additional advice on the application of the Standing Orders and are also not part of the Standing Orders.

1.1 Principles/Ngā Mātāpono

Standing orders are part of the framework of processes and procedures designed to ensure that our system of local democracy and in particular decision-making within local government is transparent and accountable. They are designed to give effect to the principles of good governance, which include that a local authority should:

- Conduct its business in an open, transparent and democratically accountable manner;
- Give effect to its identified priorities and desired outcomes in an efficient and effective manner;
- Make itself aware of, and have regard to, the views of all of its communities;
- Take account, when making decisions, of the diversity of the community, its interests and the interests of future communities as well;
- Ensure that any decisions made under these Standing Orders comply with the decision-making provisions of Part 6 of the LGA 2002; and
- Ensure that decision-making procedures and practices meet the standards of natural justice.

These principles are reinforced by the requirement that all local authorities act so that “governance structures and processes are effective, open and transparent” (LGA 2002, s 39).

1.2 Statutory references/Ngā tohutoro ā-ture

The Standing Orders consist of statutory provisions about meetings along with guidance on how those provisions should be applied in practice. Where a statutory provision has been augmented with advice on how it might be implemented the advice (so as not to confuse it with the statutory obligation) is placed below the relevant legislative reference. In some cases the language in the statutory provision has been modernised for ease of interpretation or amended to ensure consistency with more recently enacted statutes.

It is important to note that statutory references in the Standing Orders apply throughout the period of a meeting, regardless of whether or not parts or all of the Standing Orders have been suspended. These provisions must also be carried through into any amendment of the Standing Orders that might be made. Please note, where it is employed the word 'must', unless otherwise stated, identifies a mandatory legislative requirement.

1.3 Acronyms/Ngā kupu rāpoto

LGA 2002	Local Government Act 2002
LGOIMA	Local Government Official Information and Meetings Act 1987
LAMIA	Local Authorities (Members' Interests) Act 1968

1.4 Application/Te hāngaitanga

For the removal of any doubt these Standing Orders do not apply to workshops or meetings of working parties and advisory groups, unless specifically included in their terms of reference.

2. Definitions/Ngā whakamārama

Adjournment means a break in the proceedings of a meeting. A meeting, or discussion on a particular business item, may be adjourned for a brief period, or to another date and time.

Advisory group means a group of people convened by a local authority for the purpose of providing advice or information that is not a committee or subcommittee. These Standing Orders do not apply to such groups. This definition also applies to workshops, working parties, working group, panels, forums, portfolio groups, briefings, and other similar bodies.

Agenda means the list of items for consideration at a meeting together with reports and other attachments relating to those items in the order in which they will be considered. It is also referred to as an 'order paper'.

Amendment means any change of proposed change to the original or substantive motion.

Appointed member means a member of a committee, or subsidiary organisation of a council, who is not elected.

Audio link means facilities that enable audio communication between participants at a meeting where one or more of the participants is not physically present at the place of the meeting.

Audiovisual link means facilities that enable audiovisual communication between participants at a meeting when one or more of them is not physically present at the place of the meeting.

Chairperson means the person in a position of authority in a meeting or other gathering, also known as the presiding member.

Chief executive means the chief executive of a territorial authority or regional council appointed under s 42 of the LGA 2002, and includes, for the purposes of these Standing Orders, any other officer authorized by the chief executive.

Clear working days means the number of working days (business hours) prescribed in these Standing Orders for giving notice and excludes the date of the meeting and date on which the notice is served.

Committee includes, in relation to a local authority:

- (a) A committee comprising all the members of that authority;
- (b) A standing committee or special committee appointed by that authority;
- (c) A joint committee appointed under cl 30A of sch 7 of the LGA 2002; and
- (d) Any subcommittee of a committee described in (a), (b) and (c) of this definition.

Community board means a community board established under s 49 of the LGA 2002.

Conflict of Interest means any pecuniary interest and any interest arising because of that person's position as a trustee, director, officer, employee, or member of another body or because of any personal non-pecuniary interest, such as pre-determination or bias.

Contempt means being disobedient to, or disrespectful of, the chair of a meeting, or disrespectful to any members, officers, or the public.

Council means, in the context of these Standing Orders, the governing body of a local authority.

Debate means discussion by members that occurs once a motion has been moved/seconded

Deputation means a request from any person or group to make a presentation to the local authority which is approved by the Chairperson and which may be made in English, te reo Māori or New Zealand Sign Language.

Division means a formal vote at a Council, committee or subcommittee meeting whereby the names of those members present, including the mayor/chair, are formally recorded as voting either for or against. This includes a vote where the names and votes are recorded electronically.

Electronic link means both an audio and audiovisual link.

Emergency meeting has the same meaning as defined in cl 22A of sch 7 of the LGA 2002.

Extraordinary meeting has the same meaning as defined in cl 22 of sch 7 of the LGA 2002.

Foreshadowed motion means a motion that a member indicates their intention to move once the debate on a current motion or amendment is concluded.

Internet site means, in relation to a local authority or other person or entity, an Internet site that is maintained by, or on behalf of, the local authority, person, or entity and to which the public has free access.

Item means a substantive matter for discussion at a meeting.

Leave of the meeting means agreement without a single member present dissenting.

Joint committee means a committee in which the members are appointed by more than one local authority in accordance with cl 30A of sch 7 of the LGA 2002.

Karakia timatanga means an opening prayer.

Karakia whakamutunga means a closing prayer.

Lawfully excluded means a member of a local authority who has been removed from a meeting due to behaviour that a Chairperson has ruled to be contempt.

Leave of absence means a pre-approved absence for a specified period of time consistent with the council policy should one be in place.

Local authority means in the context of these Standing Orders a regional council or territorial authority, as defined in s 5 of the LGA 2002, which is named in these Standing Orders, and any subordinate decision-making bodies established by the local authority.

Mayor means the Mayor of a territorial authority elected under the Local Electoral Act 2001.

Meeting means any first, inaugural, ordinary, extraordinary, or emergency meeting of a local authority, subordinate decision-making bodies and any community or local board of the local authority convened under the provisions of LGOIMA.

Member means any person elected or appointed to the local authority.

Member of the Police means a Constable of the New Zealand Police within the definition of s 4 of the Policing Act 2008.

Mihi whakatau means a brief welcome typically delivered by one person without any further formalities.

Minutes means the record of the proceedings of any meeting of the local authority.

Motion means a formal proposal to a meeting.

Mover means the member who initiates a motion.

Newspaper means a periodical publication published (whether in New Zealand or elsewhere) at intervals not exceeding 40 days, or any copy of, or part of any copy of, any such publications; and

this includes every publication that at any time accompanies and is distributed along with any newspaper.

Notice of motion means a motion given in writing by a member in advance of a meeting in accordance with, and as provided for, in these Standing Orders.

Officer means any person employed by the council either full or part time, on a permanent or casual or contract basis.

Pecuniary Interest includes any interest described in s 3 and 6 of the Local Authorities (Members Interests) Act 1968.

Open voting means voting that is conducted openly and in a transparent manner (i.e. enables an observer to identify how a member has voted on an issue) and may be conducted by electronic means. The result of the vote must be announced immediately it has concluded. Secret ballots are specifically excluded.

Order paper means the list of items for consideration at a meeting together with reports and other attachments relating to those items set out in the order in which they will be considered. An order paper is also referred to as an agenda.

Ordinary meeting means any meeting, other than the first meeting, of a local authority publicly notified in accordance with ss 46(1) and (2) of LGOIMA.

Petition means a request to a local authority which contains at least 20 signatures.

Powhiri means a formal welcome involving a Karanga from the Tangata Whenua (the home people) followed by formal speech making. A Powhiri is generally used for formal occasions of the highest significance.

Present at the meeting to constitute quorum means the member is to be physically present in the room.

Presiding member means the chairperson.

Procedural motion means a motion that is used to control the way in which a motion or the meeting is managed as specified in Standing Orders 24.1 – 24.7.

Public excluded information refers to information, which is currently before a public excluded session, is proposed to be considered at a public excluded session, or had previously been considered at a public excluded session and not yet been released as publicly available information. It includes:

- Any minutes (or portions of minutes) of public excluded sessions which have not been subsequently released by the local authority; and
- Any other information which has not been released by the local authority as publicly available information.

Public excluded session, also referred to as confidential or in-committee session, refers to those meetings or parts of meetings from which the public is excluded by the local authority as provided for in LGOIMA.

Public forum refers to a period set aside usually at the start of a meeting for the purpose of public input.

Public notice means one that is made publicly available, until any opportunity for review or appeal in relation to the matter notified has lapsed, on the local authority's website. And in addition, is published in at least one daily newspaper circulating in the region or district of the local authority, or one or more other newspapers that have a combined circulation in that region or district which is at least equivalent to that of a daily newspaper circulating in that region or district.

Publicly notified means notified to members of the public by a notice contained in a newspaper circulating in the district of the local authority, or where there is no such newspaper, by notice displayed in a public place. The notice may also be replicated on a council's website.

Qualified privilege means the privilege conferred on member by s 52 and s 53 of LGOIMA.

Quasi-judicial means a meeting involving the consideration of issues requiring the evaluation of evidence, the assessment of legal argument and/or the application of legal principles.

Quorum means the minimum number of members required to be present in order to constitute a valid meeting.

Regional Council Chairperson means the member of the governing body of a regional council elected as chairperson of that regional council under cl 25 of sch 7 of the LGA 2002.

Resolution means a motion that has been adopted by the meeting.

Right of reply means the right of the mover of a motion to reply to those who have spoken to the motion. (The right does not apply to an amendment).

Second means the member who seconds a motion or amendment.

Sub judice means under judicial consideration and therefore prohibited from public discussion elsewhere.

Subordinate decision-making body means committees, subcommittees, and any other bodies established by a local authority that have decision-making authority, but not local or community boards or joint committees.

Substantive motion means the original motion. In the case of a motion that is subject to an amendment, the substantive motion is the original motion incorporating any amendments adopted by the meeting.

Substantive resolution means the substantive motion that has been adopted by the meeting or a restatement of a resolution that has been voted on in parts.

Subcommittee means a subordinate decision-making body established by a council, or a committee of a council, local board or community board. See definition of “Committee”.

Working day means a day of the week other than:

- (a) Saturday, Sunday, Good Friday, Easter Monday, Anzac Day, Labour Day, the Sovereign’s birthday, Matariki, and Waitangi Day. If Waitangi Day or Anzac Day falls on a Saturday or a Sunday, then the following Monday;
- (b) The day observed in the appropriate area as the anniversary of the province of which the area forms a part; and
- (c) A day in the period commencing with 20 December in any year and ending with 10 January in the following year.

Should a local authority wish to meet between the 20th of December and the 10th of January of the following year any meeting must be notified as an extraordinary meeting, unless there is sufficient time to notify an ordinary meeting before the commencement of the period.

Working party means a group set up by a local authority to achieve a specific objective that is not a committee or subcommittee and to which these Standing Orders do not apply.

Workshop means in the context of these Standing Orders, a gathering of elected members for the purpose of considering matters of importance to the local authority at which no decisions are made and to which these Standing Orders will not apply, unless required by the local authority. Workshops may include non-elected members and may be described as briefings..

General matters/Ngā take whānui

3. Standing orders/Ngā tikanga whakahaere hui

3.1 Obligation to adopt standing orders

A council is required to operate in accordance with standing orders for the conduct of its meetings and the meetings of its committees and subcommittees. Local boards and community boards must also adopt standing orders. Standing orders must not contravene any Act.

LGA 2002, sch 7, cl 27(1) & (2).

3.2 Process for adoption and alteration of standing orders

The adoption of standing orders and any amendment to standing orders must be made by the Council and by a vote of not less than 75% of the members present. Similarly, in the case of a local and community board the adoption of standing orders and any amendments also requires a vote of not less than 75% of the members of the specific board.

LGA 2002, sch 7, cl 27(3).

3.3 Members must obey standing orders

All members of the local authority, including members of committees and subcommittees, must obey these Standing Orders. Local boards and community boards which have adopted these Standing Orders must also comply with them.

LGA 2002, sch 7, cl 16(1).

3.4 Application of standing orders

These Standing Orders apply to all meetings of the local authority, its committees, subcommittees and subordinate decision-making bodies. They will also apply to any local boards and community boards unless stated otherwise. This includes meetings and parts of meetings that the public are excluded from.

3.5 Temporary suspension of standing orders

Any member of a council, committee, subcommittee and subordinate body, and local and community board, may move a motion to suspend specified Standing Orders at a meeting of which they are a member. Any such motion must also include the reason for the suspension. If seconded, the chairperson must put the motion without debate and at least 75 per cent of the members present and voting must support the motion for it to be carried.

LGA 2002, sch 7, cl 27(4).

A motion to suspend Standing Orders may be taken before or during a debate. The motion to suspend Standing Orders must also identify the specific Standing Orders to be suspended. Please

Note: in the event of suspension, those Standing Orders prescribed in statute will continue to apply, such as the quorum requirements.

3.6 Quasi-judicial proceedings

For quasi-judicial proceedings the local authority or a local or community board may amend meeting procedures. For example, committees hearing applications under the Resource Management Act 1991 have additional powers under the Commissions of Inquiry Act 1908.

3.7 Physical address of members

Every member of a local authority, local board and community board must give to the chief executive a physical residential or business address within the district or region of the local authority and, if desired, an electronic or other address, to which notices and material relating to meetings and local authority business may be sent or delivered. Members are to provide their address within 5 working days of the publication of the declaration of the election results. Public access to those addresses is subject to the Privacy Act.

4. Meetings/Ngā hui

4.1 Legal requirement to hold meetings

The local authority must hold meetings for the good government of its city, district or region. The same requirement applies to local boards and community boards in respect of their communities. Meetings must be called and conducted in accordance with:

- (a) Schedule 7 of the LGA 2002;
- (b) Part 7 of LGOIMA; and
- (c) These Standing Orders.

A meeting can be adjourned to a specified time and day if required by resolution of the meeting.

4.2 Meeting duration

A meeting cannot continue more than six hours from when it starts (including any adjournments) or after 10.30pm, unless the meeting resolves to continue. If there is no such resolution, then any business on the agenda that has not been dealt with must be adjourned, transferred to the next meeting, or transferred to an extraordinary meeting.

No meeting can sit for more than two hours continuously without a break of at least ten minutes unless the meeting resolves to extend the time before a break.

4.3 Language

A member may address a meeting in English, te reo Māori or New Zealand Sign Language. A chairperson may require that a speech is translated and printed in English or te reo Māori.

If a member intends to address the meeting in New Zealand Sign Language, or in te reo Māori, when the normal business of the meeting is conducted in English, they must give prior notice to the chairperson not less than 2 working days before the meeting.

Where the normal business of the meeting is conducted in te reo Māori then prior notice of the intention to address the meeting in English must also be given to the chairperson not less than 2 working days before the meeting.

4.4 Webcasting meetings

Webcast meetings should be provided in accordance with the protocols contained in Appendix 7.

4.5 First meeting (inaugural)

The first meeting of a local authority, following a local authority triennial general election, must be called by the chief executive as soon as practicable after the results of the election are known. The chief executive must give elected members not less than 7 days' notice of the meeting. However in the event of an emergency the chief executive may give notice of the meeting as soon as practicable.

LGA 2002, sch, cl 21(1) - (4).

4.6 Requirements for the first meeting

The chief executive (or, in the absence of the chief executive, their nominee) must chair the first meeting until the chairperson has made an oral declaration and attested the declaration (see LGA 2002, sch 7, cl 21(4)).

The business to be conducted at the first meeting following a general election must include the following:

- (a) The making and attesting of the declarations required of the mayor (if any) and members under LGA 2002, sch 7, cl 14,;
- (b) The election of the chairperson (if any) and the making and attesting of the declaration required of the chairperson under LGA 2002, sch 7, cl 14;
- (c) A general explanation, given or arranged by the chief executive, of:
 - i. LGOIMA; and
 - ii. Other laws affecting members, including the appropriate provisions of the Local Authorities (Members Interests) Act 1968; and ss 99, 105, and 105A of the Crimes Act 1961; and the Secret Commissions Act 1910; and the Financial Markets Conduct Act 2013.
- (d) The fixing of the date and time of the first meeting of the local authority, or the adoption of a schedule of meetings; and
- (e) The election of the deputy Mayor or deputy chairperson in accordance with the LGA 2002, sch 7, cl 17.

LGA 2002, sch 7, cl 21(5).

It is common for councils to adopt standing orders at the first meeting; however this is not always necessary as, if not amended, standing orders will remain in force after each triennial election.

Please note, that the election of a deputy mayor is not required if the Mayor has already made the appointment under s 41A(3)(a) of the LGA 2002 prior to the meeting. Nothing limits a territorial authority from removing a deputy Mayor from office in accordance with cl 18 of sch 7 of the LGA 2002.

5. Appointments and elections/Ngā kopounga me ngā pōtitanga

5.1 Mayoral appointment of deputy Mayor, committee chairs and members

A Mayor may appoint the deputy Mayor, the chairperson and the members of each committee of the territorial authority. The names of any appointments made by the Mayor must be tabled at the first meeting of the council after the appointments are made. The Mayor may also appoint themselves.

LGA 2002, s 41A(3).

5.2 Council Discharge of a Mayoral Appointment

Nothing, however, limits or prevents a territorial authority from discharging deputy Mayor, a chairperson or a member of a committee appointed by the Mayor. Any decision by the territorial authority to discharge a deputy Mayor shall follow the procedure in Standing Order 5.5.

If the Mayor declines to appoint a deputy Mayor or committee chairpersons in accordance with LGA 2002, s 41A, the council (or a committee, if so directed by the council) must elect those positions in accordance with Standing Order 5.4.

LGA 2002, sch 7, cl 31.

5.3 Establishment of committees by the Mayor

The Mayor may establish committees of the territorial authority. Where a Mayor exercises this right, a list of the committees and their terms of reference must be tabled at the next following meeting of the council. Should the Mayor decline to establish committees under s 41A, then any decision to establish committees must follow the processes set out in these Standing Orders.

Nothing, however, limits or prevents a territorial authority from discharging or reconstituting, in accordance with cl 30 of sch 7, LGA 2002, a committee established by the Mayor, or appointing more committees in addition to any established by the Mayor.

Please note, a Mayor is a member of every committee unless specific legislation provides otherwise, such as a committee established under s 189 of the Sale and Supply of Alcohol Act 2012.

LGA 2002, s 41A (3) and (4).

5.4 Elections of regional chairpersons, deputy Mayors and deputy chairpersons

The council (or a committee responsible for making the appointment) must decide by resolution to use one of two voting systems (see Standing Order 5.6) when electing people to the following positions:

- The chairperson and deputy chairperson of a regional council;
- The deputy Mayor;
- The chairperson and deputy chairperson of a committee; and
- A representative of a local authority.

Please note, this provision does not apply in situations where a mayor has used their powers under LGA 2002, s 41A to appoint a deputy Mayor, or committee chairs. See the LGNZ Guide to Standing Orders for more information.

LGA 2002, sch 7, cl 25.

5.5 Removal of a deputy Mayor

A deputy Mayor, whether appointed by the Mayor under the Standing Order 5.1, or elected by the council, can only be removed in accordance with cl 18, sch 7, of the LGA 2002. See Appendix 9.

LGA 2002, sch 7, cl 18.

5.6 Voting system for chairs, deputy Mayors and committee chairs

When electing a regional council chair, a deputy Mayor or a committee chair the local authority must resolve to use one of the following two voting systems.

System A

The candidate will be elected or appointed if he or she receives the votes of a majority of the members of the local authority or committee who are present and voting. This system has the following characteristics:

- (a) There is a first round of voting for all candidates;
- (b) If no candidate is successful in the first round, there is a second round of voting from which the candidate with the fewest votes in the first round is excluded; and
- (c) If no candidate is successful in the second round, there is a third round, and if necessary subsequent rounds, of voting from which, each time, the candidate with the fewest votes in the previous round is excluded.

In any round of voting, if two or more candidates tie for the lowest number of votes, the person to be excluded from the next round is resolved by lot.

System B

The candidate will be elected or appointed if he or she receives more votes than any other candidate. This system has the following characteristics:

- (a) There is only one round of voting; and
- (b) If two or more candidates tie for the most votes, the tie is resolved by lot.

LGA 2002, sch 7, cl 25.

6. Delegations/Te tuku mana

6.1 Duty to consider delegations to community boards

The council of a territorial authority must consider whether or not to delegate to a community board if the delegation will enable the community board to best achieve its role.

LGA 2002, sch 7, cl 32(6).

Please note: A council is advised to delegate a range of decision-making responsibilities to its chief executive to cover the period from the day following the Electoral Office's declaration until the new council is sworn in. See the LGNZ Guide to Standing Orders for further information.

6.2 Limits on delegations

Unless clearly stated in the LGA 2002 or any other Act, a council may, for the purposes of efficiency and effectiveness, delegate to a committee, subcommittee, subordinate decision-making body, community board, local board, member, or officer of the local authority, any of its responsibilities, duties, or powers except:

- (a) The power to make a rate;
- (b) The power to make a bylaw;
- (c) The power to borrow money, or purchase or dispose of assets, other than in accordance with the long-term plan;
- (d) The power to adopt a long-term plan, annual plan, or annual report;
- (e) The power to appoint a chief executive;
- (f) The power to adopt policies required to be adopted and consulted on under the LGA in association with the long-term plan or developed for the purpose of the local governance statement;
- (g) *Repealed*; and
- (h) The power to adopt a remuneration and employment policy.

LGA 2002, sch 7, cl 32 (1).

6.3 Committees may delegate

A committee, subcommittee, subordinate decision-making body, local board, community board, member, or officer of the local authority, may delegate any of its responsibilities, duties, or powers to a subcommittee or person, subject to any conditions, limitations, or prohibitions imposed by the body that made the original delegation.

LGA 2002, sch 7, cl (2) & (3).

6.4 Use of delegated powers

The committee, subcommittee, other subordinate decision-making body, community board, or member or officer of the local authority to which or to whom any responsibilities, powers, duties are delegated may, without confirmation by the council, committee or body or person that made the delegation, exercise or perform them in the like manner and with the same effect as the local authority could itself have exercised or performed them.

LGA 2002, sch 7, cl 32(2),(3), and (4).

6.5 Decisions made under delegated authority cannot be rescinded or amended

Nothing in these Standing Orders allows a council, committee and subcommittee to rescind or amend a lawfully made decision of a subordinate decision-making body carried out under a delegation authorising the making of that decision. The same requirement applies to a local board and community board in relation to any committees or subcommittees with delegated authority.

LGA 2002, sch 7, cl 30 (6).

6.6 Committees and sub committees subject to the direction of the local authority

A committee, subcommittee or other subordinate decision-making body is subject in all things to the control of the local authority, and must carry out all general and special directions of the local authority given to them.

LGA 2002, sch 7, cl 30(3) & (4).

7. Committees/Ngā komiti

7.1 Appointment of committees and subcommittees

A council may appoint the committees, subcommittees, and other subordinate decision-making bodies that it considers appropriate. A committee may appoint the subcommittees that it considers appropriate, unless it is prohibited from doing so by the council. The minimum number of members for a committee is **three** and for a sub-committee **two**.

LGA 2002, sch 7, cl 30(1) & (2).

7.2 Discharge or reconstitution of committees and subcommittees

Unless expressly provided otherwise in legislation or regulation:

- (a) A local authority may discharge or reconstitute a committee or subcommittee, or other subordinate decision-making body; and
- (b) A committee may discharge or reconstitute a subcommittee.

A committee, subcommittee, or other subordinate decision-making body is, unless a council resolves otherwise, discharged when members elected at a subsequent triennial general election come into office.

LGA 2002, sch 7, cl 30 (5) & (7).

Please note: Section 12 (2) of the Civil Defence and Emergency Management Act 2002 states that a Civil Defence and Emergency Management Group is not deemed to be discharged following a triennial election. The same is true for District Licensing Committees (see the LGNZ Guide to Standing Orders).

7.3 Appointment or discharge of committee members and subcommittee members

A council may appoint or discharge any member of a committee and, if established by the council, a subcommittee. A committee may appoint or discharge any member of a subcommittee appointed by the committee unless directed otherwise by the council.

LGA 2002, sch 7, cl 31(1) & (2).

7.4 Elected members on committees and subcommittees

The members of a committee or subcommittee may be, but are not required to be, elected members of a local authority. A council or committee may appoint a person who is not a member of the local authority to a committee or subcommittee if, in the opinion of the council or committee, the person has the skills, attributes or knowledge to assist the committee or subcommittee.

At least one member of a committee must be an elected member of the council. In the case of a committee established by a local board or community board at least one member must be a member of that board. A staff member of the local authority, in the course of their employment, can be a member of a subcommittee but not a committee.

LGA 2002, sch 7, cl 31(4).

7.5 Local authority may replace members if committee not discharged

If a local authority resolves that a committee, subcommittee or other subordinate decision-making body is not to be discharged under cl 30 (7), sch 7, LGA 2002, the local authority may replace the members of that committee, subcommittee or subordinate decision-making body after the next triennial general election of members.

LGA 2002, sch 7, cl 31(5).

7.6 Membership of Mayor

The Mayor is a member of every committee of the local authority unless specific legislation provides otherwise, such as a committee established under s 189 of the Sale and Supply of Alcohol Act 2012.

LGA 2002, s 41A(5).

7.7 Decision not invalid despite irregularity in membership

For the purpose of these Standing Orders a decision of a local authority, committee, local board and community board is not invalidated if:

1. There is a vacancy in the membership of the local authority, committee, local or community board at the time of the decision; or
2. Following the decision some defect in the election or appointment process is discovered and/or that the membership of a person on the committee at the time is found to have been ineligible.

LGA 2002, sch 7, cl 29.

7.8 Appointment of joint committees

A local authority may appoint a joint committee with another local authority or other public body if it has reached agreement with each local authority or public body. The agreement must specify:

- (a) The number of members each party may appoint;
- (b) How the chairperson and deputy chairperson are to be appointed;
- (c) The terms of reference of the committee;
- (d) What responsibilities, if any, are to be delegated to the committee by each party; and
- (e) How the agreement may be varied.

The agreement may also specify any other matter relating to the appointment, operation, or responsibilities of the committee agreed by the parties.

LGA 2002, sch 7, cl 30A(1) & (2).

7.9 Status of joint committees

A joint committee is deemed to be both a committee of a council and a committee of each other participating local authority or public body.

LGA 2002, sch 7, cl 30A(5).

7.10 Power to appoint or discharge individual members of a joint committee

The power to discharge any individual member of a joint committee and appoint another member in their stead must be exercised by the council or public body that made the appointment.

LGA 2002, sch 7, cl 30A(6)(a).

Pre-meeting

8. Giving notice/Te tuku pānui

Please note: the processes described in this section (Standing Orders 8.1 – 8.12) apply as appropriate to local boards and community boards.

8.1 Public notice – ordinary meetings

All meetings scheduled for the following month must be publicly notified not more than 14 days and not less than 5 days before the end of the current month, together with the dates, the times and places on and at which those meetings are to be held. In the case of meetings held on or after the 21st day of the month public notification may be given not more than 10 nor less than 5 working days before the day on which the meeting is to be held. (See the LGNZ Guide to Standing Orders for more information).

LGOIMA, s 46.

8.2 Notice to members - ordinary meetings

The chief executive must give notice in writing to each member of the local authority of the date, time and place of any meeting. Notice must be given at least 14 days before the meeting unless the council has adopted a schedule of meetings, in which case notice must be given at least 14 days before the first meeting on the schedule.

LGA 2002, sch 7, cl 19(5).

8.3 Extraordinary meeting may be called

An extraordinary council meeting may be called by:

- (a) Resolution of the council, or
- (b) A requisition in writing delivered to the chief executive which is signed by:
 - i. The Mayor; or
 - ii. Not less than one third of the total membership of the council (including vacancies).

LGA 2002, sch 7, cl 22(1).

8.4 Notice to members - extraordinary meetings

The chief executive must give notice, in writing, of the time and place of an extraordinary meeting called under the Standing Order 8.3, as well as the general nature of business to be considered, to each member of the council at least 3 working days before the day appointed for the meeting. If the meeting is called by a resolution, then notice must be provided within such lesser period as is specified in the resolution, as long as it is not less than 24 hours.

LGA 2002, sch 7, cl 22(3).

8.5 Emergency meetings may be called

If the business a council needs to deal with requires a meeting to be held at a time earlier than is allowed by the notice requirements for holding an extraordinary meeting and it is not practicable to call the meeting by resolution, an emergency meeting may be called by:

- (a) The Mayor; or
- (b) If the Mayor is unavailable, the chief executive.

LGA 2002, sch 7, cl 22A(1).

8.6 Process for calling an emergency meeting

The notice of the time and place of an emergency meeting, and of the matters in respect of which the emergency meeting is being called, must be given by the person calling the meeting or by another person on that person's behalf.

The notice must be given, by whatever means is reasonable in the circumstances, to each member of the local authority, and to the chief executive, at least 24 hours before the time appointed for the meeting.

LGA 2002, sch 7, cl 22A(2).

8.7 Public notice – emergency and extraordinary meetings

Where an emergency or extraordinary meeting of a local authority is called but the notice of the meeting is inconsistent with these Standing Orders, due to the manner in which it was called, the local authority must cause that meeting and the general nature of business to be transacted at that meeting:

- (a) To be publicly notified as soon as practicable before the meeting is to be held; or
- (b) If it is not practicable to publish a notice in newspapers before the meeting, to be notified as soon as practicable on the local authority's website and in any other manner that is reasonable in the circumstances.

LGOIMA, s 46(3).

8.8 Meetings not invalid

The failure to notify a public meeting under these Standing Orders does not of itself make that meeting invalid. However, where a local authority becomes aware that a meeting has been incorrectly notified it must, as soon as practicable, give public notice stating:

- That the meeting occurred without proper notification;
- The general nature of the business transacted; and
- The reasons why the meeting was not properly notified.

LGOIMA, s 46(6).

8.9 Resolutions passed at an extraordinary meeting

A local authority must, as soon as practicable, publicly notify any resolution passed at an extraordinary meeting of the local authority unless:

- (a) The resolution was passed at a meeting or part of a meeting from which the public was excluded; or
- (b) The extraordinary meeting was publicly notified at least 5 working days before the day on which the meeting was held.

LGOIMA, s 51A.

8.10 Meeting schedules

Where the local authority adopts a meeting schedule it may cover any period that the council considers appropriate and may be amended. Notification of the schedule, or an amendment, will constitute notification to members of every meeting on the schedule or the amendment. This does not replace the requirements under LGOIMA to also publicly notify each meeting.

LGA 2002, sch 7, cl 19(6).

8.11 Non-receipt of notice to members

A meeting of a local authority is not invalid if notice of that meeting was not received, or not received in due time, by a member of the local authority or board unless:

- (a) It is proved that the person responsible for giving notice of the meeting acted in bad faith or without reasonable care; and
- (b) The member concerned did not attend the meeting.

A member of a local authority may waive the need to be given notice of a meeting.

LGA 2002, sch 7, cl 20(1) & (2).

8.12 Meeting cancellations

The chairperson of a scheduled meeting may cancel the meeting if, in consultation with the chief executive, they consider this is necessary for reasons that include lack of business, lack of quorum or clash with another event.

The chief executive must make a reasonable effort to notify members and the public as soon as practicable of the cancellation and the reasons behind it.

9. Meeting agenda/Te rārangi take o ngā hui

9.1 Preparation of the agenda

It is the chief executive's responsibility, on behalf of the chairperson, to prepare an agenda for each meeting listing and attaching information on the items of business to be brought before the meeting so far as is known, including the names of the relevant members.

When preparing business items for an agenda the chief executive must consult, unless impracticable, such as in the case of the inaugural meeting, the chairperson, or the person acting as chairperson for the coming meeting.

9.2 Process for raising matters for a decision

Requests for reports may be made by a resolution of the council, committee, subcommittee, subordinate decision-making body, local boards or community board and, in the case of all decision-making bodies other than the council, must also fall within the scope of their specific delegations.

9.3 Chief executive may delay or refuse request

The chief executive may delay commissioning any reports that involve significant cost or are beyond the scope of the committee that made the request. In such cases the chief executive will discuss options for meeting the request with the respective chairperson and report back to a subsequent meeting with an estimate of the cost involved and seek direction on whether the report should still be prepared.

Where a Chief executive refuses a member's request to prepare a report, an explanation for that refusal should be provided to the member.

9.4 Order of business

At the meeting the business is to be dealt with in the order in which it stands on the agenda unless the chairperson, or the meeting, decides otherwise. An example of a default order of business is set out in Appendix 10.

The order of business for an extraordinary meeting must be limited to items that are relevant to the purpose for which the meeting has been called.

9.5 Chairperson's recommendation

A chairperson, either prior to the start of the meeting and/or at the meeting itself, may include a recommendation regarding any item on the agenda brought before the meeting. Where a chairperson's recommendation varies significantly from an officer's recommendation the reason for the variation must be explained. A recommendation that differs significantly from the officer's recommendation must comply with the decision-making requirements of Part 6 of the LGA 2002.

9.6 Chairperson may prepare report

The chairperson of a meeting has the right to prepare a report to be included in the agenda on any matter which falls within the responsibilities of that meeting, as described in its terms of reference.

For clarity, any recommendation must comply with the decision-making requirements of Part 6 of the LGA 2002.

9.7 Public availability of the agenda

All information provided to members at a local authority, or local or community board, meeting must be publicly available, except where an item included in the agenda refers to a matter reasonably expected to be discussed with the public excluded.

LGOIMA, ss 5 & 46A.

9.8 Public inspection of agenda

Any member of the public may, without payment of a fee, inspect, during normal office hours and within a period of at least 2 working days before a meeting, all agendas and associated reports circulated to members of the local authority and local and community boards relating to that meeting. The agenda:

- (a) Must be available for inspection at the public offices of the local authority (including service centres), at public libraries under the authority's control and on the council's website, and:
- (b) Must be accompanied by either:
 - i. The associated reports; or
 - ii. A notice specifying the places at which the associated reports may be inspected.

LGOIMA, s 46A(1).

9.9 Withdrawal of agenda items

If justified by circumstances, an agenda item may be withdrawn by the chief executive. In the event of an item being withdrawn the chief executive should inform the chairperson.

9.10 Distribution of the agenda

The chief executive must send the agenda to every member of a meeting at least two clear working days before the day of the meeting, except in the case of an extraordinary meeting or an emergency meeting (see Standing Orders 8.4 and 8.10).

The chief executive may send the agenda, and other materials relating to the meeting or other council business, to members by electronic means.

9.11 Status of agenda

No matter on a meeting agenda, including recommendations, may be considered final until determined by a formal resolution of that meeting.

9.12 Items of business not on the agenda which cannot be delayed

A meeting may deal with an item of business that is not on the agenda where the meeting resolves to deal with that item and the chairperson provides the following information during the public part of the meeting:

- (a) The reason the item is not on the agenda; and
- (b) The reason why the discussion of the item cannot be delayed until a subsequent meeting.

LGOIMA, s 46A(7).

Items not on the agenda may be brought before the meeting through a report from either the chief executive or the chairperson.

Please note, that nothing in this standing order removes the requirement to meet the provisions of Part 6 of the LGA 2002 with regard to consultation and decision-making.

9.13 Discussion of minor matters not on the agenda

A meeting may discuss an item that is not on the agenda only if it is a minor matter relating to the general business of the meeting and the chairperson explains at the beginning of the public part of the meeting that the item will be discussed. However, the meeting may not make a resolution, decision, or recommendation about the item, except to refer it to a subsequent meeting for further discussion.

LGOIMA, s 46A(7A).

9.14 Public excluded business on the agenda

Items that are likely to be discussed under public-excluded must be indicated on each agenda, including the general subject of the item. The chief executive, however, may exclude public access to any reports, or parts of reports, which are reasonably expected to be discussed with the public excluded.

LGOIMA, s 46A(9).

9.15 Qualified privilege relating to agenda and minutes

Where any meeting is open to the public and a member of the public is supplied with a copy of the agenda, or the minutes of that meeting, the publication of any defamatory matter included in the agenda or in the minutes is privileged. This does not apply if the publication is proved to have been made with ill will, or improper advantage has been taken of the publication.

LGOIMA, s 52.

Meeting Procedures/Ngā Tikanga Hui

10. Opening and closing/Te whakatuwhera me te whakakapi

Local authorities, local boards and community boards may, at the start of a meeting, choose to recognise the civic importance of the occasion through some form of reflection. This could be an expression of community values, a reminder of the contribution of members who have gone before or a formal welcome, such as a mihi whakatau.

Options for opening a meeting could include a karakia timitanga, mihi whakatau, or powhiri as well as a karakia whakamutunga to close a meeting where appropriate.

11. Quorum/Kōrama

11.1 Council meetings

The quorum for a meeting of the council is:

- (a) Half of the members physically present, where the number of members (including vacancies) is even; and
- (b) A majority of the members physically present, where the number of members (including vacancies) is odd.

LGA 2002, sch 7, cl 23(3)(a).

11.2 Committees and subcommittee meetings

A council sets the quorum for its committees and subcommittees, either by resolution or by stating the quorum in the terms of reference. Committees may set the quorums for their subcommittees by resolution, provided that it is not less than two members. (See also 7.4).

In the case of subcommittees, the quorum will be two members unless otherwise stated. In the case of committees at least one member of the quorum must be a member of the council, or if established by a local board or community board, the relevant board.

LGA 2002, sch 7, cl 23(3)(b).

11.3 Joint Committees

The quorum at a meeting of a joint committee must be consistent with Standing Order 11.1. Local authorities participating in the joint committee may decide, by agreement, whether or not the quorum includes one or more members appointed by each local authority or any party.

LGA 2002, sch 7, cl 30A(6)(c).

11.4 Requirement for a quorum

A meeting is constituted where a quorum of members is present, whether or not they are all voting or entitled to vote. In order to conduct any business at a meeting, a quorum of members must be present for the whole time that the business is being considered.

LGA 2002, sch 7, cl 23(1) & (2).

11.5 Meeting lapses where no quorum

A meeting must lapse, and the chairperson vacate the chair, if a quorum is not present within **10** minutes of the advertised start of the meeting. Where members are known to be travelling to the meeting, but are delayed due to extraordinary circumstance, the chairperson has discretion to wait for a longer period.

No business may be conducted while waiting for the quorum to be reached. Minutes will record when a meeting lapses due to a lack of a quorum, along with the names of the members who attended.

Should a quorum be lost, the meeting will lapse if the quorum is not present within 15 minutes.

11.6 Business from lapsed meetings

Where meetings lapse the remaining business will be adjourned and be placed at the beginning of the agenda of the next ordinary meeting, unless the chairperson sets an earlier meeting, and this is notified by the chief executive.

12. Public access and recording/Te urunga a te marea me te hopunga

12.1 Meetings open to the public

Except as otherwise provided by Part 7 of LGOIMA, every meeting of the local authority, its committees, subcommittees, local boards and community boards, must be open to the public.

LGOIMA, s 47 & 49(a).

12.2 Grounds for removing the public

The chairperson may require any member of the public to be removed from the meeting if they believe that person's behaviour is likely to prejudice the orderly conduct of the meeting.

LGOIMA, s 50(1).

12.3 Local authority may record meetings

Meeting venues should contain clear signage indicating and informing members, officers and the public that proceedings may be recorded by the local authority and may be subject to direction by the chairperson.

12.4 Public may record meetings

Members of the public may make electronic or digital recordings of meetings which are open to the public. Any recording of meetings should be notified to the chairperson at the commencement of the meeting to ensure that the recording does not distract the meeting from fulfilling its business.

Where circumstances require, the chairperson may direct the recording to stop for a period of time.

13. Attendance/Te taenga

13.1 Members right to attend meetings

A member of a local authority, or of a committee of a local authority, has, unless lawfully excluded, the right to attend any meeting of the local authority or committee.

LGA 2002, sch 7, cl 19(2).

If a member of the local authority is not an appointed member of the meeting which they are attending, they may not vote on any matter at that meeting. However, they may, with the leave of the chair, take part in the meeting's discussions.

A member attending a meeting of which they are not an appointed member is not a member of the public for the purpose of s48 of LGOIMA. Consequently, if the meeting resolves to exclude the public then any members of the local authority who are present may remain, unless they are lawfully excluded.

Please note: this section does not confer any rights to non-elected members appointed to committees of a local authority.

Public excluded: Members physically present at the meeting, should remain in the room during public excluded business, unless granted leave from the Chair, or are leaving the room having declared a conflict of interest.

13.2 Attendance when a committee is performing judicial or quasi-judicial functions

When a committee is performing judicial or quasi-judicial functions, members of the local authority who are not members of that committee are not entitled to take part in the proceedings.

13.3 Leave of absence

A council may grant a member leave of absence following an application from that member. The Mayor may approve a members' application, and the Council may approve an application from the Mayor. The Mayor will advise all members of the council whenever a member has been granted leave of absence under delegated authority. Meeting minutes will record that a member has leave of absence as an apology for that meeting.

13.4 Apologies

A member who does not have leave of absence may tender an apology should they be absent from all or part of a meeting. The Mayor (or acting chair), must invite apologies at the beginning of each meeting, including apologies for lateness and early departure. The meeting may accept or decline any apologies. Members may be recorded as absent on council business where their absence is a result of a commitment made on behalf of the council.

For clarification, the acceptance of a member's apology constitutes a grant of 'leave of absence' for that meeting.

13.5 Recording apologies

The minutes will record any apologies tendered before or during the meeting, including whether they were accepted or declined and the time of arrival and departure of all members.

13.6 Absent without leave

Where a member is absent from four consecutive meetings of the council, local board or community board without leave of absence or an apology being accepted (not including extraordinary or emergency meetings) then the office held by the member will become vacant. A vacancy created in this way is treated as an extraordinary vacancy.

LGA 2002, sch 7, cl 5(d).

13.7 Right to attend by audio or audiovisual link

Provided the conditions in Standing Orders 13.11 and 13.12 are met, members of the local authority and its committees (and members of the public for the purpose of a deputation approved by the chairperson), have the right to attend meetings by means of an electronic link, unless they have been lawfully excluded.

Members attending by audio or audio visual link must display on screen.

13.8 Member's status: quorum

Members who attend meetings by electronic link will **not** be counted as present for the purposes of a quorum.

LGA 2002, sch 7, cl 25A(4).

13.9 Member's status: voting

Where a meeting has a quorum, determined by the number **physically** present, the members attending by electronic link can vote on any matters raised at the meeting.

13.10 Chairperson's duties

Where the technology is available and a member is attending a meeting by audio or audiovisual link, the chairperson must ensure that:

- (a) The technology for the link is available and of suitable quality; and
- (b) Procedures for using the technology in the meeting will ensure that:
 - i. Everyone participating in the meeting can hear each other;
 - ii. The member's attendance by audio or audio visual link does not reduce their accountability or accessibility of that person in relation to the meeting;
 - iii. The requirements of Part 7 of LGOIMA are met; and
 - iv. The requirements in these Standing Orders are met.

LGA 2002, sch 7, cl 25A(3).

If the chairperson is attending by audio or audio visual link, then chairing duties will be undertaken by the deputy chair, or a member who is physically present.

13.11 Conditions for attending by audio or audiovisual link

Noting Standing Order 13.7, the chairperson may give approval for a member to attend meetings by electronic link, either generally or for a specific meeting. Examples of situations where approval can be given include:

- (a) Where the member is at a place that makes their physical presence at the meeting impracticable or impossible;
- (b) Where a member is unwell; and
- (c) Where a member is unable to attend due to an emergency.

13.12 Request to attend by audio or audiovisual link

Where possible, a member will give the chairperson and the chief executive at least 2 working days' notice when they want to attend a meeting by audio or audiovisual link. Should, due to illness or emergency, this is not possible the member may give less notice.

Where such a request is made and the technology is available, the chief executive must take reasonable steps to enable the member to attend by audio or audiovisual link. However, the council has no obligation to make the technology for an audio or audio-visual link available.

If the member's request cannot be accommodated, or there is a technological issue with the link, this will not invalidate any acts or proceedings of the local authority or its committees.

13.13 Chairperson may terminate link

The chairperson may direct that an electronic link should be terminated where:

- (a) Use of the link is increasing, or may unreasonably increase, the length of the meeting;
- (b) The behaviour of the members using the link warrants termination, including the style, degree and extent of interaction between members;
- (c) It is distracting to the members who are physically present at the meeting;
- (d) The quality of the link is no longer suitable;
- (e) Information classified as confidential may be compromised (see also SO 13.16);
- (f) The member is not displaying on screen.

13.14 Giving or showing a document

A person attending a meeting by audio or audio visual link may give or show a document by:

- (a) Transmitting it electronically;
- (b) Using the audio visual link; or
- (c) Any other manner that the chairperson thinks fit.

LGA 2002, sch 7, cl 25(A)(6).

13.15 Link failure

Where an audio or audiovisual link fails, or there are other technological issues that prevent a member who is attending by link from participating in a meeting, that member must be deemed to be no longer attending the meeting.

13.16 Confidentiality

A member who is attending a meeting by audio, or audio-visual link, must ensure that the meeting's proceedings remain confidential during any time that the public is excluded. At such a time, the chairperson may require the member to confirm that no unauthorised people are able to view or hear the proceedings. If the chairperson is not satisfied by the explanation, they may terminate the link.

14. Chairperson's role in meetings/Te mahi a te ūpoko i roto i ngā hui

14.1 Council meetings

The Mayor must preside at meetings of the council unless they vacate the chair for a part or all of a meeting. If the Mayor is absent from a meeting or vacates the chair, the deputy Mayor must act as chairperson. If the deputy Mayor is also absent the local authority members who are present must

elect a member to be the chairperson at that meeting. This person may exercise the meeting responsibilities, duties, and powers of the Mayor for that meeting.

LGA 2002, sch 7, cl 26(1), (5) & (6).

14.2 Other meetings

In the case of committees, subcommittees and subordinate decision-making bodies, the appointed chairperson must preside at each meeting unless they vacate the chair for all or part of a meeting. If the chairperson is absent from a meeting or vacates the chair, the deputy chairperson (if any) will act as chairperson. If the deputy chairperson is also absent, or has not been appointed, the committee members who are present must elect a member to act as chairperson. This person may exercise the meeting responsibilities, duties and powers of the chairperson. *LGA 2002, sch 7, cl 26(2), (5) & (6).*

The Chairperson may agree to vacate the Chair to enable the Deputy Chairperson to chair the meeting at pre-agreed times. Where this occurs, the Chairperson will need to formally vacate the Chair at the start of each meeting that it is pre-agreed the Deputy Chair will chair, and this must be recorded in the minutes of that meeting. The Chairperson is then able to be present, and participate in the meeting, including voting, while not chairing the meeting.

14.3 Addressing the chairperson

Members will address the Chairperson in a manner that the Chairperson has determined.

14.4 Chairperson's rulings

The chairperson will decide all procedural questions, including points of order, where insufficient provision is made by these Standing Orders (except in cases where appointment of order questions the chairperson's ruling). Any refusal to obey a Chairperson's ruling or direction constitutes contempt (see SO 20.5).

14.5 Chairperson standing

Whenever the chairperson stands during a debate, members are required to sit down (if required to stand to address the meeting) and be silent so that they can hear the chairperson without interruption.

14.6 Member's right to speak

Members are entitled to speak in accordance with these Standing Orders. Members should address the chairperson when speaking. They may not leave their place while speaking, unless they have the leave of the chairperson.

14.7 Chairperson may prioritise speakers

When two or more members want to speak the chairperson will name the member who may speak first. Other members who wish to speak have precedence where they intend to:

- (a) Raise a point of order, including a request to obtain a time extension for the previous speaker; and/or
- (b) Move a motion to terminate or adjourn the debate; and/or
- (c) Make a point of explanation; and/or
- (d) Request the chair to permit the member a special request.

15. Public Forums/Ngā Matapakinga a te Marea

Public forums are a defined period of time, usually at the start of an ordinary meeting, which, at the discretion of a meeting, is put aside for the purpose of public input. Public forums are designed to enable members of the public to bring matters of their choice, not necessarily on the meeting's agenda, to the attention of the local authority.

In the case of a committee, subcommittee, local or community board, any issue, idea, or matter raised in a public forum, must fall within the terms of reference of that body.

15.1 Time limits

A period of up to 30 minutes, or such longer time as the meeting may determine, will be available for the public forum at each scheduled local authority meeting. Requests must be made to the chief executive (or their delegate) at least **two** clear day before the meeting; however, this requirement may be waived by the chairperson. Requests should also outline the matters that will be addressed by the speaker(s).

Speakers can speak for up to 5 minutes. Where the number of speakers presenting in the public forum exceeds 6 in total, the chairperson has discretion to restrict the speaking time permitted for all presenters.

15.2 Restrictions

The chairperson has the discretion to decline to hear a speaker or to terminate a presentation at any time where:

- A speaker is repeating views presented by an earlier speaker at the same public forum;
- The speaker is criticising elected members and/or staff;
- The speaker is being repetitious, disrespectful or offensive;
- The speaker has previously spoken on the same issue;
- The matter is subject to legal proceedings; and
- The matter is subject to a hearing, including the hearing of submissions where the local authority or committee sits in a quasi-judicial capacity.

15.3 Questions at public forums

At the conclusion of the presentation, with the permission of the chairperson, elected members may ask questions of speakers. Questions are to be confined to obtaining information or clarification on matters raised by a speaker.

15.4 No resolutions

Following the public forum, no debate or decisions will be made at the meeting on issues raised during the forum unless related to items already on the agenda. (See the LGNZ Guide to Standing Orders for suggestions of good practice in dealing with issues raised during a forum).

16. Deputations/Ngā Teputeihana

The purpose of a deputation is to enable a person, group, or organisation to make a presentation to a meeting on a matter or matters covered by that meeting's terms of reference. Deputations should be approved by the chairperson, or an official with delegated authority, five working days before the meeting; however, this requirement may be waived by the chairperson. Deputations may be heard at the commencement of the meeting or at the time that the relevant agenda item is being considered.

16.1 Time limits

Speakers can speak for up to 5 minutes, or longer at the discretion of the chairperson. No more than two speakers can speak on behalf of an organisation's deputation.

16.2 Restrictions

The chairperson has the discretion to decline to hear or terminate a deputation at any time where:

- A speaker is repeating views presented by an earlier speaker at the meeting;
- The speaker is criticising elected members and/or staff;
- The speaker is being repetitious, disrespectful or offensive;
- The speaker has previously spoken on the same issue;
- The matter is subject to legal proceedings; and
- The matter is subject to a hearing, including the hearing of submissions where the local authority or committee sits in a quasi-judicial capacity.

16.3 Questions of a deputation

At the conclusion of the deputation members may, with the permission of the chairperson, ask questions of any speakers. Questions are to be confined to obtaining information or clarification on matters raised by the deputation.

16.4 Resolutions

Any debate on a matter raised in a deputation must occur at the time at which the matter is scheduled to be discussed on the meeting agenda and once a motion has been moved and seconded.

17. Petitions/Ngā Petihana

17.1 Form of petitions

Petitions may be presented to the local authority or any of its committees, local boards or community boards, as long as the subject matter falls within the terms of reference of the intended meeting.

Petitions must contain at least 20 signatures and consist of fewer than 150 words (not including signatories). They must be received by the chief executive at least five working days before the meeting at which they will be presented; however, this requirement may be waived by the chairperson.

Petitions must not be disrespectful, use offensive language or include malicious, inaccurate, or misleading statements (see Standing Order 20.9 on qualified privilege). They may be written in English or te reo Māori. Petitioners planning to present their petition in te reo or sign language should advise the chief executive in time to allow translation services to be arranged.

17.2 Petition presented by petitioner

A petitioner who presents a petition to the local authority or any of its committees and subcommittees, local boards or community boards, may speak for 5 minutes (excluding questions) about the petition, unless the meeting resolves otherwise. The chairperson must terminate the presentation of the petition if he or she believes the petitioner is being disrespectful, offensive, or making malicious statements.

Where a petition is presented as part of a deputation or public forum the speaking time limits relating to deputations or public forums shall apply. The petition must be received by the chief executive at least 5 working days before the date of the meeting concerned.

17.3 Petition presented by member

Members may present petitions on behalf of petitioners. In doing so, members must confine themselves to presenting:

- (a) The petition;
- (b) The petitioners' statement; and
- (c) The number of signatures.

18. Exclusion of public/Te aukati i te marea

18.1 Motions and resolutions to exclude the public

Members of a meeting may resolve to exclude the public from a meeting. The grounds for exclusion are those specified in s 48 of LGOIMA (see Appendix 1).

Every motion to exclude the public must be put while the meeting is open to the public, and copies of the motion must be available to any member of the public who is present. If the motion is passed the resolution to exclude the public must be in the form set out in schedule 2A of LGOIMA (see Appendix 2). The resolution must state:

- (a) The general subject of each matter to be excluded;
- (b) The reason for passing the resolution in relation to that matter; and
- (c) The grounds on which the resolution is based.

The resolution will form part of the meeting's minutes.

LGOIMA, s 48.

18.2 Specified people may remain

Where a meeting resolves to exclude the public, the resolution may provide for specified persons to remain if, in the opinion of the meeting, they will assist the meeting to achieve its purpose. Any such resolution must state, in relation to the matter to be discussed, how the knowledge held by the specified people is relevant and be of assistance.

No such resolution is needed for people who are entitled to be at the meeting, such as relevant staff and officials contracted to the council for advice on the matter under consideration.

LGOIMA, s 48(6).

18.3 Public excluded items

The chief executive must place in the public-excluded section of the agenda any items that he or she reasonably expects the meeting to consider with the public excluded. The public excluded section of the agenda must indicate the subject matter of the item and the reason the public are excluded.

LGOIMA, s 46A(8).

18.4 Non-disclosure of information

No member or officer may disclose to any person, other than another member, officer or person authorised by the chief executive, any information that has been, or will be, presented to any meeting from which the public is excluded, or proposed to be excluded.

This restriction does not apply where a meeting has resolved to make the information publicly available or where the chief executive has advised, in writing, that one or both of the following apply:

- (a) There are no grounds under LGOIMA for withholding the information; and
- (b) The information is no longer confidential.

18.5 Release of information from public excluded session

A local authority may provide for the release to the public of information which has been considered during the public excluded part of a meeting.

Each public excluded meeting must consider and agree by resolution, what, if any, information will be released to the public. In addition, the chief executive may release information which has been considered at a meeting from which the public has been excluded where it is determined the grounds to withhold the information no longer exist.

19. Voting/Te pōti

19.1 Decisions by majority vote

Unless otherwise provided for in the LGA 2002, other legislation, or Standing Orders, the acts of, and questions before, a local authority (including a local or community board) must be decided at a meeting through a vote exercised by the majority of the members that are present and voting.

LGA 2002, sch 7, cl 24(1).

19.2 Open voting

An act or question coming before the local authority must be done or decided by open voting.

LGA 2002, sch 7, cl 24(3).

19.3 Chairperson has a casting vote

The Mayor, Chairperson, or any other person presiding at a meeting, has a deliberative vote and, in the case of an equality of votes, has a casting vote.

LGA 2002, sch 7, cl 24(2).

19.4 Method of voting

The method of voting must be as follows:

- (a) The chairperson in putting the motion must call for an expression of opinion on the voices or take a show of hands, the result of either of which, as announced by the chairperson, must be conclusive unless such announcement is questioned immediately by any member, in which event the chairperson will call a division;
- (b) The chairperson or any member may call for a division instead of or after voting on the voices and/or taking a show of hands; and
- (c) Where a suitable electronic voting system is available that system may be used instead of a show of hands, vote by voices, or division, and the result publicly displayed and notified to the chairperson who must declare the result.

19.5 Calling for a division

When a division is called, the chief executive must record the names of the members voting for and against the motion, and abstentions, and provide the names to the chairperson to declare the result. The result of the division must be entered into the minutes and include members' names and the way in which they voted.

The Chairperson may call a second division where there is confusion or error in the original division.

19.6 Request to have votes recorded

If requested by a member, immediately after a vote the minutes must record the member's vote or abstention. Recording any other matters, such as a members' reason for their vote or abstention, is not permitted.

19.7 Members may abstain

Any member may abstain from voting.

20. Conduct/Ngā whanonga

20.1 Calling to order

When the chairperson calls members to order they must be seated and stop speaking. If the members fail to do so, the chairperson may direct that they should immediately leave the meeting for a specified time.

20.2 Behaviour consistent with Code of Conduct

At a meeting no member may act inconsistently with their Code of Conduct or speak or act in a manner which is disrespectful of other members, staff or the public.

20.3 Retractions and apologies

In the event of a member, or speaker, who has been disrespectful of another member or contravened the council's Code of Conduct, the chairperson may call upon that member, or speaker, to withdraw the offending comments, and may require them to apologise. If the member refuses to do so the chairperson may direct that they should leave the meeting immediately for a specified time and/or make a complaint under the Code of Conduct.

20.4 Disorderly conduct

Where the conduct of a member is disorderly or is creating a disturbance, the chairperson may require that member to leave the meeting immediately for a specified time.

If the disorder continues the chairperson may adjourn the meeting for a specified time. At the end of this time the meeting must resume and decide, without debate, whether the meeting should proceed or be adjourned.

The chairperson may also adjourn the meeting if other people cause disorder or in the event of an emergency.

20.5 Contempt

Where a member is subject to repeated cautions by the chairperson for disorderly conduct the meeting may, should it so decide, resolve that the member is in contempt. Any such resolution must be recorded in the meeting's minutes.

A member who has been found to be in contempt and continues to be cautioned by the Chairperson for disorderly conduct, may be subject to Standing Order 20.6.

20.6 Removal from meeting

A member of the police or authorised security personnel may, at the chairperson's request, remove or exclude a member from a meeting.

This Standing Order will apply where the chairperson has ruled that the member should leave the meeting and the member has refused or failed to do so; or has left the meeting and attempted to re-enter it without the chairperson's permission.

20.7 Financial conflicts of interests

Every member present at a meeting must declare any direct or indirect financial interest that they hold in any matter being discussed at the meeting, other than an interest that they hold in common with the public.

No member may vote on, or take part in, a discussion about any matter in which they have a direct or indirect financial interest unless an exception set out in s 6 LAMIA applies to them, or the Auditor-General has granted them an exemption or declaration under s 6.

Members with a financial interest should physically withdraw themselves from the table unless the meeting is in public excluded, in which case they should leave the room.

Neither the chairperson, nor the meeting, may rule on whether a member has a financial interest in the matter being discussed. The minutes must record any declarations of financial interests and the member's abstention from any discussion and voting on the matter.

LAMIA, ss 6 & 7.

20.8 Non-financial conflicts of interests

Non-financial interests involve questions about whether the judgement of a member of a local authority (or local or community board) could be affected by a separate interest, or duty, which that member may have in relation to a particular matter. If a member considers that they have a non-financial conflict of interest in a matter they must not take part in the discussions about that matter, or any subsequent vote.

The member must leave the table when the matter is considered but does not need to leave the room. The minutes must record the declaration and member's subsequent abstention from discussion and voting.

Neither the chairperson, nor the meeting, may rule on whether a member has a non-financial interest in the matter being discussed.

20.9 Qualified privilege for meeting proceedings

Any oral statement made at any meeting of the local authority in accordance with the rules adopted by the local authority for guiding its proceedings is privileged, unless the statement is proved to have been made with ill will, or took improper advantage of the occasion of publication.

LGOIMA, s 53.

20.10 Qualified privilege additional to any other provisions

The privilege referred to above is in addition to any other privilege, whether absolute or qualified, that applies because of any other enactment or rule of law applying to any meeting of the local authority.

LGOIMA, s 53.

20.11 Electronic devices at meetings

Electronic devices and phones can only be used to access notes and agendas to advance the business of a meeting. Personal use may only occur at the discretion of the chair.

A chairperson may require that an electronic device is switched off if:

- I. its use is likely to distract a meeting from achieving its business, or,
- II. a member is found to be receiving information or advice from sources not present at the meeting that may affect the integrity of the proceedings.

21. General rules of debate/Ngā tikanga whānui mō te tautohetohe

21.1 Chairperson may exercise discretion

The application of any procedural matters in this section of the Standing Orders, such as the number of times a member may speak or when a chair can accept a procedural motion to close or adjourn a debate, is subject to the discretion of the chairperson.

21.2 Time limits on speakers

The following time limits apply to members speaking at meetings:

- (a) Movers of motions when speaking to the motion – not more than **5** minutes;
- (b) Movers of motions when exercising their right of reply – not more than 5 minutes; and
- (c) Other members – not more than 5 minutes.

Time limits can be extended if a motion to that effect is moved, seconded and supported by a majority of members present.

21.3 Questions to staff

During a debate members can ask staff questions about the matters being discussed. Questions must be asked through the chairperson, and how the question is to be dealt with is at the chairperson's discretion.

21.4 Questions of clarification

At any point in a debate a member may ask the chairperson for clarification about the nature and content of the motion which is the subject of the debate and/or the particular stage the debate has reached.

21.5 Members may speak only once

A member, depending on the choice of options for speaking and moving set out in SO 22.2 -22.4, may not speak more than once to a motion at a meeting of the council, except with permission of the chairperson. Members can speak more than once to a motion at a committee or subcommittee meeting with the chairperson's permission.

21.6 Limits on number of speakers

If three speakers have spoken consecutively in support of, or in opposition to, a motion, the Chairperson may call for a speaker to the contrary. If there is no speaker to the contrary, the Chairperson must put the motion after the mover's right of reply.

Members speaking must, if requested by the chairperson, announce whether they are speaking in support of, or opposition to, a motion.

21.7 Seconders may reserve speech

A member may second a motion or amendment without speaking to it, reserving the right to speak until later in the debate.

21.8 Speaking only to relevant matters

Members may only speak to;

- I. any matter before the meeting
- II. a motion or amendment which they propose, and
- III. to raise a point of order arising out of debate,

Members must confine their remarks strictly to the motion or amendment they are speaking to.

The chairperson's rulings on any matters arising under this Standing Order are final and not open to challenge.

21.9 Restating motions

At any time during a debate a member may ask, for their information, that the chairperson restate a motion and any amendments; but not in a manner that interrupts a speaker.

21.10 Criticism of resolutions

A member speaking in a debate may not unduly criticise the validity of any resolution, except by a notice of motion to amend or revoke the resolution.

21.11 Objecting to words

When a member objects to any words used by another member in a speech and wants the minutes to record their objection, they must object at the time when the words are used and before any other member has spoken. The chairperson must order the minutes to record the objection.

Note: This provision does not preclude a member from making a complaint at any time during, or after, a meeting about the use of inappropriate or offensive language.

21.12 Right of reply

The mover of an original motion has a right of reply. A mover of an amendment to the original motion does not. In their reply, the mover must confine themselves to answering previous speakers and not introduce any new matters.

A mover's right of reply can only be used once. It can be exercised either at the end of the debate on the original, substantive or substituted motion or at the end of the debate on a proposed amendment.

The original mover may speak once to the principal motion and once to each amendment without losing that right of reply. If a closure motion is carried, the mover of the motion may use their right of reply before the motion or amendment is put to the vote. The mover of the original motion may choose to indicate that they wish to reserve their right or reply until the closure motion.

21.13 No other member may speak

In exercising a right of reply, no other member may speak:

- I. After the mover has started their reply;
- II. After the mover has indicated that they want to forego this right; and
- III. Where the mover has spoken to an amendment to the original motion and the chairperson has indicated that he or she intends to put the motion.

21.14 Adjournment motions

The carrying of any motion to adjourn a meeting must supersede other business still remaining to be disposed of. Any such business must be considered at the next meeting. Business referred to, or referred back to, a specified committee or local or community board, is to be considered at the next ordinary meeting of that committee or board, unless otherwise specified.

21.15 Chairperson's acceptance of closure motions

The Chairperson may only accept a closure motion where there have been at least two speakers for and two speakers against the motion that is proposed to be closed, or the chairperson considers it reasonable to do so.

However, the chairperson must put a closure motion if there are no further speakers in the debate. When the meeting is debating an amendment, the closure motion relates to the amendment. If a closure motion is carried, the mover of the motion under debate has the right of reply after which the chairperson puts the motion or amendment to the vote.

22. General procedures for speaking and moving motions/Ngā tikanga whānui mō te kōrero me te mōtini

22.1 Options for speaking and moving

This subsection provides three options for speaking and moving motions and amendments at a meeting of a local authority, its committees and subcommittees, and any local or community boards.

Option A applies unless, on the recommendation of the chairperson at the beginning of a meeting, the meeting resolves [*by simple majority*] to adopt either of the other two options for the meeting generally, or for any specified items on the agenda.

22.2 Option A

- The mover and seconder of a motion cannot move or second an amendment. (This does not apply when the mover or seconder of a motion to adopt a report of a committee wants to amend an item in the report. In this case the original mover or seconder may also propose or second the suggested amendment).
- Only members who have not spoken to the original, or substituted, motion may move or second an amendment to it.
- The mover or seconder of an amendment, whether it is carried (in which case it becomes the substantive motion) or lost, cannot move or second a subsequent amendment.
- Members can speak to any amendment and, provided they have not spoken to the motion or moved or seconded an amendment, they can move or second further amendments.
- The meeting, by agreement of the majority of members present, may amend a motion with the agreement of the mover and seconder.

22.3 Option B

- The mover and seconder of a motion cannot move or second an amendment. (This does not apply when the mover or seconder of a motion to adopt a report of a committee wants to amend an item in the report. In this case the original mover or seconder may also propose or second the suggested amendment).
- Any members, regardless of whether they have spoken to the original or substituted motion, may move or second an amendment to it.
- The mover or seconder of an amendment that is carried can move or second a subsequent amendment. A mover or seconder of an amendment which is lost cannot move or second a subsequent amendment.
- Members can speak to any amendment.
- The meeting by agreement of the majority of members present may amend a motion with the agreement of the mover and seconder.

22.4 Option C

- The mover and seconder of a motion can move or second an amendment.
- Any members, regardless of whether they have spoken to the original or substituted motion, may move or second an amendment to it.
- The mover or seconder of an amendment whether it is carried or lost can move or second further amendments.
- Members can speak to any amendment.
- The meeting by agreement of the majority of members present may amend a motion with the agreement of the mover and seconder.

23. Motions and amendments/Ngā mōtini me ngā whakahoutanga

23.1 Proposing and seconding motions

All motions, and amendments moved during a debate, must be seconded (including notices of motion). The chairperson may then state the motion and propose it for discussion. A motion should be moved and seconded before debate but after questions.

Amendments and motions that are not seconded are not valid and should not be entered in the minutes.

Note: Members who move or second a motion are not required to be present for the entirety of the debate.

23.2 Motions in writing

The chairperson may require movers of motions and amendments to provide them in writing, signed by the mover.

23.3 Motions expressed in parts

The chairperson, or any member, can require a motion that has been expressed in parts to be decided part by part.

23.4 Substituted motion

Where a motion is subject to an amendment the meeting may substitute the motion with the amendment, provided the mover and seconder of the original motion agree to its withdrawal. All members may speak to the substituted motion.

23.5 Amendments to be relevant and not direct negatives

Every proposed amendment must be relevant to the motion under discussion. Proposed amendments cannot be similar to an amendment that has already been lost. An amendment cannot be a direct negative to the motion or the amended motion. Reasons for not accepting an amendment can include:

- a) Not directly relevant
- b) In conflict with a carried amendment
- c) Similar to a lost amendment
- d) Would negate a committee decision if made under delegated authority
- e) In conflict with a motion referred to the governing body by that meeting

- f) Direct negative.

Please note that amendments that are significantly different must comply with the decision-making provisions of Part 6 of the LGA 2002.

23.6 Foreshadowed amendments

The meeting must dispose of an existing amendment before a new amendment can be moved. However, members may foreshadow to the chairperson that they intend to move further amendments as well as the nature of the content of those amendments.

23.7 Carried amendments

Where an amendment is lost, the meeting will resume the debate on the original or substituted motion. Any member who has not spoken to that motion may, depending on the choice of options for speaking and moving set out in Standing Orders 22.2 – 22.4, speak to it, and may move or second a further amendment.

23.8 Lost amendments

Where an amendment is carried, the meeting will resume the debate on the original motion as amended. This will now be referred to as the substantive motion. Members who have not spoken to the original motion may, depending on the choice of options for speaking and moving set out in Standing Orders 22.2 – 22.4, speak to the substantive motion, and may move or second a further amendment to it.

23.9 Where a motion is lost

In a situation where a substantive motion that recommends a course of action is lost a new motion, with the consent of the Chairperson, may be proposed to provide direction.

23.10 Withdrawal of motions and amendments

Once a motion or amendment has been seconded the mover cannot withdraw it without the agreement of the majority of the members who are present and voting.

The mover of an original motion, which has been subject to an amendment that has been moved and seconded, cannot withdraw the original motion until the amendment has either been lost or withdrawn by agreement, as above.

23.11 No speakers after reply or motion has been put

A member may not speak to any motion once:

- (a) The mover has started their right of reply in relation to the motion; and
- (b) The Chairperson has started putting the motion.

24. Revocation or alteration of resolutions/Te whakakore, te whakahou rānei i ngā tatūnga

24.1 Member may move revocation of a decision

A member may give the chief executive a notice of motion for the revocation or alteration of all or part of a previous resolution of the council, subordinate body, local or community board. The notice must set out:

- (a) The resolution or part of the resolution which the member proposes to revoke or alter;
- (b) The meeting date when the resolution was passed;
- (c) The motion, if any, which the member proposes to replace it with; and
- (d) Sufficient information to satisfy the decision-making provisions of sections 77-82 of Part 6, of the LGA 2002.

If the mover of the notice of motion is unable to provide this information, or the decision is likely to be deemed a significant decision, the notice of motion should provide that the proposal is referred to the chief executive for consideration and report.

24.2 Revocation must be made by the body responsible for the decision

If a resolution is made under delegated authority by a committee, subcommittee or subordinate decision-making body, or a local or community board, only that body may revoke or amend the resolution, assuming the resolution is legally made.

This provision does not prevent the body that made the delegation from removing or amending a delegation given to a subordinate body or local board or community board.

LGA 2002, sch 7, cl 30(6).

24.3 Requirement to give notice

A member must give notice to the chief executive at least 5 working days before the meeting at which it is proposed to consider the motion. The notice is to be signed by not less than one third of the members of the local authority, including vacancies. Notice can be sent via email and include the scanned electronic signatures of members. If the notice of motion is lost, no similar notice of motion which is substantially the same in purpose and effect may be accepted within the next twelve months.

24.4 Restrictions on actions under the affected resolution

Once a notice of motion to revoke or alter a previous resolution has been received no irreversible action may be taken under the resolution in question until the proposed notice of motion has been dealt with.

Exceptions apply if, in the opinion of the chairperson:

- (a) The practical effect of delaying actions under the resolution would be the same as if the resolution had been revoked;

- (b) By reason of repetitive notices, the effect of the notice is an attempt by a minority to frustrate the will of the local authority or the committee that made the previous resolution.

In either of these situations, action may be taken under the resolution as though no notice of motion had been given to the chief executive.

24.5 Revocation or alteration by resolution at same meeting

A meeting may revoke or alter a previous resolution made at the same meeting where, during the course of the meeting, it receives fresh facts or information concerning the resolution. In this situation 75 per cent of the members present and voting must agree to the revocation or alteration.

24.6 Revocation or alteration by recommendation in report

The local authority, on a recommendation in a report by the chairperson, chief executive, or any committee or subcommittee, local or community board, may revoke or alter all or part of a resolution passed by a previous meeting. The chief executive must give at least two clear working days' notice of any meeting that will consider a revocation or alteration recommendation.

LGA 2002, sch 7, cl 30(6).

25. Procedural motions/Ngā mōtini whakahaere

25.1 Procedural motions must be taken immediately

A procedural motion to close or adjourn a debate will take precedence over other business, except points of order and rights of reply. If the procedural motion is seconded the chairperson must put it to the vote immediately, without discussion or debate. A procedural motion to close or adjourn debate can be taken after two speakers have spoken for the motion and two against or, in the chairperson's opinion, it is reasonable to accept the closure motion.

25.2 Procedural motions to close or adjourn a debate

Any member who has not spoken on the matter under debate may move any one of the following procedural motions to close or adjourn a debate:

- (a) That the meeting be adjourned to the next ordinary meeting (unless the member states an alternative time and place);
- (b) that the motion under debate should now be put (a closure motion);
- (c) That the item being discussed should be adjourned to a specified time and place and not be further discussed at the meeting;
- (d) That the item of business being discussed should lie on the table and not be further discussed at this meeting; (items lying on the table at the end of the triennium will be deemed to have expired); and
- (e) That the item being discussed should be referred (or referred back) to the relevant committee or local or community board.

A member seeking to move a procedural motion must not interrupt another member who is already speaking.

25.3 Voting on procedural motions

Procedural motions to close or adjourn a debate must be decided by a majority of all members who are present and voting. If the motion is lost no member may move a further procedural motion to close or adjourn the debate within the next 15 minutes.

25.4 Debate on adjourned items

When debate resumes on items of business that have been previously adjourned all members are entitled to speak on the items.

25.5 Remaining business at adjourned meetings

Where a resolution is made to adjourn a meeting, the remaining business will be considered at the next meeting.

25.6 Business referred to the council, committee or local or community board

Where an item of business is referred (or referred back) to a committee or a local or community board, the committee or board will consider the item at its next meeting unless the meeting resolves otherwise.

25.7 Other types of procedural motions

The chairperson has discretion about whether to allow any other procedural motion that is not contained in these Standing Orders.

26. Points of order/Te tono ki te whakatika hapa

26.1 Members may raise points of order

Any member may raise a point of order when they believe these Standing Orders have been breached. When a point of order is raised, the member who was previously speaking must stop speaking and sit down (if standing).

26.2 Subjects for points of order

A member who is raising a point of order must state precisely what its subject is. Points of order may be raised for the following subjects:

- (a) Disorder – to bring disorder to the attention of the chairperson;
- (b) Language – to highlight use of disrespectful, offensive or malicious language;

- (c) Irrelevance – to inform the chair that the topic being discussed is not the matter currently before the meeting;
- (d) Misrepresentation – to alert the chair of a misrepresentation in a statement made by a member, an officer or a council employee;
- (e) Breach of standing order – to highlight a possible breach of a standing order while also specifying which standing order is subject to the breach; and
- (f) Recording of words – to request that the minutes record any words that have been the subject of an objection.

26.3 Contradictions

Expressing a difference of opinion or contradicting a statement by a previous speaker does not constitute a point of order.

26.4 Point of order during division

A member may not raise a point of order during a division, except with the permission of the chairperson.

26.5 Chairperson's decision on points of order

The chairperson may decide a point of order immediately after it has been raised, or may choose to hear further argument about the point before deciding. The chairperson's ruling on any point of order, and any explanation of that ruling, is not open to any discussion and is final.

Should a point of order concern the performance of the chair, then the chair will refer the point of order to the deputy chair or, if there is no deputy, another member to hear arguments and make a ruling.

27. Notices of motion/Te pānui i ngā mōtini

27.1 Notice of intended motion to be in writing

Notice of intended motions must be in writing signed by the mover, stating the meeting at which it is proposed that the intended motion be considered, and must be delivered to the chief executive at least 5 clear working days before such meeting. [Notice of an intended motion can be sent via email and include the scanned electronic signature of the mover].

Once the motion is received the chief executive must give members notice in writing of the intended motion at least 2 clear working days' notice of the date of the meeting at which it will be considered.

27.2 Refusal of notice of motion

The chairperson may direct the chief executive to refuse to accept any notice of motion which:

- (a) Is disrespectful or which contains offensive language or statements made with malice; or

- (b) Is not related to the role or functions of the local authority or meeting concerned; or
- (c) Contains an ambiguity or a statement of fact or opinion which cannot properly form part of an effective resolution, and where the mover has declined to comply with such requirements as the chief executive officer may make; or
- (d) Is concerned with matters which are already the subject of reports or recommendations from a committee to the meeting concerned; or
- (e) Fails to include sufficient information as to satisfy the decision-making provisions of the LGA 2002, ss 77-82. If the mover of the notice of motion is unable to provide this information, or the decision is likely to be deemed a significant decision, the notice of motion should provide that the proposal is referred to the chief executive for consideration and report; or
- (f) Concerns a matter where decision-making authority has been delegated to a subordinate body or a local or community board.

Reasons for refusing a notice of motion should be provided to the mover. Where the refusal is due to (f) the notice of motion may be referred to the appropriate committee or board.

27.3 Mover of notice of motion

Notices of motion may not proceed in the absence of the mover unless moved by another member authorised to do so, in writing, by the mover.

27.4 Alteration of notice of motion

Only the mover, at the time the notice of motion is moved and with the agreement of a majority of those present at the meeting, may alter a proposed notice of motion. Once moved and seconded no amendments may be made to a notice of motion.

27.5 When notices of motion lapse

Notices of motion that are not moved when called for by the chairperson must lapse.

27.6 Referral of notices of motion

Any notice of motion received that refers to a matter ordinarily dealt with by a committee of the local authority or a local or community board must be referred to that committee or board by the chief executive.

Where notices are referred the proposer of the intended motion, if not a member of that committee, must have the right to move that motion and have the right of reply, as if a committee member.

27.7 Repeat notices of motion

When a motion has been considered and rejected by the local authority or a committee, no similar notice of motion may be accepted within the next 12 months, unless signed by not less than one third of all members, including vacancies.

Where a notice of motion has been adopted by the local authority no other notice of motion which, in the opinion of the chairperson has the same effect, may be put while the original motion stands.

28. Minutes/Ngā meneti

28.1 Minutes to be evidence of proceedings

The local authority, its committees, subcommittees and any local and community boards must keep minutes of their proceedings. These minutes must be kept in hard or electronic copy, authorised by a chairperson's manual or electronic signature once confirmed by resolution at a subsequent meeting. Once authorised the minutes are the *prima facie* evidence of the proceedings they relate to.

LGA 2002, sch 7, cl 28.

28.2 Matters recorded in minutes

The chief executive must keep the minutes of meetings. The minutes must record:

- (a) The date, time and venue of the meeting;
- (b) The names of the members present;
- (c) The chairperson;
- (d) Any apologies or leaves of absences;
- (e) Member absent without apology or leave of absence;
- (f) Member absent on council business;
- (g) The arrival and departure times of members;
- (h) Any failure of a quorum;
- (i) A list of any external speakers and the topics they addressed;
- (j) A list of the items considered;
- (k) Items tabled at the meeting;
- (l) The resolutions and amendments related to those items including those that were lost, provided they had been moved and seconded in accordance with these Standing Orders;
- (m) The names of all movers, and seconders;
- (n) Any objections made to words used;
- (o) All divisions taken and, if taken, a record of each members' vote;
- (p) the names of any members requesting that their vote or abstention be recorded;
- (q) Any declarations of financial or non-financial conflicts of interest;
- (r) The contempt, censure and removal of any members;
- (s) Any resolutions to exclude members of the public;
- (t) The time at which the meeting concludes or adjourns; and

- (u) The names of people permitted to stay in public excluded.

Please Note: hearings under the RMA 1991, Dog Control Act 1996 and Sale and Supply of Alcohol Act 2012 may have special requirements for minute taking.

28.3 No discussion on minutes

The only topic that may be discussed at a subsequent meeting, with respect to the minutes, is their correctness.

28.4 Minutes of last meeting before election

The chief executive and the relevant chairpersons must sign, or agree to have their digital signature inserted, the minutes of the last meeting of the local authority and any local and community boards before the next election of members.

29. Keeping a record/Te whakarite mauhanga

29.1 Maintaining accurate records

A local authority must create and maintain full and accurate records of its affairs, in accordance with normal, prudent business practice, including the records of any matter that is contracted out to an independent contractor.

All public records that are in its control must be maintained in an accessible form, so as to be able to be used for subsequent reference.

Public Records Act 2002, s 17.

29.2 Method for maintaining records

Records of minutes may be kept in hard copy (Minute Books) and/or in electronic form. If minutes are stored electronically the repository in which they are kept must meet the following requirements:

- (a) The provision of a reliable means of assuring the integrity of the information is maintained; and
- (b) The information is readily accessible so as to be usable for subsequent reference.

Contract and Commercial Law Act 2017, s 229(1).

29.3 Inspection

Whether held in hard copy or in electronic form minutes must be available for inspection by the public.

LGOIMA, s 51.

29.4 Inspection of public excluded matters

The chief executive must consider any request for the minutes of a meeting, or part of a meeting, from which the public was excluded as if it is a request for official information in terms of the Local Government Official Information and Meetings Act 1987.

Referenced documents/Ngā tohutoro tuhinga

- Commissions of Inquiry Act 1908
- Crimes Act 1961
- Contract and Law Act 2017
- Financial Markets Conduct Act 2013
- Local Authorities (Members' Interests) Act 1968 (LAMIA)
- Local Electoral Act 2001 (LEA)
- Local Government Act 1974 and 2002 (LGA)
- Local Government Official Information and Meetings Act 1987 (LGOIMA)
- Marine Farming Act 1971
- Public Records Act 2005
- Resource Management Act 1991 (RMA)
- Sale and Supply of Alcohol Act 2012
- Secret Commissions Act 1910
- Securities Act 1978

Appendix 1: Grounds to exclude the public

Āpitihianga 1: Ngā take e aukatihia ai te marea

A local authority may, by resolution, exclude the public from the whole or any part of the proceedings of any meeting only on one or more of the following grounds:

- A1** That good reason exists for excluding the public from the whole or any part of the proceedings of any meeting as the public disclosure of information would be likely:
- (a) To prejudice the maintenance of the law, including the prevention, investigation, and detection of offences, and the right to a fair trial; or
 - (b) To endanger the safety of any person.
- A2** That the public conduct of the whole or the relevant part of the proceedings of the meeting would be likely to result in the disclosure of information where the withholding of the information is necessary to:
- (a) Protect the privacy of natural persons, including that of deceased natural persons; or
 - (b) Protect information where the making available of the information would:
 - i. Disclose a trade secret; or
 - ii. Be likely unreasonably to prejudice the commercial position of the person who supplied or who is the subject of the information.
 - (ba) In the case only of an application for a resource consent, or water conservation order, or a requirement for a designation or heritage order, under the Resource Management Act 1991, to avoid serious offence to tikanga Māori, or to avoid the disclosure of the location of waahi tapu; or
 - (c) Protect information which is subject to an obligation of confidence or which any person has been or could be compelled to provide under the authority of any enactment, where the making available of the information would:
 - i. Be likely to prejudice the supply of similar information, or information from the same source, and it is in the public interest that such information should continue to be supplied; or
 - ii. Be likely otherwise to damage the public interest.
 - (d) Avoid prejudice to measures protecting the health or safety of members of the public; or
 - (e) Avoid prejudice to measures that prevent or mitigate material loss to members of the public; or
 - (f) Maintain the effective conduct of public affairs through the protection of such members, officers, employees, and persons from improper pressure or harassment; or
 - (g) Maintain legal professional privilege; or
 - (h) Enable any council holding the information to carry out, without prejudice or disadvantage, commercial activities; or
 - (i) Enable any council holding the information to carry on, without prejudice or disadvantage, negotiations (including commercial and industrial negotiations); or

- (j) Prevent the disclosure or use of official information for improper gain or improper advantage.

LGOIMA, s 7.

Under A2 (above) the public may be excluded unless, in the circumstances of a particular case, the exclusion of the public is outweighed by other considerations which render it desirable and in the public interest that the public not be excluded.

- A3** That the public conduct of the whole or the relevant part of the proceedings of the meeting would be likely to result in the disclosure of information, the public disclosure of which would:
 - (a) Be contrary to the provisions of a specified enactment; or
 - (b) Constitute contempt of Court or of the House of Representatives.
- A4** That the purpose of the whole or the relevant part of the proceedings of the meeting is to consider a recommendation made to that Council by an Ombudsman under section 30(1) or section 38(3) of this Act (in the case of a Council named or specified in Schedule 1 to this Act).
- A5** That the exclusion of the public from the whole or the relevant part of the proceedings of the meeting is necessary to enable the Council to deliberate in private on its decision or recommendation in:
 - (a) Any proceedings before a Council where:
 - i. A right of appeal lies to any Court or tribunal against the final decision of the Council in those proceedings;
 - ii. The Council is required, by any enactment, to make a recommendation in respect of the matter that is the subject of those proceedings; and
 - iii. Proceedings of a local authority exist in relation to any application or objection under the Marine Farming Act 1971.

LGOIMA, s 48.

Appendix 2: Sample resolution to exclude the public

Āpitianga 2: He tauira mō te tatūnga ki te aukati i te marea/

In accordance with section 48(1) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by section 6 or section 7 of that Act (or sections 6, 7 or 9 of the Official Information Act 1982, as the case may be), it is **moved**:

1 that the public is excluded from:

- The whole of the proceedings of this meeting; *(deleted if not applicable)*
- The following parts of the proceedings of this meeting, namely; *(delete if not applicable)*

The general subject of the matters to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds for excluding the public, as specified by s 48(1) of the Local Government Official Information and Meetings Act 1987, are set out below:

Meeting Item No. and subject	Reason for excluding the public	Grounds for excluding the public
		To prevent the disclosure of information which would— i. be contrary to the provisions of a specified enactment; or ii. constitute contempt of court or of the House of Representatives (s.48(1)(b)).
		To consider a recommendation made by an Ombudsman (s. 48(1)(c)).
		To deliberate on matters relating to proceedings where: i. a right of appeal lies to a court or tribunal against the final decision of the councils in those proceedings; or ii. the council is required, by an enactment, to make a recommendation in respect of the matter that is the subject of those proceedings (s.48(1)(d)).
		To deliberate on proceedings in relation to an application or objection under the Marine Farming Act 1971 (s.48(1)(d)).

Meeting Item No. and subject	Reason for excluding the public	Grounds for excluding the public
		To carry on, without prejudice or disadvantage, negotiations (including commercial and industrial negotiations) (s 7(2)(i)).
		To protect the privacy of natural persons, including that of deceased natural persons (s 7(2)(a)).
		To maintain legal professional privilege (s 7(2)(g)).
		To prevent the disclosure or use of official information for improper gain or advantage (s. 7(2)(j)).
		To protect information which if public would; i. disclose a trade secret; or ii. unreasonably prejudice the commercial position of the person who supplied or who is the subject of the information (s 7(2)(b)).
		To avoid serious offence to Tikanga Māori, or the disclosure of the location of waahi tapu in relation to an application under the RMA 1991 for; • a resource consent, or • a water conservation order, or • a requirement for a designation or • an heritage order, (s 7(2)(ba)).
		To protect information which is subject to an obligation of confidence where the making available of the information would be likely to: i. prejudice the supply of similar information, or information from the same source, where it is in the public interest that such information should continue to be supplied; or ii. would be likely otherwise to damage the public interest (s 7(2)(c)).
		To avoid prejudice to measures protecting the health or safety of members of the public (s 7(2)(d)).

Meeting Item No. and subject	Reason for excluding the public	Grounds for excluding the public
		To avoid prejudice to measures that prevent or mitigate material loss to members of the public (s 7(2)(e)).
		To maintain the effective conduct of public affairs by protecting members or employees of the Council in the course of their duty, from improper pressure or harassment (s 7(2)(f)(ii)).
		To enable the council to carry out, without prejudice or disadvantage, commercial activities (s 7(2)(h)).

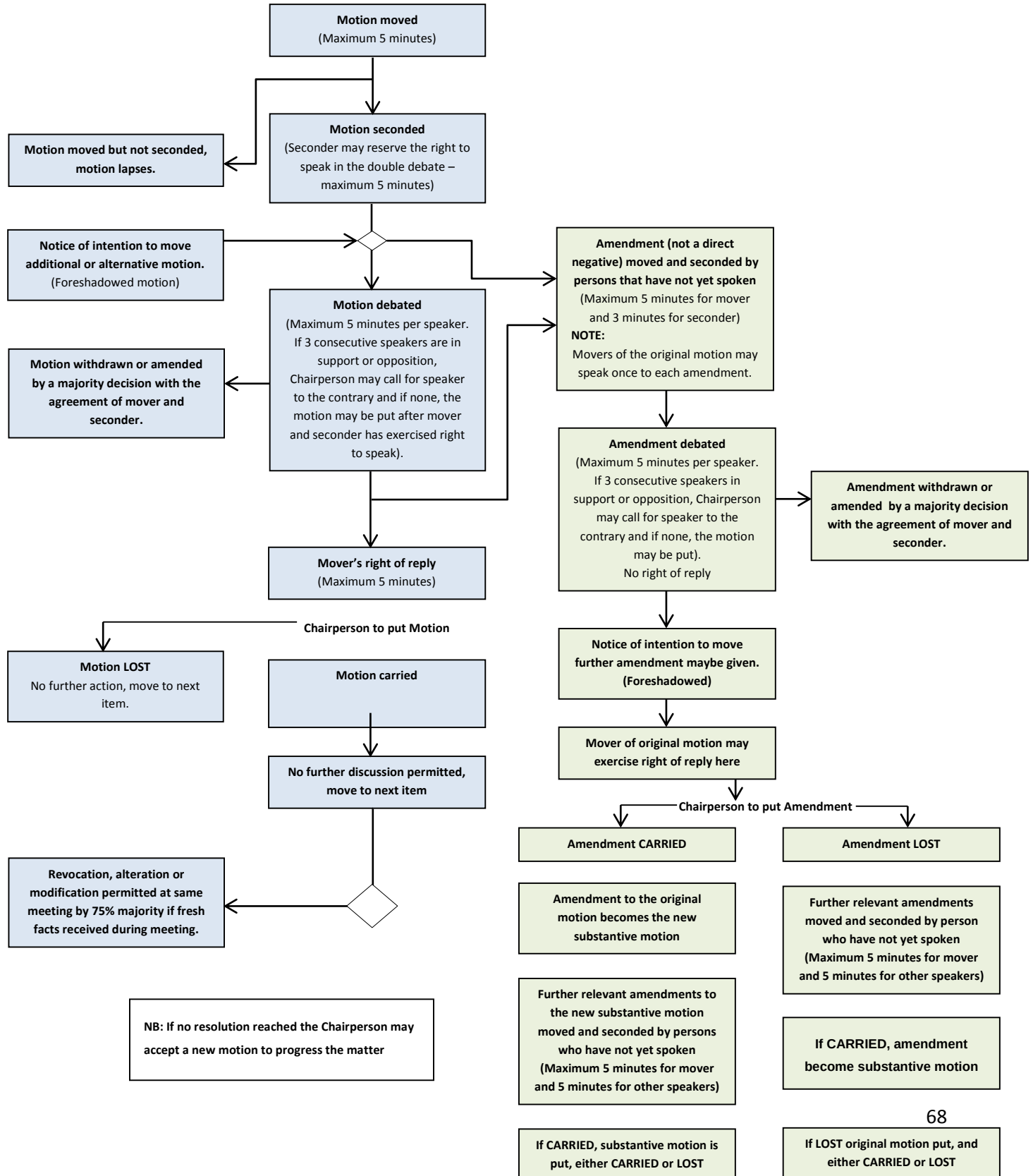
2. That *(name of person(s))* is permitted to remain at this meeting after the public has been excluded because of their knowledge of *(specify topic under discussion)*. This knowledge, which will be of assistance in relation to the matter to be discussed, is relevant to that matter because *(specify)*. *(Delete if inapplicable.)*

Appendix 3: Motions and amendments (Option A)

Āpitianga 3: Ngā mōtini me ngā whakahoutanga (Kōwhiringa A)

Motions without amendments

Motions with amendments

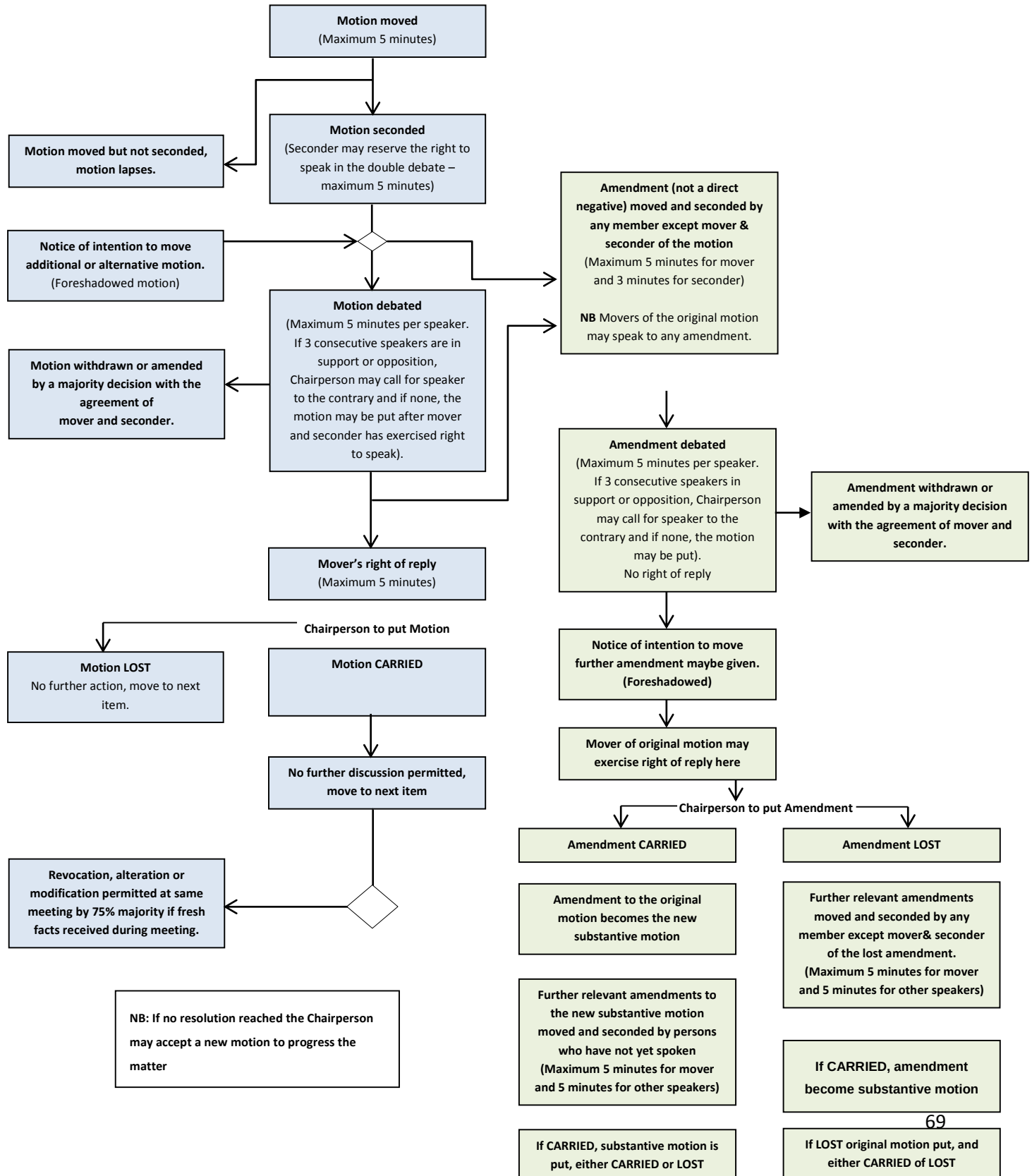


Appendix 4: Motions and amendments (Option B)

Āpitianga 4: Ngā mōtini me ngā whakahoutanga (Kōwhiringa B)

Motions without amendments

Motions with amendments

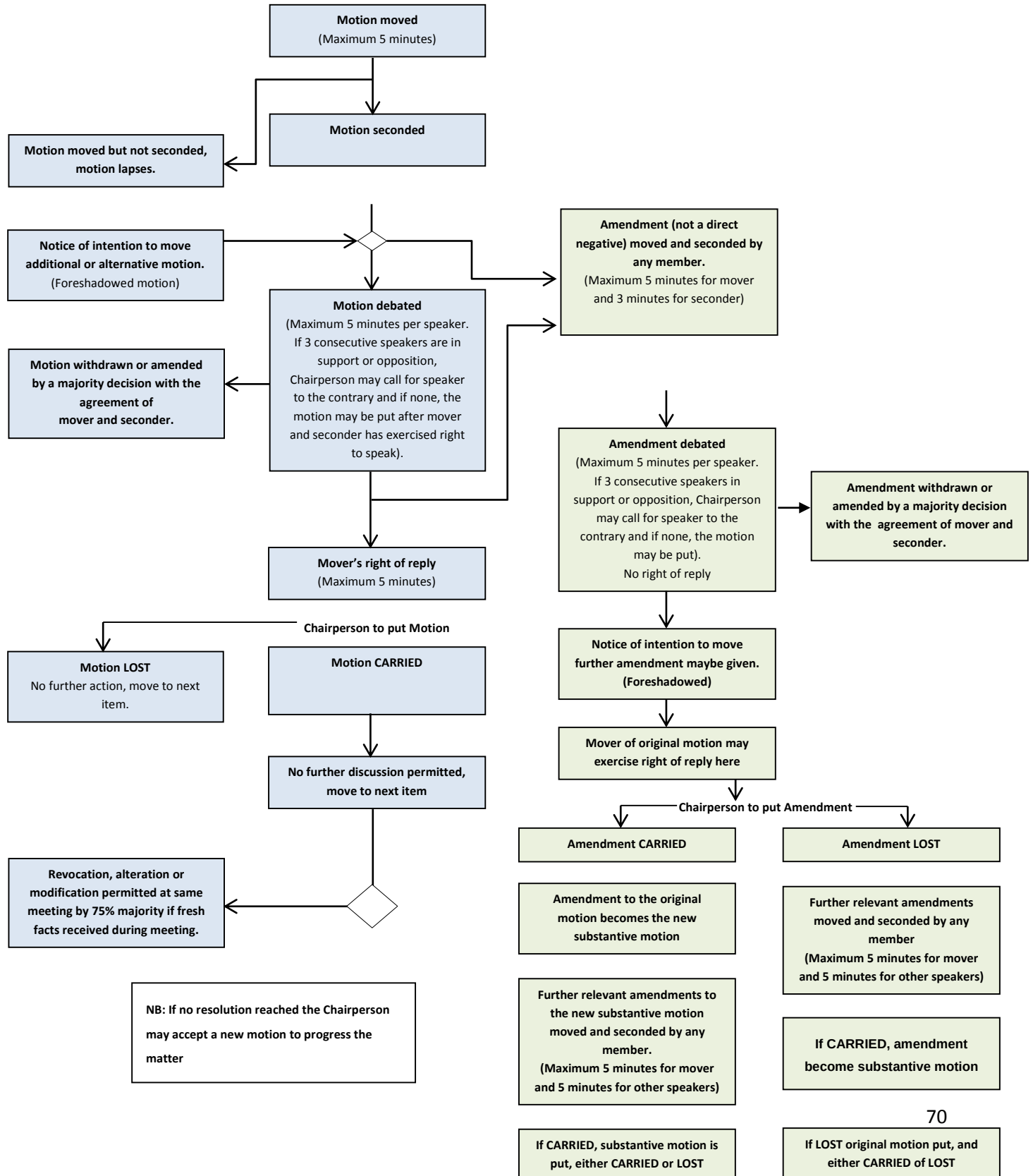


Appendix 5: Motions and amendments (Option C)

Āpitihanga 5: Ngā mōtini me ngā whakahoutanga (Kōwhiringa C)

Motions without amendments

Motions with amendments



Appendix 6: Table of procedural motions/Āpitihanga 6: Tūtohi mō ngā mōtini whakahaere

Motion	Has the Chair discretion to refuse this Motion?	Is seconder required?	Is discussion in order?	Are amendments in order?	Is mover of procedural motion entitled to reply?	Are previous participants in debate entitled to move this motion?	Can a speaker be interrupted by the mover of this motion?	If lost, can motion be moved after an interval?	Position if an amendment is already before the Chair	Position if a procedural motion is already before the Chair	Remarks
(a) "That the meeting be adjourned to the next ordinary meeting, or to a stated time and place"	No	Yes	No	As to time and date only	No	No	No	Yes – 15 minutes	If carried, debate on the original motion and amendment are adjourned	If carried, debate on the original motion and procedural motion are adjourned	On resumption of debate, the mover of the adjournment speaks first. Members who have spoken in the debate may not speak again
(b) "That the motion under debate be now put (closure motion)"	No	Yes	No	No	No	No	No	Yes – 15 Minutes	If carried, only the amendment is put	If carried, only the procedural motion is put	The mover of the motion under debate is entitled to exercise a right of reply before the motion or amendment under debate is put
(c) "That the item of business being discussed be adjourned to a stated time and place"	No	Yes	No	As to time and date only	No	No	NO	Yes – 15 minutes	If carried, debate on the original motion and amendment are adjourned	If carried, debate on the original motion and procedural motion are adjourned	

Motion	Has the Chair discretion to refuse this Motion?	Is seconder required?	Is discussion in order?	Are amendments in order?	Is mover of procedural motion entitled to reply?	Are previous participants in debate entitled to move this motion?	Can a speaker be interrupted by the mover of this motion?	If lost, can motion be moved after an interval?	Position if an amendment is already before the Chair	Position if a procedural motion is already before the Chair	Remarks
(d) "That the item of business being discussed does lie on the table and not be discussed at this meeting"	No	Yes	No	No	No	No	No	Yes – 15 minutes	If carried, the original motion and amendment are both laid on the table	Motion not in order	
(e) "That the item of business being discussed be referred (or referred back) to the local authority or to the relevant committee"	No	Yes	No	As to committee, time for reporting back etc only	No	No	No	Yes – 15 minutes	If carried, the original motion and all amendments are referred to the committee	If carried, the procedural motion is deemed disposed of	
(f) "Points of order"	No – but may rule against	No	Yes – at discretion of chairperson	No	No	Yes	Yes	No	Point of order takes precedence	Point of order takes precedence	See standing order 3.14

Appendix 7: Webcasting protocols

Āpitianga 7: Ngā tikanga mō te pāhotanga mataora

The provisions are intended as a good practice guide to local authorities that are webcasting meetings or planning to do so.

1. The default shot will be on the chairperson or a wide-angle shot of the meeting room.
2. Cameras will cover a member who is addressing the meeting. Cameras will also cover other key participants in a meeting, including staff when giving advice and members of the public when addressing the meeting during the public input time.
3. Generally interjections from other members or the public are not covered. However if the chairperson engages with the interjector, the interjector's reaction can be filmed.
4. PowerPoint presentations, recording of votes by division and other matters displayed by overhead projector may be shown.
5. Shots unrelated to the proceedings, or not in the public interest, are not permitted.
6. If there is general disorder or a disturbance from the public gallery, coverage will revert to the chairperson.
7. Appropriate signage will be displayed both in and outside the meeting room alerting people that the proceedings are being web cast.

Appendix 8: Powers of a Chairperson

Āpitihanga 8: Ngā Mana Whakahaere a te Ūpoko

This Appendix sets out the specific powers given to the chairperson contained in various parts of these Standing Orders.

Chairperson to decide all questions

The Chairperson is to decide all questions where these Standing Orders make no provision or insufficient provision. The chairperson's ruling is final and not open to debate.

Chairperson to decide points of order (SO. 26.5)

The chairperson is to decide any point of order and may do so immediately after it has been raised or may first hear further argument before deciding. The ruling of the chairperson upon any point of order is not open to any discussion and is final. No point of order may be raised during a division except by permission of the chairperson.

Items not on the agenda (SO.9.12)

Major items not on the agenda may be dealt with at that meeting if so resolved by the local authority and the chairperson explains at the meeting at a time when it is open to the public the reason why the item was not listed on the agenda and the reason why discussion of the item cannot be delayed until a subsequent meeting.

Minor matters not on the agenda relating to the general business of the local authority may be discussed if the chairperson explains at the beginning of the meeting, at a time when it is open to the public, that the item will be discussed at that meeting, but no resolution, decision or recommendation may be made in respect of that item except to refer it to a subsequent meeting.

Chairperson's report (SO.9.6)

The chairperson, by report, has the right to direct the attention of the local authority to any matter or subject within the role or function of the local authority.

Chairperson's recommendation (SO.9.5)

The chairperson of any meeting may include on the agenda for that meeting a chairperson's recommendation regarding any item brought before the meeting. The purpose of such a recommendation is to focus debate on a suggested motion.

Chairperson's voting (SO19.3)

The chairperson at any meeting has a deliberative vote and, in the case of equality of votes, has a casting vote where Standing Orders make such provision.

Motion in writing (SO.23.2)

The chairperson may require the mover of any motion or amendment to submit it in writing signed by the mover.

Motion in parts (SO.23.3)

The chairperson may require any motion expressed in parts to be decided part by part.

Notice of motion (SO.27.2)

The chairperson may direct the chief executive to refuse to accept any notice of motion which:

- (a) Is disrespectful or which contains offensive language or statements made with malice; or
- (b) Is not within the scope of the role or functions of the local authority; or
- (c) Contains an ambiguity or statement of fact or opinion which cannot properly form part of an effective resolution, and the mover has declined to comply with such requirements as the chief executive may have made; or
- (d) Is concerned with matters which are already the subject of reports or recommendations from a committee to the meeting concerned.

Reasons for refusing a notice of motion should be provided to the proposer.

Where a notice of motion has been considered and agreed by the local authority, no notice of any other motion which is, in the opinion of the chairperson, to the same effect may be put again whilst such original motion stands.

Action on previous resolutions (SO.

If, in the opinion of the chairperson the practical effect of a delay in taking action on a resolution which is subject to a notice of motion, would be equivalent to revocation of the resolution; or if repetitive notices of motion are considered by the chairperson to be an attempt by a minority to frustrate the will of the meeting, action may be taken as though no such notice of motion had been given.

Repeat notice of motion (SO.27.7)

If in the opinion of the chairperson, a notice of motion is substantially the same in purport and effect to any previous notice of motion which has been considered and rejected by the local authority, no such notice of motion may be accepted within six months of consideration of the first notice of motion unless signed by not less than one third of the members of the local authority, including vacancies.

Revocation or alteration of previous resolution

A chairperson may recommend in a report to the local authority the revocation or alteration of all or part of any resolution previously passed, and the local authority meeting may act on such a recommendation in accordance with the provisions in these Standing Orders.

Chairperson may call a meeting

The chairperson:

- (a) May call a meeting to dispose of the business to be transacted following the lapsing of a meeting due to failure of a quorum, if such business cannot be delayed until the next scheduled meeting; and
- (b) May requisition an extra meeting to be held at a specified time and place, in order to conduct specified business.

Irrelevant matter and needless repetition (SO.21.8)

The chairperson's ruling preventing members when speaking to any motion or amendment from introducing irrelevant matters or indulging in needless repetition is final and not open to challenge.

Taking down words (SO.21.11)

The chairperson may order words used and objected to by any member, to be recorded in the minutes, provided such objection is made at the time the words are used and not after any other members have spoken.

Explanations

The chairperson may permit members to make a personal explanation in addition to speaking to a motion, and members who have already spoken, to explain some material part of a previous speech in the same debate.

Chairperson rising (SO.14.5)

Whenever the chairperson rises during a debate any member then speaking or offering to speak is to be seated and members are to be silent so that the chairperson may be heard without interruption.

Members may leave places (SO.14.6)

The chairperson may permit members to leave their place while speaking.

Priority of speakers (SO.14.7)

The chairperson must determine the order in which members may speak when two or more members indicate their wish to speak.

Minutes (SO.28.1)

The chairperson is to sign the minutes and proceedings of every meeting once confirmed. The chairperson and chief executive are responsible for confirming the correctness of the minutes of the last meeting of a local authority prior to the next election of members.

Questions of speakers (SO.16.3)

The chairperson may permit members to ask questions of speakers under public forum or deputations/presentations by appointment, for the purpose of obtaining information or clarification on matters raised by the speaker.

Withdrawal of offensive or malicious expressions (SO.20.3)

The chairperson may call upon any member to withdraw any offensive or malicious expression and may require the member to apologise for the expression.

Any member who refuses to withdraw the expression or apologise, if required by the chairperson, can be directed to withdraw from the meeting for a time specified by the chairperson.

Chairperson's rulings (SO.14.4)

Any member who refuses to accept a ruling of the chairperson, may be required by the chairperson to withdraw from the meeting for a specified time.

Disorderly behaviour (SO.20.4)

The chairperson may:

- (a) Require any member or member of the public whose conduct is disorderly or who is creating a disturbance, to withdraw immediately from the meeting for a time specified by the chairperson.
- (b) Ask the meeting to hold in contempt, any member whose conduct is grossly disorderly and where the meeting resolves to find the member in contempt, that resolution must be recorded in the minutes.

Failure to leave meeting (SO.20.6)

If a member or member of the public who is required, in accordance with a chairperson's ruling, to leave the meeting, refuses or fails to do so, or having left the meeting, attempts to re-enter without the permission of the chairperson, any member of the police or officer or employee of the local authority may, at the chairperson's request, remove or exclude that person from the meeting.

Audio or audio visual attendance (SO.13.10)

Where the technology is available and a member is attending a meeting by audio or audio-visual link, the chairperson must ensure that:

- (a) The technology for the link is available and of suitable quality; and
- (b) Procedures for using the technology in the meeting will ensure that:
 - i. Everyone participating in the meeting can hear each other;
 - ii. The member's attendance by audio or audio-visual link does not reduce their accountability or accessibility in relation to the meeting;
 - iii. The requirements of Part 7 of LGOIMA are met; and
 - iv. The requirements in these Standing Orders are met.

If the chairperson is attending by audio or audio visual link then chairing duties will be undertaken by the deputy chair or a member who is physically present.

Appendix 9: Process for removing a chairperson or deputy Mayor from office

Āpitianga 9: Te pūnaha mō te whakakore i te tūranga a te ūpoko, te Koromatua tuarua rānei

1. At a meeting that is in accordance with this clause, a territorial authority or regional council may remove its chairperson, deputy chairperson, or deputy Mayor from office.
2. If a chairperson, deputy chairperson, or deputy mayor is removed from office at that meeting, the territorial authority or regional council may elect a new chairperson, deputy chairperson, or deputy mayor at that meeting.
3. A meeting to remove a chairperson, deputy chairperson, or deputy Mayor may be called by:
 - (a) A resolution of the territorial authority or regional council; or
 - (b) A requisition in writing signed by the majority of the total membership of the territorial authority or regional council (excluding vacancies).
4. A resolution or requisition must:
 - (a) Specify the day, time, and place at which the meeting is to be held and the business to be considered at the meeting; and
 - (b) Indicate whether or not, if the chairperson, deputy chairperson, or deputy Mayor is removed from office, a new chairperson, deputy chairperson, or deputy Mayor is to be elected at the meeting if a majority of the total membership of the territorial authority or regional council (excluding vacancies) so resolves.
5. A resolution may not be made and a requisition may not be delivered less than 21 days before the day specified in the resolution or requisition for the meeting.
6. The chief executive must give each member notice in writing of the day, time, place, and business of any meeting called under this clause not less than 14 days before the day specified in the resolution or requisition for the meeting.
7. A resolution removing a chairperson, deputy chairperson, or deputy Mayor carries if a majority of the total membership of the territorial authority or regional council (excluding vacancies) votes in favour of the resolution.

LGA 2002, sch 7, cl 18.

Appendix 10: Sample order of business

Āpitihanga 10: He tauira mō te whakaraupapatanga o ngā take

Open section

- (a) Apologies
- (b) Declarations of interest
- (c) Confirmation of minutes
- (d) Leave of absence
- (e) Acknowledgements and tributes
- (f) Petitions
- (g) Public input
- (h) Local and/or community board input
- (i) Extraordinary business
- (j) Notices of motion
- (k) Reports of committees
- (l) Reports of local and/or community boards
- (m) Reports of the chief executive and staff
- (n) Mayor, deputy Mayor and elected members' reports (information)

Public excluded section

- (o) Reports of committees
- (p) Reports of the chief executive and staff
- (q) Mayor, deputy Mayor and elected members' reports (information)

Appendix 11: Process for raising matters for a decision

Āpitianga 11: Te pūnaha mō te whakatakoto take hei whakatau

Matters requiring a decision at a meeting, may be placed on the meeting's agenda by a:

- Report of the chief executive;
- Report of the chairperson;
- Report of a committee;
- Report of a community or local board; or
- Notice of motion from a member.

Where a matter is urgent and has not been placed on an agenda, it may be brought before a meeting as extraordinary business by a:

- Report of the chief executive; or
- Report of the chairperson.

Although out of time for a notice of motion, a member may bring an urgent matter to the attention of the meeting through the chairperson.

EXTRACT FROM COUNCIL BRIEFING AGENDA 2 NOVEMBER 2022:
LAWS AFFECTING ELECTED MEMBERS

INFORMATION and the CONDUCT of MEETINGS

The Local Government Official Information and Meetings Act 1987 (LGOIMA) provides for all local government activities to take place in an open and transparent environment. It is based on the principle of availability which is that information shall be made available to the public unless there is a good reason, under the LGOIMA, for withholding it.

The purpose of the LGOIMA is to enable more effective participation by the public in the actions and decisions of local authorities and to promote the accountability of local authority members and officials with a view to enhancing respect for the law and to promote good local government in New Zealand.

The LGOIMA determines how council meetings are conducted (including in relation to excluding the public from meetings), how the council uses and releases information that it holds and what information is to be provided when a request is made for a Land Information Memorandum (LIM) in relation to any land in the district.

Access to local authority information:

Generally, all official information held by the local authority in any form should be available to the public and anyone can make a request to Council for official information held by it. However, there are limited restrictions in the Act which exclude certain material as “official information” and certain circumstances where official information can be withheld from the public.

Those circumstances include, but are not limited to, protection of privacy, commercial sensitivity, obligations of confidentiality, protecting public health and safety, maintaining legal professional privilege etc as long as there is no public interest that outweighs the reason for withholding the information.

Section 17 gives some other grounds for refusing to disclose information including that disclosure would be in breach of another law, the information will soon be public anyway, or it cannot be made available without substantial work.

Section 13(5) of the Act requires that decisions on information requests be made by the Chief Executive Officer (or an officer or employee authorised by that Chief Executive). If you receive a request personally, you should send it promptly to the Chief Executive to ensure it is processed appropriately.

Elected Members should be aware that:

- Copies of council papers, including your own annotations on them, are official information, and may be requested.
- Exclusion of the public from a meeting or workshop does not mean that the papers for or generated at the meeting or workshop are automatically able to be withheld. The Act still applies; often the reason for confidentiality may have passed.
- Some draft documents are official information. There is no special exemption for draft documents.

The LGOIMA also provides for a right to have a decision to refuse disclosure official information reviewed by the Ombudsman.

LGOIMA specifically provides that there will be no liability against the local authority or any other person for any information released in good faith under the Act.

Local Authority Meetings:

The LGOIMA also regulates and sets out the procedural requirements for meetings of Council including the public notification of Council meetings, the availability of meeting agendas and when Council or Committee meetings can be held with the public excluded.

- All meetings of Council which require a decision of Council, including Committees, must be open to the public unless certain specified reasons can be satisfied for excluding them.
- The reasons are generally the same as for withholding information in response to an information request and are set out within section 48 of the LGOIMA. It is necessary for the meeting to be satisfied that any one or more of these reasons exist before the public is excluded.
- Staff will provide guidance and suggestions where it may be considered appropriate for the Council or a Committee to meet with the public excluded.
- Agendas for Council and Committee meetings have to be made public at least two clear working days before the day of the meeting. The agendas are published on the Council website and copies are available from Council offices and public libraries.
- Other relevant provisions of the LGOIMA cover public notification of meetings, how matters that weren't on the agenda are dealt with at a meeting, how order is maintained at a meeting.
- The LGOIMA also provides for a form of qualified privilege in relation to potentially defamatory statements in agendas or made orally at a meeting. However, unlike members of parliament, Elected Members of councils do not have absolute privilege for what they say at council meetings. Privilege will not apply to statements proved to have been predominantly motivated by ill will, or where an Elected Member has taken improper advantage of the situation.

Standing Orders confirm and expand upon these procedural requirements.

8.1 2024-34 Long Term Plan – Deloitte Report to Council

Meeting: Whangarei District Council
Date of meeting: 26 September 2024
Reporting officer: Aaron Taikato – General Manager Strategy and Democracy

1 Purpose / Te Kaupapa

To update Council with the results and insights arising from Deloitte's audit of the 2024-34 Long Term Plan.

2 Recommendation / Whakataunga

That Council note the Deloitte Report to Council for the 2024-34 Long Term Plan.

3 Background / Horopaki

Deloitte conducted an audit of Whangarei District Council's (WDC) 2024-34 Long Term Plan (LTP) in accordance with the local authority audit methodology issued by the Office of the Auditor-General, pursuant to the requirements of the Local Government Act 2002. The LTP was adopted by Council on 16 July 2024.

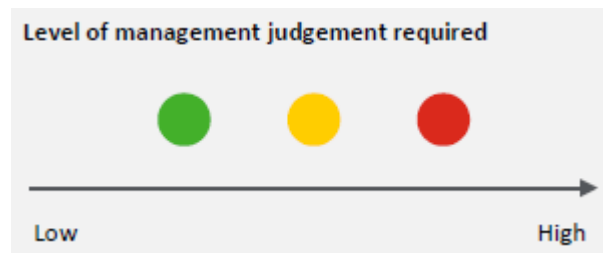
4 Discussion / Whakawhiti kōrero

The Deloitte Report to Council for the LTP (appended as Attachment 1) included results and insights arising from their audit which they considered appropriate for bringing to the attention of Elected Members. Deloitte discussed these matters with management and management comments have been included where appropriate. Also included were those matters Deloitte are required to report on in accordance with the assurance standards.

4.1 Status of the Audit

As at adoption on 16 July 2024 the status of the audit was summarised below:

Stage of audit	Progress	Details of outstanding items
Review of Deliberations and Submissions to the Consultation Document		• No items outstanding
Review of Updated Policies (Infrastructure Strategy and Finance Strategy)		• No items outstanding
Performance measures		• No items outstanding
Review of Updated Prospective Financial Information		• No items outstanding
Review of the LTP Document		• Editorial changes to be completed.



Note: All editorial changes have subsequently been made.

4.2 Areas of Audit Focus - Dashboard

Area of audit focus	Findings
LTP Document	✓
Assumptions	🔍
Financial and Infrastructure Strategy	✓
Climate change	✓
Capex do-ability	🔍
Condition and performance information for critical assets	🔍
Performance measures	🔍

✓ Completed, no issues noted
🔍 Completed, insights identified
🔍 Completed, significant findings identified

4.3 Areas of Audit Focus - Insights Identified

For those areas where insights were identified, Deloitte made the following observations:

Area of Focus	Audit Findings
Assumptions We have considered the key assumptions used by Council within the Financial Model, Infrastructure Strategy and the Financial Strategy, and assessed these for consistency and reasonableness. We considered the level of uncertainty and likelihood of the assumptions to focus our testing on the material assumptions. Additionally, we assessed the completeness of the assumptions through comparison to the OAG guidelines.	We have challenged management on the capex do-ability assumption and assumptions around ability to secure contractors as part of our work on capex do-ability. We have challenged the under-achievement of the capex plan in the past 3-4 Years, enquiring the root-cause, and how management was operating in terms of commitment and phasing to present a doable capex plan.

Do-ability of the Capital Programme At the early phase of our LTP Audit, we identified that WDC's average actual capital expenditure in the last three years was exceeding 100% in 20/21 and 22/23 but was significantly lower than 75% of budget in 21/22 resulting in average achievement of 88% implying that the capital expenditure do-ability assumption might be considered reasonable. Despite the overall positive performance, corroborated by the understanding of the root-cause of such delays that was applied in setting-up the new capex plan, we noted the significant capex carry-over from FY 23/24 into the first year of the LTP. We challenged management in relation to their capacity to deliver projects and how much of the first year's programme is already tendered and contracted. On this basis, we have placed additional audit focus in the area.	We have held discussions with management regarding the under delivery of the historical capex programmes to understand the causes of this. We understand this was largely due to Council not forecasting the delays in Waka Kotahi funding approval in FY 21/22. We have considered this in the context of the LTP forecast capex plan and note that a number of changes have been put in place to increase the likelihood that the forecast capex plan can be achieved and particularly the infrastructure team have modified the approach to delivery. We also considered the carryover from FY 23/24 and noted that the delays are due to various reasons, none of them individually significant (i.e. no significant capacity issue or funding issue) but mostly due to a number of causes that resulted in delays. Nonetheless, as presented in the May 29 Council Meeting, the infrastructure team has presented a ten-point plan to secure an effective delivery of the plan and a significant portion of the carry-overs are underway. As a result, the capex programme is based on projects which do not appear unreasonable although there does remain some risk of future carryovers.
Condition and performance information for critical assets WDC maintain key infrastructure for the community, including a range of critical assets. This raises a risk around the condition and performance information for assets on which the underlying information has been based.	WDC has an overall good condition of assets and has employed a reasonably robust budgeting process and there is a focus by the Council to improve their asset information, particularly around the three waters area. WDC's infrastructure strategy and asset management plans (AMP) detail renewals programmes across its different activity areas. We have ensured consistency between these and the forecasted financials in the LTP for key areas. A significant portion (\$988m / 50%) of the Council's infrastructure assets relate to roading, on which WDC's information has a very high-level confidence grading. Of the remaining \$1.002m of infrastructure assets, which relate to three waters for the vast majority (\$809m), confidence ratings for asset condition information include high, medium, and low ratings, isolated within the Stormwater asset group. We noted that there are no critical assets within the Stormwater asset group and Council has actioned plans to collect the missing data and validate existing information. This leaves \$159.7m of assets, including WIP, and there are no categories containing critical assets within those.

	WDC have built this uncertainty into their renewals programme. In the context of the overall infrastructure asset balance of \$1.9 billion (as on June 2023), and a \$1.2 billion forecast capital spend across the LTP period, we concluded that considering the 'medium' risk rating for the asset condition assumption, it did not represent a material amount of uncertainty in respect of the forecasts. Overall, Council's knowledge of the condition of critical assets is adequate for the purpose of the forecasts. We would expect the confidence grading and overall areas of uncertainty, particularly in the three waters area, to improve because of the improvement programme mentioned in the respective AMPs.
Performance measures Council is required to comply with the Local Government Non-Financial Performance Measure Rules 2013. For the current LTP period, Council have updated a number of measures. This includes the consolidation of certain existing measures and replacement of others. These new and changed measures are as a result of Council working with management to re-assess their existing performance framework. Council intends to use these performance measures to inform lifecycle decision making which will encompass capital, operating and maintenance works.	We made recommendations to management regarding the measurement targets and wording of a number of measures. These were primarily to clarify accountability and make it clearer how performance against certain targets will be measured. It's critical that Council looks to capture data for internal reporting against these measures quickly. The absence of adequate quality controls around data collection may impact the ability to report and/or audit the reported measures and targets. As an additional observation, we note that for District Development, Commercial Property and Support Services no performance measures have been identified. We understood that those activities historically haven't had any performance measures for various reasons (i.e. internally focused activities, scale of activities, etc.) but as Council moves forward with projects that intersect with those activities such as the Property Development's CCO/CCTO and the Northland Inc. shareholding, we would suggest you reassess the need for performance measures to be included within those areas.

4.4 Council Control Environment and Findings

The Deloitte audit approach requires them to gain sufficient understanding of an entity's internal controls to identify and assess the risks of material misstatement of the financial statements, whether due to fraud or error.

The audit is not designed to express an opinion on the effectiveness of the controls operating within the entity. However, Deloitte have communicated to management those deficiencies identified that they concluded are of sufficient importance to merit being reported.

Deloitte urges that their recommendations for improvement should be assessed by Council for their full commercial implications before they are implemented. Deloitte's findings were:

Finding/Observation	Management Response and Remediation Plan
Asset Management Plans We note that the information available within the Asset Management Plans (AMPs) can vary significantly between different documents and there is a lack of consistency on how AMPs are drafted by different departments, specifically around certain items such as: critical assets, asset condition, data quality and asset renewals. A lack of detailed planning in relation to the specific assets which require maintenance works creates a risk that forecast information does not capture the appropriate level of expenditure which is required to keep assets at an appropriate level of service. We recommend that management consider the level of detail in these plans and look to increase the clarity of the asset management planning in the future. We are aware that for some activity profiles there are improvements projected for data quality and general asset data accuracy.	Council has an asset planning team within infrastructure, with senior leadership support to provide a centre of excellence for supporting and enhancing asset management across the organisation. This includes looking closely at condition data, reconfirmation of critical assets and aligning this with our renewals programme. There are plans to develop the Tech 1 Strategic Asset Management (SAM) module which is integral to this process. The late reconfirmation of the three waters assets not being included in a regional entity impacted on the coordination and improvement of asset plans in this LTP. There is a risk that the proposed organisational changes may impact on the ability to provide a strategically coordinated increase in quality of the asset management plans.
Infrastructure Strategy It was noted that the Infrastructure Strategy, in the reporting of asset condition and the key issues and actions, presented some information which prima facie appears quite negative (in terms of condition, lifecycle etc.) without some form of materiality of context both in terms of monetary amounts and/or potential impacts to the LTP. This resulted in disclosures that, despite being extensive, failed to provide relevant information to the stakeholders. There is a risk that a lack of quantitative information in the AMPs will result in less than adequate disclosure being provided in the LTP. We recommend that all the AMPs are reviewed in the larger context of the LTP to assess the relevance of their disclosure in the context of the whole of Council.	The concerns relating to presentation of the three waters information are noted and will be reconfigured going forward. The late reconfirmation of the three waters assets as not being included in the proposed regional entity impacted on the coordination and improvement of asset plans in this LTP and the Infrastructure Strategy. The infrastructure planning team along with the Future Development Strategy team are working toward scoping a 30-year implementation plan. There are plans to develop the Tech 1 SAM module which is integral to this process. There is a risk that the proposed organisational changes may impact on the ability to provide a strategically coordinated response.
Alignment of AMP's and the Forecasting Process We noted that the financial modelling process was highly dependent on the data within Tech 1 and based on what managers agreed throughout the budget/LTP process.	Noted. There are plans to develop the Tech 1 SAM module which is integral to this process. There are also plans to enhance the AMPs with a gap analysis assessment between what is proposed under a best for asset scenario through to affordable and deliverable and what

As the AMPs are the primary documents used to forecast operational and capital budgets, we would expect a higher level of integration between the budgets and the AMPs. We recommend that WDC ensure that this iterative process is adequately reflected in Tech 1 and the AMPs to provide stronger evidence of the connectivity between the forecasts and the AMPs.	is able to be provided through the agreed budgets. The implantation and development of a SAM plan is intended to be introduced in the 2024-27 LTP period. This will contribute to all three recommendations as it will further align the AMPs and forecasting. There is a risk that the proposed organisational changes may impact on the ability to provide a strategically coordinated increase in quality of the asset management plans.
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5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via Agenda publication on the website.

6 Attachments / Ngā Tāpiritanga

Attachment 1: Deloitte LTP Report to Council - FINAL



Whangarei District Council

Report to Council
for the 2024-2034 Long Term Plan

10 July 2024



Purpose of report

This report has been prepared for the Councillors of Whangarei District Council and is part of our ongoing discussions as appointed auditor, on behalf of the Office of the Auditor-General, in accordance with our engagement letter and master terms of business dated 23 February 2024 and as required by New Zealand auditing standards.

This report is intended for the councillors and should not be distributed further. We do not accept any responsibility for reliance that a third party might place on this report should they obtain a copy without our consent.

This report includes only those matters that have come to our attention as a result of performing our procedures to date and which we believe are appropriate to communicate to the Council. The ultimate responsibility for the preparation of the Long-Term Plan rests with the Councillors.

Responsibility statement

We are responsible for conducting an audit of Whangarei District Council's 2024-2034 Long Term Plan in accordance with the local authority audit methodology issued by the Office of the Auditor-General. Our audit is performed pursuant to the requirements of the Local Government Act 2002, with the objective of forming and expressing an opinion on the Long-Term Plan that have been prepared by management with the oversight of the directors. The audit of the Long-Term Plan does not relieve management or the directors of their responsibilities.

Our audit is not designed to provide assurance as to the overall effectiveness of the Council's controls but we will provide you with any recommendations on controls that we may identify during the course of our audit work.



Contents

Section 1 – Our final report

Introduction	5
Status of the audit	6
Areas of audit focus dashboard	7
Areas of audit focus explained	8
Your control environment and findings	14
Summary of unadjusted differences	16

Appendices

Other communications	18
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Our final report



Introduction

Dear Councilors

We are pleased to provide you with the results of the audit of Whangarei District Council's 2024-2034 Long Term Plan. Included in this report are the results and insights arising from our audit which we consider appropriate for the attention of the Councilors. These matters have been discussed with management and their comments have been included where appropriate. We also include those matters we are required to report to you in accordance with the assurance standards. As a result, this report is intended for the councilors and should not be distributed further.

We would like to take this opportunity to extend our appreciation to management and staff for their assistance and cooperation during the course of our audit.

Yours sincerely,

A handwritten signature in black ink, appearing to read 'B Henderson', located below the 'Yours sincerely,' text.

Bryce Henderson, Partner
for Deloitte Limited
Appointed Auditor on behalf of the Auditor General
Auckland | July 2024



Status of the audit

As of the date of the LTP council approval, the status of our audit was summarised bellow and were appropriately addressed prior to sign off.

Stage of audit	Progress	Details of outstanding items
Review of Deliberations and Submissions to the Consultation Document		No items outstanding
Review of Updated Policies (Infrastructure Strategy and Finance Strategy)		No items outstanding
Performance measures		No items outstanding
Review of Updated Prospective Financial Information		No items outstanding
Review of the LTP Document		Editorial changes to be completed. Subsequent events and receipt of the representation letter will occur on the date on signing

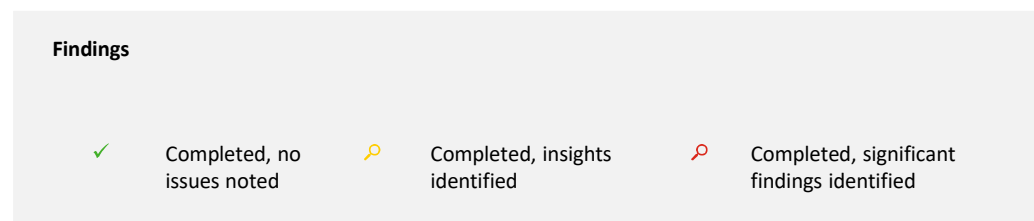
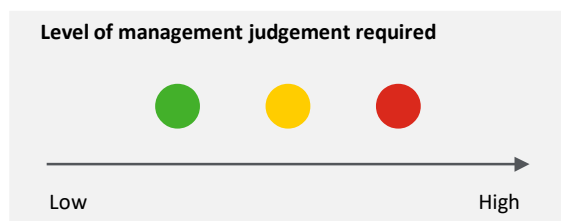
✓	Completed, no issues noted.		Completed, insights identified.		Completed, significant findings identified.
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Areas of audit focus – dashboard

Service performance information dashboard

Area of audit focus	Findings	Page #
LTP Document	✓	8
Assumptions	🔍	9
Financial and Infrastructure Strategy	✓	9
Climate change	✓	11
Capex do-ability	🔍	11
Condition and performance information for critical assets	🔍	12
Performance measures	🔍	13





Areas of audit focus

Area of audit focus	Our approach	Audit findings
LTP Document This is the fourth LTP Document after the third amendment to the Local Government Act was passed in 2014 which resulted in a new approach to consulting with the community during the Long-Term Plan.	We have: • Reviewed the document to ensure that it is consistent with what was prepared as part of the Consultation Document (noting this was not audited); • Identified any changes in the underlying models from the Consultation Document (draft LTP) and checked that they have been correctly reflected in the final LTP document; • Sighted the outcomes of the submissions from the public and outcomes from the deliberation meetings to ensure that the public have the ability to participate in the Long-Term Plan process.	No issues have been identified through our audit work.



Areas of audit focus (cont.)

Area of audit focus	Our approach	Audit findings
Assumptions We have considered the key assumptions used by Council within the Financial Model, Infrastructure Strategy and the Financial Strategy, and assessed these for consistency and reasonableness. We considered the level of uncertainty and likelihood of the assumptions to focus our testing on the material assumptions. Additionally, we assessed the completeness of the assumptions through comparison to the OAG guidelines.	We have: - Reviewed Council's significant forecasting assumptions and confirmed they are materially complete; - Tested the application of selected assumptions within the financial forecasts to ensure they have been reasonably applied; - Confirmed for all significant forecasting assumptions that involve a high level of uncertainty, the estimate of the potential effects on the uncertainty in the financial forecasts are appropriately disclosed in the LTP; and - Reviewed the climate change assumptions that have been used to ensure they are reasonable and supportable.	- We have challenged management on the capex do-ability assumption and assumptions around ability to secure contractors as part of our work on capex do-ability. - We have challenged the under-achievement of the Capex Plan in the past 3-4 Years, enquiring the root-cause, and how Management was operating in terms of commitment and phasing to present a doable Capex Plan. Please refer to Slide 10 for further information.
Financial Strategy and Infrastructure Strategy The key strategy which underpin the Long-Term Plan are the Financial and Infrastructure Strategies. Given the dependency on these, this has been deemed an area of audit focus.	We have: - Confirmed the two strategies are appropriately aligned; - Understood the impact in the financial forecasts included in the Infrastructure Strategy on the prudence of the Financial Strategy; - Assessed the reasonableness of the forecasts prepared through: - Understanding how the Council has applied the impact of its assumptions and levels of service on expenditure decisions and the implications on decisions in these strategies ; and - Checking the Infrastructure Strategy is appropriately inflated. - Ensured the strategies are presented in such a way they are engaging and informative, supporting the presentation of issues, options and implications presented in the Consultation Document. - Ensured the strategies follow compliance with the Local Government Act 2002	We have no findings to report to Council.



Areas of audit focus (cont.)

Area of audit focus	Our approach	Audit findings
Do-ability of Capital Programme At the early phase of our LTP Audit, we identified that WDC's average actual capital expenditure in the last three years was exceeding 100% in 20/21 and 22/23 but was significantly lower than 75% of budget in 21/22 resulting in average achievement of 88% implying that the capital expenditure do-ability assumption might be considered reasonable. Despite the overall positive performance, corroborated by the understanding of the root-cause of such delays that was applied in setting-up the new Capex Plan, we noted the significant Capex carry-over from FY23/24 into the first year of the LTP. We challenged management in relation to their capacity to deliver projects and how much of the first years programme is already tendered and contracted. On this basis, we have placed additional audit focus in the area.	We have: - Reviewed a sample of Capital Expenditure projects and ensured that the forecasted costings are appropriate and reasonable; - Held discussions with management (including divisional managers) and challenged how the Capital Expenditure Programme will be delivered. - Have understood the methodology used to determine the costings and timings of the Capital Expenditure programme.	- We have held discussions with management regarding the under delivery of the historical Capex Programmes to understand the causes of this. We understand this was largely due to Council not forecasting the delays in Waka Kothai funding approval in FY21/22. - We have considered this is the context of the LTP forecast CAPEX plan and note that a number of changes have been put in place to increase the likelihood that the forecast CAPEX plan can be achieved and particularly the Infrastructure team have modified the approach to delivery. - We also considered the carryover from FY23/24 and noted that the delays are due to various reasons, none of them individually significant (i.e. no significant capacity issue or funding issue) but mostly due to a number of causes that resulted in delays. Nonetheless, as presented in the May 29 Council Meeting, the Infrastructure Team has presented a ten-point plan to secure an effective delivery of the Plan and a significant portion of the carry-over are underway. - As a result, the CAPEX programme is based on projects which do not appear unreasonable although there does remain some risk of future carry overs.



Areas of audit focus (cont.)

Area of audit focus	Our approach	Audit findings
Climate change The discussion around climate change is included within the priority work programmes with the focus on flood protection infrastructure that plays a crucial role in protecting the region. Assumptions in relation to its ongoing needs in order to address the impact of climate events on flood infrastructure are made. Further, the Council's activities to date are discussed and disclosure included as to issues highlighted within the Infrastructure Strategy.	We have: Assessed the reasonableness of the forecasts prepared through: • Understanding how the Council assumptions reflect the impacts of climate change; and • Assessing the appropriateness of forecasted information to ensure that climate change has been factored into these forecasts.	No issues have been identified through our audit work.



Areas of audit focus (cont.)

Area of audit focus	Our approach	Audit findings
Condition and performance information for critical assets WDC maintain key infrastructure for the community, including a range of critical assets. This raises a risk around the condition and performance information for assets on which the underlying information has been based.	We have: - Reviewed the reasonableness of the Council's asset-related forecasting information by: - Assessing the Council's asset management planning systems and processes; - Understanding what changes the council proposed to its forecast level of service; - Understanding the Council's assessment of the reliability of the asset-related information; - Reviewing the costing information included in prepared capital expenditure budgets; and - Assessing how matters such as affordability have been incorporated into the asset-related forecasts prepared.	- WDC has an overall good condition of assets and has employed a reasonably robust budgeting process and there is a focus by the council to improve their asset information, particularly around the three water areas. - WDC's infrastructure strategy and asset management plans detail renewals programmes across its different activity areas. We have ensured consistency between these are the forecasted financials in the LTP for key areas. - A significant portion (\$988m / 50%) of the Council's infrastructure assets relate to roading , on which WDC's information has a Very High-level confidence grading. - Of the remaining \$1.002m of infrastructure assets, which relate to three waters for the vast majority (\$809m), confidence ratings for asset condition information include High, Medium and Low ratings, isolated within the Stormwater Asset Group. We noted that there are no Critical Asset within the Stormwater Asset Group and Council has actioned plans to collect the missing data and validate existing information, - This leaves \$159.7m of asset, including WIP, and there are no categories containing critical assets within those. - WDC have built this uncertainty into their renewals programme. In the context of the overall infrastructure asset balance of \$1.9 billion (as on June 2023), and a \$1.2 billion forecast capital spend across the LTP period, we concluded that considering the 'medium' risk rating for the asset condition assumption, it did not represent a material amount of uncertainty in respect of the forecasts. - Overall, Council's knowledge of the condition of critical assets is adequate for the purpose of the forecasts. We would expect the confidence grading and overall areas of uncertainty, particularly in the three-water area, to improve as a results of the improvement programme mentioned in the respective AMPs.



Areas of audit focus (cont.)

Area of audit focus	Our approach	Audit findings
Performance measures Council are required to comply with the local Government Non-Financial Performance Measure Rules 2013. For the current LTP period Council have updated a number of measures. This includes the consolidation of certain existing measures and replacement of others. These new and changed measures are as a result of Council working with management to re-assess their existing performance framework. Council intends to use these performance measures to inform lifecycle decision making which will encompass capital, operating and maintenance works.	We have: - As part of the audit process, we reviewed the LTP document for compliance with statutory requirements, including the mandatory performance measures (mandatory non-financial performance measures and financial prudence benchmarks). - Challenged management on measures (and related targets) proposed and whether or not these meet the intended objectives. - Challenged management's processes in place to measure targets on an annual basis.	We made recommendations to management regarding the measurement targets and wording of a number of measures. These were primarily to clarify accountability and make it clearer how performance against certain targets will be measured. It's critical that Council looks to capture data for internal reporting against these measures quickly. The absence of adequate quality controls around data collection may impact the ability to report and / or audit the reported measures and targets. As an additional observation, we note that for District Development and Commercial Property and Support Services no performance measures have been identified. We understood that those activities historically haven't had any Performance Measure for various reasons (i.e. internally focused activities, scale of activities, etc) but as the council moves forward with projects that intersect with those activities such as the Property Development's CCO/CTO and the Northland Inc. shareholding, we would suggest you reassess the need for Performance Measure to be included within those Areas.



Your control environment and findings

Details of findings identified

Our audit approach requires us to obtain an understanding of an entity's internal controls, sufficient to identify and assess the risks of material misstatement of the financial statements whether due to fraud or error. We remind you that our audit is not designed to express an opinion on the effectiveness of the controls operating within the Group, although we have reported to management any recommendations on controls that we identified during the audit. The matters being communicated are limited to those deficiencies identified that we have concluded are of sufficient importance to merit being reported. Our recommendations for improvement should be assessed by you for their full commercial implications before they are implemented.

Finding/observation	Business implication from control deficiency	Deloitte recommendation	Management response and remediation plan
Asset Management Plan			
We note that the information available within the Asset Management Plan (AMP) can vary significantly between different documents and there is a lack of consistency on how AMP are drafted by different department, specifically around certain items such as: critical assets, asset conditions, data quality and asset renewals.	A lack of detailed planning in relation to the specific assets which require maintenance works creates a risk that forecast information does not capture the appropriate level of expenditure which is required to keep assets at an appropriate level of service.	We recommend that management consider the level of detail in these plans and look to increase the clarity of the asset management planning in the future. We are aware that for some Activity Profiles there are improvements project on data quality and general asset data accuracy.	Council has an Asset Planning Team in infrastructure with Senior Leadership support to provide a centre of excellence to support and enhance asset management across the organization. This includes looking closely at condition data, reconfirmation of critical assets and aligning this with our renewals programme. There are plans to develop the Tech 1 Strategic Asset Management (SAM) module which is integral to this process. The late reconfirmation of the three waters assets not being included in a regional entity impacted on the coordination and improvement of asset plans in this LTP. There is a risk that proposed structural changes may impact on the ability to provide a strategically coordinated increase in quality of the asset management plans.
Infrastructure Strategy			
It was noted in reading the Infrastructure Strategy that, in presenting the asset conditions and the key issues and actions, WDC has presented some information which prima facie appear quite negative (in terms of conditions, lifecycle etc) without some form of materiality of context both in terms of monetary amounts and/or potential impacts to the LTP, resulting in disclosures that, despite being extensive, failed to provide a relevant information to the stakeholders.	There is a risk that a lack of quantitatively information in the AMP will result in non adequate disclosure being provided in the LTP.	We recommend that all the AMP are reviewed in the larger context on the LTP to assess their relevance of the disclosure in the context of the whole Council.	The concern about the presentation of the three waters information is noted and will be reconfigured going forward. The late reconfirmation of the three waters assets not being included in a regional entity impacted on the coordination and improvement of asset plans in this LTP and therefore the Infrastructure Strategy. The Infrastructure Planning Team along with the Future Development Strategy Team are working towards scoping the 30-year implementation plan. There are plans to develop the Tech 1 Strategic Asset Management module which is integral to this process. There is a risk that proposed structural changes may impact on the ability to provide a strategically coordinated response.



Your control environment and findings

Details of findings identified

Finding/observation	Business implication from control deficiency	Deloitte recommendation	Management response and remediation plan
Alignment of AMP's and Forecasting Process	We noted that the financial modelling process was highly dependent on the data uploaded/included within TechOne and based on what the Managers agreed throughout the Budget/LTP process. As the AMPs are the main documents used to forecast operational and capital budget forecast, we would expect a higher level of integration/interrelations between the Budget and the AMPs.	We recommend that WDC ensure that this iterative process is adequately reflected in TechOne/AMPs so as to allow for a stronger evidence on how the forecasts are connected to the AMPs.	Noted. There are plans to develop the Tech 1 Strategic Asset Management (SAM) module which is integral to this process. There are also plans to enhance the AMPS with a gap analysis assessment between what is proposed under a best for asset scenario through to affordable and deliverable and what is able to be provided through the budgets provided. The implantation and development of a Strategic Asset Management Plan is intended to be introduced in this LTP period. This will contribute to all three recommendations as it will further align the AMPs and forecasts. There is a risk that proposed structural changes may impact on the ability to provide a strategically coordinated increase in quality of the asset management plans.



Summary of unadjusted differences

In performing our audit, we have identified the following unadjusted differences that do not, individually or in aggregate, have a material effect on the Long-Term Plan for 2024-34.

Amounts in NZD/000

	2024/25	2025/26	2026/27	2028/28	2028/29	2029/30	2030/31	2031/32	2032/33	2033/34
Revenue										
<i>1. Waka Kothai - Indicative Funding Misstatement</i>	(1,439)	(1,439)	(1,439)							
Expenditure										
Operating surplus	(1,439)	(1,439)	(1,439)							
Current assets										
Current liabilities										
Non-current assets										
Noncurrent liabilities										
Equity	1,439	2,879	4,318	4,318	4,318	4,318	4,318	4,318	4,318	4,318



Appendices

3A. Other communications

The following matters are communicated in accordance with the requirements of New Zealand auditing standards:

Independence	We confirm that we have maintained our independence in accordance with the independence requirements of the Auditor-General of New Zealand's Standard on Professional and Ethical Standard 1 International Code of Ethics for Assurance Practitioners (Including International Independence Standards) (New Zealand) and, in our professional judgement, we are independent, and the objectivity of the audit engagement partner and audit staff are not compromised.
Accounting policies / Financial reporting	We have not become aware of any significant qualitative aspects of the Council's accounting practices, including judgements about accounting policies, accounting estimates and financial statement disclosures that need to be communicated to the Council.
Fraud	No matters relating to fraud, concerning either employees or management came to our attention.
Professional fees/Relationships	The audit fee for the completion of the Long-Term Plan 2024-2034 audit is as agreed in our audit proposal and arrangements letter dated February 2024. We will be requesting additional fees in relation to scope changes arising from the various iterations required given the three-water legislative and timetable changes. No relationships existed between the firm, network firms and the Council that, in our professional judgement, may reasonably be thought to bear on independence.
Related parties	No significant related party matters that, in our professional judgement, need to be communicated to the Council.
Written representation	A copy of the representation letter to be signed on behalf of the Council has been circulated separately.





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8.2 Better Off Funding Portfolio Progress Report – September 2024

Meeting: Whangarei District Council

Date of meeting: 26 September 2024

Reporting officer: Shelley Wharton (Manager Infrastructure Programmes)
Bernadette Aperahama (Manager Strategy)

1 Purpose / Te Kaupapa

The purpose of this report is to provide the six-monthly status update on the Better Off Funding Portfolio to Whangārei District Council as required by the Council resolution dated 26 October 2023.

2 Recommendation / Whakataunga

That the Council notes the September 2024 Progress Report on delivery of the Better Off Funding Portfolio.

3 Background / Horopaki

In recognition of the significance of Three Waters Reform to the local government sector and to support Councils' transition into their new roles post-reform, a 'Three Waters Better Off Support Package' for local authorities was announced by the Prime Minister and Minister of Local Government in July 2021.

On 25 August 2022, following a series of workshops with elected members and hapū representatives from Te Kārearea and Te Huinga, Whangarei District Council (WDC) approved the draft Funding Proposal and to enter into a funding agreement with the Department of Internal Affairs (DIA) who administer the fund. Included in the Funding Proposal was a \$4.0 million allocation to the Māori Wellbeing Fund / Kaupapa Māori Programme.

The DIA approved WDC's Funding Proposal and the funding agreement was signed by all parties. Crown Infrastructure Partners (CIP) then took on the role of monitoring, performance reporting, and financial administration for DIA in relation to Better Off Funding. CIP provided a system and framework for WDC to report into on a six-monthly basis.

On 26 October 2023, WDC approved (amongst other things):

- Governance and management mechanisms for the Māori Wellbeing Fund / Kaupapa Māori Programme contestable grants fund to enable the project to move into the implementation phase;

- Bi-monthly reporting on delivery of the Māori Wellbeing Fund to Te Kārearea Strategic Partnership, and six-monthly reporting to Council on the portfolio to align with government reporting timeframes.

Bi-monthly progress reporting to Te Karearea has been complied with. Bi-monthly meetings of the operational Portfolio Governance Group and Portfolio Management Group, have continued to be held on alternating months. A review of meeting frequency will be undertaken in the new year to align with the amount of assurance required at this stage of delivery.

4 Discussion / Whakawhiti kōrero

CIP has advised in its June 2024 update (attached as Appendix 1), that six-monthly reporting is no longer required. WDC will still be required to submit end of programme and end of portfolio reporting as these milestones are progressively achieved. However, this reporting will need to be timed to ensure necessary information concerning acquittal of grant funds already paid out, and performance in relation to outcome KPIs previously defined for grant-funded activities, including those funded via the Papakāinga Support Contestable Fund and the Māori Wellbeing Fund.

As outlined in the DIA Better Off Fund - CIP Update June 2024 (Appendix 1), the DIA (and CIP) received direction from Cabinet to work with councils to:

- Identify opportunities to redirect unspent Better Off Funding to Local Water Done Well, and
- Increase investment in waters infrastructure, or to help establish new water services delivery organisations

Following a review of the portfolio, WDC subsequently offered the following voluntary redirections of its Better Off Funding allocations for DIA consideration:

- Redirection of \$0.1M from the “*Resilience Program*” to a new ‘**Local Water Done Well**’ project, to develop the Water Services Delivery Plan and if budget allows, plan for transition to a new water services model. The \$0.1M being funded from anticipated under-budget delivery of the Hikurangi Repo project, with the balance of funding for Hikurangi to be retained in the “*Resilience Program*” as it is a water-related project.
- Bringing the Better Off Funding of the recreation component of the Ōakura Sports Park Development and Wetland Restoration project (“*Wellbeing Programme*”) to an end and redirecting remaining project funds (\$0.663M) to a new project, ‘**Ōakura Wetland and Flood Mitigation**’, focussing on water-related project aspects.

Formal approval of these voluntary redirections was received from DIA/CIP on 27 August 2024.

As reported previously, the three-tier assurance and management approach, which includes representatives from Te Huinga Incorporated Society and Council staff, continues to be effective in ensuring administrative efficiency, that delivery occurs as planned, and that DIA requirements are met.

4.1 Progress on Better Off Funding Portfolio Delivery

Overall the total portfolio is well on track to be fully delivered before the end date of 30 June 2027.

As a result of the redirections outlined above, the reporting to CIP and DIA has been updated to include the 2 new projects as well as the original three programmes aligned with the funding criteria, with each programme containing component projects that were agreed during the initial workshops held in 2022.

As at 31 July 2024, a total of \$8,206,254 of the Tranche 1 allocation of \$9.48 million, had been drawn down from DIA to support the delivery of the portfolio.

From DIA's perspective, approved funding allocations for nine of the twelve (ten original plus two new) projects have now been claimed in full, as work has been completed or commitments made, with the three remaining 'incomplete' projects, being:

- Hikurangi Business Case (water related project)
- Ōakura Wetland & Flood Mitigation (New / Redirection)
- Local Water Done Well (New / Redirection)

The next claim is expected to be made in October and will incorporate additional commitments made for the Hikurangi Project and for the new 'Ōakura Wetland and Flood Mitigation' project. The balance of the funding is committed to projects that are underway and will be claimed in due course.

Of the \$8,206,254 drawn down from DIA, a total of \$6,632,469 has been spent, with only the Papakāinga Support Contestable Fund and the two new projects yet to have expenditure recorded against them.

From a delivery or acquittal perspective, three of the twelve projects in the portfolio have now been completed, being the Punaruku Business Case, the funding of the CitySafe Additional Resourcing, which ended on 30 June 2024, and the Ōakura Sports Park Development and Wetland Restoration project, with unspent funds for this project now redirected to the newly created Ōakura Wetland and Flood Mitigation project.

Grant funding, provided as contribution toward a further three building projects, has been paid out in full by WDC, representing completion from the perspective of funding allocation, (illustrated as both 'done' and 'spent' in Figure 2 below). Acquittal of grant funds will continue to be tracked on these projects, which include the Ruakākā Recreation Centre Stage 1, the Whangarei Heads Volunteer Fire Service Building Extension, and the Land Search and Rescue Base Extension works.

Acquittals associated with the implementation of the Grant funding already paid out in full to Te Huinga for the implementation of the Māori Wellbeing/Kaupapa Māori Fund (also shown as 'done' and 'spent' in Table 2), will be similarly tracked, until these details and outcome KPIs are able to be confirmed.

Activities associated with the implementation of the Papakainga Support Contestable Fund, the Climate Change Adaptation Strategy Actions, and both the newly created projects (Oakura Wetland and Flood Management and Local Water Done Well) are anticipated to extend beyond December 2024.

Figure 1 below outlines a high-level picture of expenditure and completion performance.

Indicator	Resilience	Housing	Wellbeing
Completion	61%	20%	100%
Expenditure	29%	0%	97%

Figure 1: Table of Expenditure and Completion Performance

Figure 2 below outlines a high-level picture of expenditure and completion performance across the twelve funded projects.

Project	% Done	% Spent
Punaruku, Russell Road Flood Mitigation & Access Options Business Case	100%	100%
Climate Change Adaptation Strategy Priority Actions	20%	10%
Hikurangi Repo Environmental Improvement Options Business Case	62%	44%
Papakāinga Support Contestable Fund	20%	0%
New Land Search and Rescue (LandSaR) Base	100%	100%
CitySafe Additional Resourcing	100%	100%
Māori Wellbeing/Kaupapa Māori Programme	100%	100%
Ōakura Sports Park Development and Wetland Restoration	100%	96%
Ruakākā Recreation Centre Stage 1	100%	100%
Whangārei Heads Volunteer Fire Service Building Extension	100%	100%
New Project - Ōakura Wetland and Flood Mitigation	0%	0%
New Project - LWDW	0%	0%

Figure 2: Table of Expenditure and Completion Performance by Project

Table 3 below outlines the programmes of work, the specific projects and includes an update on the status and financial tracking of each project.

Programme 1 - Transitioning to a Sustainable Economy incl. Climate Change & Natural Hazards resilience	
Punaruku, Russell Road Flood Mitigation & Access Options Business Case	Complete.
Climate Change Adaptation Strategy Priority Actions	Case study for a hapu-led risk assessment and adaptation plan with NRC has been completed. The fund proper is now live with communication of application and approval processes to identified hapū representatives sent on 9 September 2024.

	Submission assessment and fund close expected February 2025.
Hikurangi Repo Environmental Improvement Options Technical Report & Business Case	Outcomes of flood modelling work to inform the business case are currently being stress-tested. Project remains on track for expected completion of Business Case in December 2024.
Programme 2- Infrastructure and/or Services that Enable Housing Development and Growth	
Papakāinga Support Contestable Fund	Fund launched and applications are open, although no applications have yet been received. Additional options for communication of fund availability are currently being explored. Expected completion 30 June 2027.
Programme 3 - Infrastructure and/or Services that Improve Community Wellbeing and Placemaking	
CitySafe Additional Resourcing	Complete. Funding enabled 1706 additional CitySafe Officer hours, with behavioural improvement outcomes resulting in additional WDC funding of CitySafe being allocated for the next three years.
Māori Wellbeing/Kaupapa Māori Programme	48 applications (of 174 received) have been funded, including 12 x scholarships (totalling \$12k), 9 x applications for Māori Wellbeing Event funding (totalling \$256k) and 27 x General Māori Wellbeing Fund applicants (totalling \$3.732M). Te Huinga have appointed a Project Manager to support the implementation of the fund and have been progressing with the establishment of appropriate funding agreements, payment milestones and reporting requirements for successful recipients. Milestone 1 payments totalling over \$690,000 were paid in August. Expected completion 30 June 2026.
Ruakākā Recreation Centre Stage 1	Work to be completed in September 2024. Final acquittal of costs subject to receipt of final invoices. Opening ceremony currently scheduled for last weekend in September 2024.
Whangārei Heads Volunteer Fire Service Building Extension	Grant paid in full and payment of brigade contribution to FENZ made before building started. Construction process at 50% completion, led by FENZ, with completion expected by early October.
New Land Search and Rescue (LandSaR) Base (RFS Service Building Extension)	Project currently in Preliminary Design (approx.15% complete) under a Design & Build Contract, with lodgement of Resource Consents expected in October. The LandSaR component is for additional space within the larger RFS building.
Ōakura Sports Park Development and Wetland Restoration	Investigation and masterplanning work undertaken. Initial phase of project completed and closed with DIA. Recreation works continue as a separate council-

	funded project reported through the Infrastructure Committee. Balance of unclaimed BOF funds (\$0.662M) transferred to new project <i>Ōakura Wetland and Flood Mitigation</i> .
Ōakura Wetland and Flood Mitigation	Project currently in procurement for design, with appointment expected to be completed in September. Redirection of \$0.662M for this project has been approved by CIP, with funds yet to be claimed. Expected completion 30 June 2027.
Local Water Done Well	New project to develop the Water Services Delivery Plan and, if budget allows, to plan for transition to a new water services model. Redirection of \$0.1M for this project has been approved by CIP, with funds yet to be claimed. Expected completion 30 June 2026.

Figure 3: Table of Progress by Project

5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via Agenda publication on the website.

6 Attachment / Ngā Tāpiritanga

Attachment 1: DIA Better Off Fund - CIP Update June 2024

1. Cabinet has directed DIA to work in partnership with CIP and councils to:

- Review the status of current Better Off projects, including expenditure incurred to date and currently committed expenditure; and
- Identify opportunities to redirect unspent Better Off funding to *Local Water Done Well*, increase investment in water infrastructure, or to help establish new water services delivery organisations.

DIA and CIP are currently working with councils to identify redirection opportunities.

2. Before the end of June 2024 CIP will publish two reports:

- i. The first will set out all projects under each council's Better Off programme on 30 April 2024. Any subsequent changes to Better Off programmes relating to the redirection of funding will not be reflected in this report.

CIP will publish an updated list of all Better Off projects for each council following the conclusion of redirection conversations with councils. This report will highlight those councils who have redirected funding to increase investment in water infrastructure or to help establish new water services delivery organisations.

- ii. CIP will also be publishing the DIA BOF 31 Dec-23 formal report on its website.

3. DIA no longer require Council's to complete the formal six-monthly reporting round, as set out in the Funding Agreement. The parties can track project and programme progress satisfactorily in real-time using the CIP BOF portal. Note:

- i. Please continue to keep project milestone and forecast information updated as claims and project change requests are submitted for processing and approvals
- ii. The project close-out report process continues to satisfy the 'final report' conditions of the Funding Agreement, and as a Council completes their BOF programme the final Programme Summary report will also satisfy the contract reporting conditions.
- iii. The reporting functionality of the portal remains available for councils wanting to use the publishing capability for their own reporting purposes.

This will mean local focus can be given on project delivery rather than the effort in working through the biannual formal project reporting and programme approval process.

4. The BOF projects are being reviewed by the CIP Relationship Manager team to assess the extent of three waters investment in the overall programme. For example, a sports field project may also have functionality as a stormwater attenuation pond and as such also be considered a three waters investment.

5. At 30 April 2024

- \$240m of the BOF funds had been released by DIA, being 48% of the \$500m crown fund.
- There are 455 projects either not started (277), underway (122), or paid in full (56)
- Four councils have completed their Better Off Package fund programme of works: Auckland, Thames-Coromandel, Manawatu, and Hastings
- 25 councils (37%) have yet to be paid claims for costs in excess of their initial 10% advance payment.

Please don't hesitate to continue getting in touch with your CIP Relationship Manager.

8.3 Updated Government Parking and Towing Penalties

Meeting: Whangarei District Council

Date of meeting: 26 September 2024

Reporting officer: Reiner Mussle

1 Purpose / Te Kaupapa

To inform Council of the Government mandated changes to parking enforcement and towing penalties being implemented as of 1 October 2024.

2 Recommendation / Whakataunga

That the Council receives and notes this report.

3 Background / Horopaki

Most parking infringement and vehicle towing fees mandated by central government legislation have not increased since 2004. Following a recent review the Ministry of Transport has implemented a range of increases to both parking and towing fees, effective as of 1 October 2024. This includes for fees where Council has previously been approached by the community seeking higher fees (notably for parking in an area reserved for disabled persons), but has not been able to respond to those requests given these fees are set under legislation.

Given that Council must implement these fee changes by 01 October 2024 this paper provides a brief update on the changes, providing councillors with the updated fee schedule.

4 Discussion / Whakawhiti kōrero

On 29 August 2024, the Ministry of Transport emailed territorial authorities (TA's) notifying of two Regulations and one Notice which were Gazetted on that day to give effect to proposed changes to penalty fees as of 1 October 2024 and these being:

- Land Transport (Offences and Penalties) Amendment Regulations 2024
- Land Transport (Storage and Towage Fees for Impounded Vehicles) Amendment Regulations 2024
- Land Transport (Towage Fees) Notice 2024

In addition, the email (see attachment A) urged TA's to facilitate that change and where necessary update internal 'systems', prior to 1 October so as to be able to implement those new fees.

Related to the above and contained in attachment B is a table which states both the current and those fees which will apply as of 1 October and thus show the value of the applicable increase. Please note however that this table does not include all changes applicable on 1 October, as some of these are found in the above stated Regulations, rather than this table.

Noteworthy is the fact that these new fee values are mandated penalties which TA must charge and therefore TA's can't charge higher or lower fees.

Some penalties, such as the offence 'to park in an area reserved for disabled persons' (mobility carparks) increased drastically from the current \$150 to \$750, highlighting the seriousness of such an offence and the Government's intent.

Unfortunately, some fees such as that for illegally parking on a clearway, requiring the towing that (passenger) vehicle, whilst increased from \$60 to \$100 and from \$53.67 to \$90.20 respectively, the combined value thereof still doesn't allow for the full recovery of council's actual cost when a vehicle is required to be towed. Nevertheless, this is a step in the right direction.

4.1 Financial/budget considerations

Going forward, if the number/volume and categories of future infringements remains the same as current, these fee increases will likely result in extra revenue for Council, which will offset any existing or future cost increases in providing these services.

4.2 Policy and planning implications and risks

Given that these changes must be implemented no alternative options are provided to Council for consideration, and there are no policy/planning implications.

In order to mitigate the risk of people being unaware of these changes, and/or thinking that they are a Council fee, our communications staff are working through a proactive communications plan.

5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy. The public will be informed via Agenda publication on our website, and a proactive communications plan letting the public know of the changes before they come into force.

6 Attachments / Ngā Tāpiritanga

A - Email notification from the Ministry of Transport

B - 1 October 2024 increases to parking infringement and towing fees vs. current fees table

From: Fees and Penalties Consultation <FeesAndPenaltiesConsultation@transport.govt.nz>
Sent: Thursday, August 29, 2024 2:06 PM
To: Fees and Penalties Consultation <FeesAndPenaltiesConsultation@transport.govt.nz>
Subject: Parking infringement and towage fee increases effective 1 October 2024

EXTERNAL: This email originated from outside Whangarei District Council. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Kia ora

Following on from our engagement with you in late June, we can now confirm that inflation increases to parking infringement and towage fees will come into effect from 1 October 2024.

The Minister of Transport and the Minister for Disability Issues announced the fee increases earlier today. This includes a \$750 infringement fee for misuse of a mobility parking space. You can read the full release here: <https://www.beehive.govt.nz/release/government-update-parking-penalties>.

The final fee levels are attached. From 1 October 2024, the current parking infringement fees can no longer be used.

We have been in contact with the administrator of the precedent code (P-code) system, Ian James. Ian will update all nationwide codes to reflect the fee changes. Your appropriate contact will receive these from Ian in the week of 2 September 2024.

For local body codes (ie P-codes for offences set through bylaws, including parking overstaying), you will need to email Ian (ian.james5019@gmail.com) with a list of the codes you need updated. Please do this ASAP, and no later than 16 September, to ensure Ian has time to make the changes before 1 October 2024.

If there are other system and / or IT changes you need to make to implement the new fee levels by 1 October, we recommend you progress these simultaneously to the P-codes being updated.

Please reach out if you have any questions.

Ngā mihi

Rebecca
 Fees and Penalties Review team

Te Manatū Waka Ministry of Transport

FeesAndPenaltiesConsultation@transport.govt.nz | transport.govt.nz



Hāpaitia ana ngā tāngata o Aotearoa kia eke
 Enabling New Zealanders to flourish

Table 1 Inflation increases to parking infringement fees (effective 1 October 2024)

Offence		Current infringement fee	New infringement fee from 1 October 2024
	Overstaying not more than 30 minutes	\$12	\$20
	Overstaying more than 30 minutes but not more than 1 hour	\$15	\$25
	Overstaying more than 1 hour but not more than 2 hours	\$21	\$36
	Overstaying more than 2 hours but not more than 4 hours	\$30	\$51
	Overstaying more than 4 hours but not more than 6 hours	\$42	\$71
	Overstaying more than 6 hours	\$57	\$97
2.12(2)	Stop or park on motorway	\$150	\$255
6.1	Park vehicle without due care and consideration	\$60	\$100
6.2	Park vehicle on roadway when practicable to park on road margin	\$40	\$70
6.3(1)	Park vehicle on bend	\$40	\$70
6.3(2)	Unauthorised parking on or within 6 metres of intersection	\$60	\$100
6.4(1)	Park contrary to a traffic sign (general)	\$40	\$70
6.4(1A)	Park in an area reserved for disabled persons	\$150	\$750
6.4(1B)	Park, etc, a non-electric vehicle in parking area reserved for charging electric vehicles	\$60	\$100
6.4(4)	Park on broken yellow lines	\$60	\$100
6.5(1)	Park vehicle on pedestrian crossing	\$60	\$100
6.5(2)(a)	Park vehicle within 6 metres of driver's approach to pedestrian crossing	\$60	\$100
6.5(2)(b)	Park vehicle in signed/marked area on driver's approach to pedestrian crossing	\$60	\$100
6.6	Park vehicle in special vehicle lane (bus lane or cycle lane)	\$60	\$100
6.7	Park vehicle on traffic island or flush median	\$40	\$70
6.8(1)	Park vehicle within 6 metres of bus stop sign	\$40	\$70
6.9(1)	Vehicle obstructs entrance or exit of driveway	\$40	\$70
6.10	Park vehicle near fire hydrant	\$40	\$70
6.11	Park vehicle alongside another stopped vehicle	\$60	\$100
6.12	Fail to park vehicle parallel to road	\$40	\$70
6.13	Fail to park vehicle at angle when required	\$40	\$70
6.14	Park vehicle on footpath or cycle path	\$40	\$70
6.15	Park vehicle of unauthorised class on reserved area	\$60	\$100
6.16	Park on loading zone	\$40	\$70
6.17(a)	Stop on level crossing	\$150	\$255
6.17(b)	Stop near level crossing so as to obscure view	\$150	\$255
6.18(1)	Parking goods vehicle at angle during hours of darkness	\$60	\$100
6.19	Park trailer on roadway for more than 5 days	\$60	\$100
8.3(2)(c)	Fail to dip headlamps when vehicle parked	\$150	\$255
8.7(1)	Park unlit vehicle during hours of darkness	\$150	\$255
8.7(2)	Park heavy vehicle (or vehicle fitted with flat-deck for goods carriage) during hours of darkness without rearward facing position lamp	\$150	\$255
8.7(3)	Stopping or standing temporarily during hours of darkness without using position lamp(s) or dipped-beam headlamp(s)	\$150	\$255

Table 2 Inflation increases to regulated towage fees (effective 1 October 2024)

Service	Current fee (including GST)	New fee from 1 October 2024 (including GST)
Towage - 3500kg or less, between the hours of 7am and 6pm, Monday to Friday (not including public holidays)	\$53.67	\$90.20
Towage - 3500kg or less, any other time (eg Saturday, Sunday or a public holiday)	\$71.56	\$120.30
Towage - more than 3,500kg, between the hours of 7am and 6pm, Monday to Friday (not including public holidays)	\$132.89	\$223.40
Towage - more than 3500kg, any other time (eg Saturday, Sunday or a public holiday)	\$204.44	\$343.70

RESOLUTION TO EXCLUDE THE PUBLIC

That the public be excluded from the following parts of proceedings of this meeting.

The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Emergency Whangarei District Council 4 September 2024		
1.2	Property Matter – Rent Concession		
1.3	Contract Negotiations – Animal Shelter Operations		
1.4	Transition Advisory Board Appointments		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons as stated in the open minutes	
1.2	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.3	To enable Council to carry on without prejudice or disadvantage commercial activities	Section 7(2)(h)
1.4	To protect the privacy of natural persons including that of a deceased person	Section 7(2)(a)

Resolution to allow members of the public to remain

If the council/committee wishes members of the public to remain during discussion of confidential items the following additional recommendation will need to be passed:

Move/Second

“That _____ be permitted to remain at this meeting, after the public has been excluded, because of his/her/their knowledge of Item _____.

This knowledge, which will be of assistance in relation to the matter to be discussed, is relevant to that matter because _____.

Note: Every resolution to exclude the public shall be put at a time when the meeting is open to the public.